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The Gazette of the Democratic Socialist Republic of Sri Lanka
EXTRAORDINARY

අංක 2319/26 – 2023 පෙබරවාරි මස 13 වැනි සඳුදා – 2023.02.13
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PART IV (A) – PROVINCIAL COUNCILS

Provincial Councils Notifications

PROVINCIAL COUNCIL OF THE WESTERN PROVINCE

**Notification under Section 123 of the Pradeshiya Sabha Act No. 15, of 1987, read with Section 2 of the
Provincial Council (Consequential Provisions) Act No. 12, of 1989**

I, Roshan Goonetilleke, the Governor of the Western Province, in terms of the powers vested in me under Section 123 of the Pradeshiya Sabha Act No. 15 of 1987, read with Section 2 of the Provincial Council (Consequential Provisions) Act No. 12 of 1989 do here by notify that my approval has been given for the by-laws, described in the Schedule herein under, made by the Kalutara Pradeshiya Sabha in terms of the Sub Section 122(1) of the Pradeshiya Sabha Act No. 15 of 1987 read with Section 126 of the aforesaid Act

ROSHAN GOONETILLEKE,
RWP And BAR VSV USP PHD FIM Sri Lanka) ndc psc,
Marshal of the Sri Lanka Air Force,
The Governor,
Western Province.

At Governors' Office - Western Province,
Provincial Council Office Complex,
Battaramulla.
On 30th Day of November, 2022,



**BY-LAW
RELATING TO THE BATHING PLACES WITHIN THE PRADESHIYA SABHA**

- | | | |
|---|-----|---|
| | 1. | This by-law is enacted to regulate and control public bathing places maintained within the authority area of the Kalutara Pradeshiya Sabha . |
| <i>Short name</i> | 2. | This by-law is cited as the by-law relating to the bathing places within the Kalutara Pradeshiya Sabha . |
| | 3. | The Pradeshiya sabha is vested with powers to formulate these by- laws by virtue of Section 126 (ix) of Pradeshiya Sabha Act No. 15 of 1987 read with the Sub section 122 of the said Act. |
| | 4. | A bathing area, a well or a pool of water belonging to a river, stream or canal which exists or is maintained as a public bathing place for public bathing within the territory of the Pradeshiya sabha (hereinafter referred to as authority area) shall be applicable for the purposes under this by-law. |
| <i>Maintaining a public bathing place</i> | 5. | When it comes to a public bathing area belonging to a river, stream or canal located within the authority area, with respect to each of those public bathing areas, |
| | (1) | The place shall be maintained under a notice board with the words declaring it a public bathing place. |
| | (2) | Notices shall be displayed about the area that can be used safely as a bathing place and the safety precautions to be taken in a way that makes it easy for the public to use the bathing area. |
| | (3) | Stairs shall be made with cement and it shall not be slippery in such a way to allow safe access to water for bathing. |
| | (4) | Whenever possible women and men shall have separate access to the water. |
| | (5) | Maintaining the bathing area shall not endanger any tree in the river, stream, canal or lake reserve where the bathing area is located. |
| | (6) | Normally the bathing area shall be used from 06.00 a.m to 07.00 p.m and the bathing area could be used at night only if adequate electric lighting is provided at the location. |
| | (7) | Separate places to change clothes shall be set up for men and women. |
| | (8) | Usage of alcohol shall be prohibited in any form around the bathing area and notices shall be prominently displayed in that regard. |
| <i>Setting a fee</i> | 6. | The Pradeshiya sabha may provide and maintain additional services and facilities for the users of the bathing place, and it shall be lawful to charge a fee as decided and published by the Pradeshiya sabha for such services and facilities. |
| <i>When it comes to a public bathing well or pool</i> | 7. | When there is a public bathing well or pool located within the authority area, with respect to each of those public bathing well or pool, |
| | (1) | The place should be maintained under a notice board with the words declaring it a public bathing place. |
| | (2) | Around the well or pool shall have a protective wall of the height of at least 0.6096 metres above ground level and at least to a similar depth below ground level the well or pool should be |

permanently build securely with cement or granite.

- (3) Whenever possible, the public bathing place shall be maintained so that it can be used separately for men and women, and separate places for women and men to change clothes shall be maintained.
- (4) Drainage should be arranged in such a way that the water used for bathing is easily prevented from leaking into the bathing well or pool and drains easily out of it.
- (5) Buckets and ropes shall be there as needed to use the water for bathing, and the buckets shall be painted to prevent rust.

8. It is lawful to appoint committees by the Chairman consisting of representatives of the residents in the vicinity of every public bathing place to advise the Chairman in such matters to assist in the action taken by the Pradeshiya sabha to maintain the public bathing places in accordance with the provisions of section 4 and 5 above.

Appoiment of committee

9. (1) The function of a committee appointed under section 8 above shall be as follows.

The Function of committee

- (A) If there are instances where it is observed that the users of the public bathing places do not comply with the provisions of this by-law, they shall report thereon to the Chairman.
- (B) To inquire into the requirements of the relevant place for the benefit of the public and to advise and report to the Chairman.
- (C) To perform relevant functions with the participation of Labour in cases where there is a need to clean the bathing pool and well for the benefit of public health.
- (D) To take all possible steps to protect the water sources and the surrounding flora and fauna, and to advise the Chairman in this regard.
- (2) Committees appointed for the purpose under Sub-section (i) shall gather from time to time and shall inform the Chairman of the decisions to be taken.

10. It is the duty of the Pradeshiya sabha to take all possible steps to maintain the proper public baths located within the authority area.

- 11.(1) It is lawful to prohibit the use of any public bathing place for a specified period of time by the Chairman on the advice of the Medical Officer of Health in the event of any epidemic situation under the Quarantine and Prevention of Disease Ordinance or any of the regulations made under it, applicable to the whole island or part of Sri Lanka.

Prohibition of use when an epidemic is declared

- (2) Such an order shall be prominently displayed in a public bathing place.

12. No person shall bath or use the public bathing place for any other purpose when the Chairman has prohibited using a public bathing place under the section 11 of this by-law during the period of such prohibition.

13. (1) In case of any epidemic of any infectious or transmissible disease in the area, the Chairman shall issue instructions on the procedure to be followed by a person taking a bath in or using a public bathing place in accordance with the instructions given by the Medical Officer of Health.

Publication of regulations relating to an epidemic Situation

(2) All provisions under Sub-section (1) above shall be prominently displayed in the public bathing place and all persons using the public bathing place shall obey the rules.

14. Anyone who suffers from an epidemic or spends a quarantine period after an epidemic or on quarantine period on suspicion of such an illness should not use a public bath.

Disposal of waste

15. In a public bathing place,

(A) Disposal of the waste generated shall be as specified by the Chairman and no waste shall be released into the external environment.

(B) A garbage bin shall be specifically reserved and maintained in the place to dispose things such as face masks or gloves worn by any person and shall be disposed only to the garbage bin.

(C) The waste collected shall be disposed according to the waste management program implemented by the Pradeshiya Sabha.

16. Water shall not be taken for drinking purposes from a public bathing place in any instance.

17. No person shall urinate or defecate in the vicinity of a public bathing place unless there are toilets and latrines provided by the Pradeshiya Sabha in an area designated as a public bathing place.

18. Shall not wash vehicles, machineries or agrochemical spraying machines in a place that is maintained as a public bathing place.

That bathing and entering animals is prohibited

19. No person shall bathe, wash or enter any animal in or near any place designated as a public bathing place.

20. No person shall roam, walk around a public bathing place without any purpose.

21. The public bathing place shall be regularly inspected by an officer authorized by the Chairman to ensure that it is in accordance with the provisions of this By-Law.

Quality

22. It is an offense to maintain a public bathing place against the provisions of this by-law or violate the provisions of this by-law and after being found guilty by a court of competent jurisdiction shall be Subject to a fine under Sub-section 123(2) of the Pradeshiya Sabha Act No. 15 of 1987.

23. Unless other meaning is required with regard to text, in this by-law;

“Pradeshiya Sabha” means Kalutara Pradeshiya Sabha too;

Definition

"Chairman" means the person who holds the office of Chairman of the Kalutara Pradeshiya Sabha for the time or the person who perform the duties of that position,

“Medical Officer of Health” means the person holds the office of that position for the Division of Medical Officer of Health in the Kalutara local authority at the time;

"Authorized Officer" means an officer authorized by the then Chairman in writing.

Inconsistency between texts

24. In the event of any inconsistency between the Sinhala, English and Tamil texts of this by-law the Sinhala text shall prevail.

BY-LAW ON THE MAINTENANCE OF LAUNDRY AND WASHING PLACES.

1. This by-law is enacted to regulate and supervise the operation of laundry and washing places maintained within the authority area of the Kalutara PradeshiyaSabha.
2. This by-law is cited as the By-Law on the Maintenance of Laundry and Washing Places in the Kalutara PradeshiyaSabha. *Short title*
3. The Pradeshiya sabha is vested with powers to formulate these by- laws by virtue of Section 122(1) of the Pradeshiya Sabha Act No. 15. of 1987 read with Sub Section 126 IX of the aforesaid Act.
4. No person within the jurisdiction of the Kalutara Pradeshiya Sabha (hereinafter referred to as the authority area) shall operate a laundry or a washing center (hereinafter referred to as a premise) except under a license obtained from the Chairman under this by-law.
5. All persons applying for a license under this by-law shall apply for it under an application prepared in accordance with the schedule under this by-law. *Applying for a License*
6. Submission of an application under the above section can be made by fulfilling the requirements and Submitting an application to the Chairman by registered post, handing over in hand or by e-mail to the extent permitted by the Council.
7. All persons applying for a license under this by-law shall not be issued a license by the Chairman unless the following conditions are fulfilled. *Conditins for a license*
 - (1) If the constructions relevant to the premises are permanent constructions, all such constructions Shall be constructions in accordance with the provisions of the Urban Development Authority Act No. 41 of 1978 or the Housing and Urban Development Ordinance.
 - (2) There shall be separate room facilities for temporary storage of cloths brought for cleaning in the premises till cleaning.
 - (3) Accepting cloths for cleaning on the premises and returning the cleaned cloths shall not be done by one person at the same time.
 - (4) When washing, drying and reprocessing of clothes take place in the same premises,
 - (A) Drainage related to the premises shall be maintained in such a way that it is easily drained and wastewater shall be diverted to a septic tank, soakage pit or central treatment unit according to approved procedures.
 - (B) Machines used for washing and drying clothes shall be in good working condition, properly fitted to the floor and set up so that the noise generated during operation does not spread to the outside.
 - (C) The electrical circuit of the premises shall be one which is fixed permanently and the plugs shall be properly fitted for the required electrical capacity.
 - (D) The water discharged during washing shall be finally disposed of without any outflow.
 - (E) Windows and openings shall be fitted out to allow light and air to enter the premises easily, and if not shall be artificially lighted and air conditioned.
 - (F) Tables and other equipment for ironing work shall be set up at a sufficient distance so that they can be used properly.

(G) Adequate sanitary facilities shall be provided for the employees working on the premises and adequate latrine facilities shall be provided for both males and females.

(H) There shall be hygienic containers to keep the cleaned clothes temporarily and they shall not contact with the dirty clothes in any way.

(I) There shall be rooms or partitions with doors that can be closed to keep clothes after ironing until they are returned.

(J) The interior of the premises shall be designed to maintain a proper distance when required.

(5) When washing clothes outside the premises, a public water source shall not be used for that purpose and the applicant shall be certified,

(A) That washing clothes will be done at a place specified for that purpose and that the place will be confirmed from time to time;

(B) That no chemical used in cleaning clothes are released into any water source after use.

(6) When washing clothes is done outside the premises, necessary facilities shall be provided to ensure that dirty clothes are not mixed or contact with cleaned clothes in any way while carrying dirty clothes outside the premises to wash and bringing them back after cleaning.

(8) There shall be adequate parking facilities for customers.

(9) Automatic generators and water storage facilities of sufficient capacity shall be available to be utilized in the event of an emergency power outage or water supply failure.

(10) Internal drainage and sewage disposal in the premises shall be directed to a septic tank or soakage pit, and if the septic tank or soakage pit is in a water source, it shall be more than 15.25 meters away.

Issuing a license

8. Within fourteen days of receipt of an application for a license made under this by-law, the Chairman; Issuing a license

(1) Shall issue a license to the applicant related to the premises if it is in accordance with the conditions mentioned in Section 7.

(2) Shall reject the relevant application with reasons if it is not complied with the conditions mentioned in Section 7.

fees for a license

9. (1) The fees to be charged for a license issued under this by-law shall be the fees to be decided and declared by the Council Subject to the provisions of the Basic Law.

(2) It shall be lawful for the Council to decide and charge an inspection fee for site inspections in connection with the issuance of a license.

10. If a license issued under this by-law is not previously cancelled in accordance with the provisions of this by-law, it shall be valid until December thirty first of the year in which the license is related.

11. All persons received a license under this by-law shall act in accordance with the following conditions herein.

(1) The clothes handed over for cleaning shall be kept in a container in a specific room on the premises

until it is cleaned.

- (2) Disposal of any chemicals used to clean clothes on the premises shall be done in accordance with the recommendations of the Medical Officer of Health or the Public Health Inspector.
- (3) Drains or pipes which discharge waste water due to cleaning of clothes in the premises shall be directed to a septic tank or soakage pit so that it does not open on the ground surface.
- (4) Latrines for employees on the premises shall be kept clean and disinfected.
- (5) If burning charcoal is used for ironing, they shall be thoroughly extinguished after use, collected in a separate container and disposed as waste.
- (6) If there are residential employees on the premises;

(A) Separate residential facilities shall be provided under adequate sanitation facilities.

(B) The area for the purpose of accommodation and dining on the premises shall be kept separate from the area where the licensing process takes place.

- (7) A person suffering from an infectious disease or suspected to be an infected or such a vector or an infected person shall not be employed on the premises in any way and the license holder shall be always satisfied that such person is not employed.
- (8) If there are any terms prescribed by the Chairman on the advice of the Medical Officer of Health time to time in order to control an epidemic situation declared throughout Sri Lanka or in any part of the country or relevant to the authority area or in any case where an epidemic has been declared applicable under the Quarantine and Prevention of Diseases Ordinance or regulations made under it, the premises shall be maintained Subject to all such terms.
- (9) It is lawful for the Chairman to order, on the instructions of the Medical Officer of Health, to carry out all or some of the following actions in connection with the conduct of license- related functions in the premises in the event of the implementation of regulations relating to any epidemic situation in the authority area under the Quarantine and Prevention of Diseases Ordinance and the regulations made under it.

(A) That the activities on the premises carried out under the license shall be temporarily suspended for a certain period of time.

(B) That work shall be carried out keeping specific social distancing while working on the premises.

(C) A specific procedure shall be followed in handing over dirty clothes, cleaning and returning.

(D) The health guidelines applicable to the activities on the premises shall be displayed in a manner visible to the public and employees.

(E) That shall enter into a statement of agreement with the Chairman stating that the premises will be maintained in accordance with the health regulations applicable from time to time.

(F) Employees working on the premises shall engage in work wearing gloves and masks for specific purposes.

(G) That the premises shall be disinfected.

12. Sewage collected in the premises shall be disposed to sealed garbage bins specifically maintained for that purpose, and if there are disposable masks and gloves on the premises, all of them shall only be disposed into foot-operated containers which shall be maintained on the premises for only that purpose.

- That the license shall be displayed.* 13. Waste collected on the premises shall be disposed in accordance with the waste management program implemented by the Pradeshiya Sabha.
- Power to enter a premises* 14. Each premises shall display this by-law and the license obtained thereon or a copy thereof.
15. It shall be lawful for the Chairman or any other authorized Public Health Inspector or any other authorized officer to enter the premises at any reasonable time to inspect whether the premises is in accordance with the provisions of this by-law.
- 16.(1) In the event of being against this by-law or violation of the provisions of this by-law in a premises licensed under this by-law, the Chairman shall Submit to the license holder a notice informing a specific time period not exceeding thirty days to be in compliance with the by-law.
- (2) After Submitting a notice under this Section to the license holder, the Chairman may grant an additional period of time upon a reasonable request to further extend the time period to be in accordance with the terms of the relevant notice. The period granted so shall be Subject to a maximum period of fourteen days in addition to the period specified in the first notice.
- Cancellation of the license* 17. The Chairman shall cancel the relevant license in the event that the license holder fails to be comply with the notice within the period of time or additional period given under section 16 above.
- Penalty* 18. It is an offense to maintain a premises without a license to be obtained under this by-law or in violation of the provisions of this by-law and after being convicted by a Magistrate Court for that offense, shall be Subject to a penalty under Sub-Section 122(2) of the Pradeshiya Sabha Act No. 15 of 1987 of the said Ordinance. Further, after being found guilty of such an offense, if the violation continues even after the notice has been given by the Chairman or an officer authorized by him, he shall be Subject to an additional penalty referred to in that Sub-section for each day of such violation.
- Definition* 19. Unless other meaning is required with regard to text, in this by-law,
- “Council” means Kalutara Pradeshiya Sabha,
- “Chairman” means the person who hold the office of the Chairman of the Kalutara Pradeshiya Sabha at that time or an officer who performs the duties of that position,
- “Medical Officer of Health” means the person who holds the office of the Medical Officer of Health Division relevant to the authority area of the Pradeshiya Sabha.
- “Public Health Inspector” means a person who holds the office of Public Health Inspector attached to the Pradeshiya Sabha or the office of the Medical Officer of Health relevant to the authority area of the Pradeshiya Sabha.
- “Basic Law” means the Pradeshiya Sabha Act No. 15 of 1987.
- Inconsistency between texts* 20. In the event of any inconsistency between the Sinhala, English and Tamil texts of this by-law the Sinhala text shall prevail.

First Schedule
Application for a License for the year.....

- 1.Name of the applicant: -
 - 2.Personal Address: -
 - 3.National Identity Card Number: -
 - 4.Phone number: -
 - 5.Start year: -
 - 6.Address of the laundry or the washing place: -
 - 7.Grama Niladhari Division: -
 - 8.Assessment Number: -
 - 9.Approved building plan number and date: -
- I certify that the above information is true and correct
I certify that the above information is correct. I request to issue a license to me for the year

Date: -
Signature of the applicant

For office use

Revenue Inspector,

I kindly request you to provide me your observations and recommendations as soon as possible for the
issuance of a license in relation to the application mentioned on the back.

Date: -
Secretary

Secretary,

I recommend/do not recommend granting the license.

Date: -
Revenue Inspector

Chairman,

I recommend issuing a license in relation to the application mentioned on the back. Date: -

.....
Secretary

Secretary,

I approve the issuance of a license.

Date: -
Chairman

BY - LAW ON HAIRDRESSING CENTERS

	1.	This by-law is enacted to regulate and Supervise hair dressing centres and barber shops in the authority area of the Kalutara Pradeshiya Sabha.
Short title	2.	This by-law is cited as the By-Law on Hairdressing Centres of the Kalutara Pradeshiya Sabha.
Legal power	3.	The Pradeshiya Sabha is vested with powers to formulate these by- laws by virtue of Section 122 of Pradeshiya Sabha Act No.15 of 1987 read with the Sub-Section 126 (xxiii) of the said Act.
	4.	No person within the jurisdiction of the Kalutara Pradeshiya Sabha (hereinafter referred to as the authority area) shall maintain a hairdressing center or barber shop (hereinafter referred to as the premises) except under a license obtained from the Chairman under this by-law.
Applying for a License	5.	All persons applying for a license under this by-law shall apply for it under an application prepared in accordance with the schedule under this by-law.
	6.	Submission of an application under the above section can be made by fulfilling the requirements and Submitting an application to the Chairman by registered post, handing over in hand or by e-mail to the extent permitted by the Council.
Conditions for a license	7.	All persons applying for a license under this by-law shall not be issued a license by the Chairman unless the following conditions are Fullfilled.
	(1)	Constructions relating to the premises shall be constructions in accordance with the provisions of the Urban Development Authority Act No. 41 of 1978 or the Housing and Urban Development Ordinance.
	(2)	The premises shall be maintained under its own business name.
	(3)	Proof that the employees who work on the premises are skilled in hairdressing shall be Submitted.
	(4)	Constructions on the premises shall be well constructed of permanent construction materials and in good health safety condition.
	(5)	Space set apart for providing services for each customer shall be minimum of 2.25 square meters and there shall be adequate space proportionate to the number of customers who are to be provided services at the same time.
	(6)	For any Customer who arrive therein in anticipation of services shall provided with adequate space to be seated conveniently with at least 1.5 meters distance from the place where another customer is being served.
	(7)	All walls of the premises shall be not less than 2.7 meters high customer and shall be painted.
	(8)	Each part of the premises shall be finished with a ceiling or concrete slab at a height of not less than 2.7 meters from the ground level.
	(9)	The premises shall be air-conditioned or have windows that can be opened sufficiently to allow air to flow in from the outside.
	(10)	premises shall be finished to receive light finely.
	(11)	Drinking water for use in the premises shall be adequately supplied and shall eguipped with water storage facilities.

- (12) If required clients shall be provided with the facilities to take a shower after setting their hair.
- (13) A separate part of the premises shall be maintained for washing the equipment and containers used for the customers.
- (14) There shall be adequate latrine facilities for the employees and customers of the institution and it shall be well constructed and hygienic.
- (15) Specific equipment shall be fixed to wash hair of the customers, and shall be maintained by cleaning and disinfecting after use by one person before use by another.
- (16) Adequate measures shall be taken to ensure that wastewater discharged from the premises does not flow into public drains or open spaces, and shall be properly directed to a septic tank or soakage pit.
- (17) A septic tank or soakage pit relevant to the premises shall not be open to the outside and if there is a water source it shall be constructed at a distance of at least 15.25 meters away.
- (18) There shall be a separate area on the premises with adequate facilities for the customers waiting for services..
- (19) The electrical circuit in the premises shall be checked by a professional and certified to be safe from leakage.
- (20) A separate place shall be maintained to clean the equipment and containers used in the premises.
8. Within fourteen days of receipt of an application for a license made under this by-law, the Chairman; *Issuing a license*
- (1) Shall issue a license to the applicant related to the premises if it is in accordance with the conditions mentioned in Section 7.
- (2) Shall reject the relevant application with reasons if it is not complied with the conditions mentioned in Section 7.
9. (1) The fees to be charged for a license issued under this by-law shall be the fees to be decided and declared by the Council Subject to the provisions of the Basic Law. *Fees for a license*
- (2) It shall be lawful for the Council to decide and charge an inspection fee for site inspections in connection with the issuance of a license.
10. If a license issued under this by-law is not previously cancelled in accordance with the provisions of this by-law, it shall be valid until December thirty first of the year in which the license is related. *Validity period of a license*
11. All persons received a license under this by-law shall act in accordance with the following conditions herein.
- (1) If there are any terms prescribed by the Chairman on the advice of the Medical Officer of Health time to time in order to control an epidemic situation declared throughout Sri Lanka or in any part of the country or relevant to the authority area or in any case where an epidemic has been declared applicable under the Quarantine and Prevention of Diseases Ordinance or regulations made under it, the premises shall be maintained Subject to all such terms.

- (2) All persons employed on the premises shall act in accordance with all orders issued by the Chairman on the advice of the Medical Officer of Health in the event of an outbreak of an epidemic being declared under the regulations made under the Quarantine and Prevention of Diseases Ordinance.
- (3) Whenever there is a suspicion of a risk of an epidemic in the authority area, service facilities shall not be provided on the premises unless all persons seeking services come to the premises in accordance with the relevant health guidelines issued.
- (4) Health safety instructions shall be implemented properly on the premises as directed by the Director General of Health Services or the Medical Officer of Health or by the Chairman on their instructions, in case of any outbreak or risk of any epidemic in the authority area to protect from it, and the license holder shall be satisfied that it is being so.
- (5) Every time engages in haircuts, hair colorings, beards and hair removal of the customers, everyone who engages in such activities shall wear face masks and gloves as much as possible.
- (6) A document containing information relevant to each customer receiving the services shall be maintained.
- (7) Customers shall be encouraged to bring their own cloths to cover the upper body when service is given, otherwise the used cloths shall not be used for another customer until it has been washed, dried and cleaned after used for one customer.
- (8) As recommended by the Medical Officer of Health, Public Health Inspector all equipment, combs, brushes, etc., used for the activities including haircuts shall not be used for another customer unless disinfected after used for one customer.
- (9) The windows shall be kept open for good circulation of air in the premises, and if air conditioned, all air conditioners shall be kept constant at the prescribed temperature.
- (10) The filters of the air conditioners in the premises shall be regularly cleaned and maintained.
- (11) The relevant service shall be provided only after the hands have been cleaned with soap or sanitizer before providing the service to the customer.
- (12) When working on the premises, the service shall not be provided to a customer without adequate cleaning prior to service after the use of toilets or after contact with any contaminants.
- (13) When serving the customers on the premises, every service provider shall wear an apron and it shall be of very clean condition.
- (14) Dust and hair shall be swept and removed after each service on the premises, and all shall be temporarily disposed into a sealed garbage bin.
- (15) Floor, chairs, and tables on the premises shall be cleaned daily with disinfectant before starting work.
- (16) No person shall use the service area of the premises for eating or any other purpose.
- (17) Foot-operated garbage bins with lids shall be kept for the separate collection of waste collected in

the premises, and waste shall be collected only into that.

- (18) The following procedures shall be followed in the management / of waste that collects in relation to the premises.

(A) Removed hair shall be collected at the end of each service and disposed in a separate garbage bin.

(B) Other waste generated by the activities in the premises shall be collected separately without mixing them with the discharged hair.

- (C) The waste related to the premises shall be disposed in accordance with the waste management program implemented by the Pradeshiya Sabha or in accordance with the waste disposal strategy implemented by the license holder as agreed by the Public Health Inspector.

- (19) Latrines in the premises shall be cleaned and disinfected at least twice a day and shall be kept free from odor, and in the event of an outbreak or suspicion of an epidemic in the authority area, the latrines on the premises shall be cleaned and maintained in accordance with the guidelines given by the Chairman as instructed by the Medical Officer of Health.

- (20) All employees work on the premises shall have a proper training in using equipment, and shall not use any chemical for dyeing that is not approved by the health. authority.

- (21) Any person who suffers from any infection, transmittable or skin disease, or who has recently suffered from such a disease, or who has recently nursing a person who has recently infected from any such disease, unless the period of infection and incubation has expired, shall not be employed or employed as an assistant at any licensed place.

- (22) Any person identified as suffering from any infection, transmittable or skin disease shall not normally be entered to the premises for service..

- (23) When the license holder decides or in case where it is prescribed by the Chairman or any other competent authority instructed by the Medical Officer of Health, the body temperature of all persons visits seeking services on the premises shall be checked and entered into the premises, and required thermometers shall be maintained to check the body temperature without contact.

- (24) The health guidelines to be followed by each customer on the premises shall be displayed on the premises and the license holder shall ensure that all activities are carried out in accordance with those guidelines.

- (25) First aid facilities shall be maintained on the premises and the staff employed shall be trained for that as well.

- (26) Relevant to all persons who serve on the premises, the license holder shall ensure,

(A) That the clothing worn at work is clean and in good health condition.

(B) That the jewelry worn and their nails are maintained in a manner that does not harm the customer.

(C) That the hands are sanitized and cleaned prior to service

- (27) It is the responsibility of the license holder to Subject the employees work on the premises for a medical checkup at least once a year.

- (28) A copy of this by-law and the license shall be displayed in all premises.

12. It shall be lawful for a Public Health Inspector or any other officer authorized by the Chairman to enter the premises at any reasonable time to inspect whether the premises is in accordance with the provisions of this by-law.
13. Taking into account the possible causes of the spread of an epidemic in the area, when the Chairman has prescribed that the license holder shall enter into a statement of agreement regarding the maintenance of the premises as instructed by the Medical Officer of Health, the license holder shall enter into a statement of agreement with the Chairman, and the Chairman shall send a copy of it to the Medical Officer of Health.
14. In the event of an order is in effect under the Quarantine and Prevention of Diseases Ordinance relating to any epidemic situation pertaining to the authority area, the premises shall be maintained in accordance with all the terms of that Order.
- Power to enter the premises*
15. It is lawful for the Chairman or any other authorized Public Health Inspector or any other authorized officer to enter the premises and obtain the required samples at any reasonable time to inspect the premises whether it is in accordance with the provisions of this by-law.
16. (1) In the event that a premises licensed under this by-law violates the provisions of this by-law or acts against it, the Chairman shall Submit a notice to the license holder informing a specific time period not more than thirty days to be in compliance with the by-law.
- (2) After Submission of a notice under this Section to the license holder, the Chairman may grant an additional period of time upon a reasonable request to further extend the time period to be in accordance with the terms of the relevant notice. The period granted so shall be Subject to a maximum period of fourteen days in addition to the period specified in the first notice.
- Cancellation of the license*
17. The Chairman shall cancel the relevant license in the event that the license holder fails to be comply with the notice within the period of time or additional period given under Section 16 above
- Penalty*
18. It is an offense to maintain a premises without a license to be obtained under this by-law or in violation of the provisions of this by-law and after being convicted by a Magistrate Court for that offense, shall be Subject to a penalty under Subsection 122(2) of the Pradeshiya Sabha Act No. 15 of 1987. Further, after being found guilty of such an offense, if the violation continues even after the notice has been given by the Chairman or an officer authorized by him, he shall be Subject to an additional penalty referred to in the aforesaid Subsection 122(2) of the Pradeshiya Sabha Act No. 15 of 1987 for each day of such violation.
- Definitions*
19. Unless other meaning is required with regard to text, in this by-law
- “Council” means Kaluthara Pradeshiya Sabha,
- “Chairman” means the person who hold the office of the Chairman of the Kaluthara Pradeshiya Sabha at that time or an officer who performs the duties of that position,
- “Medical Officer of Health” means the person who holds the office of the Medical Officer of Health Division relevant to the authority area of the Pradeshiya Sabha,
- “Public Health Inspector” means a person who holds the office of Public Health Inspector attached to the Pradeshiya Sabha or the office of the Medical Officer of Health relevant to the authority area of the Pradeshiya Sabha,
- "Disinfectants" means a chemical agent that physically reduces the amount of microorganisms in the environment to a level that does not reduce their safety or suitability,
- "Reasonable time" means the time engaged in a licensed activity or related work.
- Definitions*
- Inconsistency between Texts*
20. In the event of any inconsistency between the Sinhala, English and Tamil texts of this by-law the Sinhala text shall prevail.

Schedule
Application for a Trade License for the year.....

01. Name of the applicant: -
02. Personal Address: -
03. National Identity Card Number: -
04. Phone number: -
05. Nature of the business: -
06. Start year: -
07. Address of the place of business: -
08. Grama Niladhari Division: -
09. Assessment Number: -
10. If the business name registration has been obtained, its reference number: -
11. The manager or agent of the place of business,
 - I. Name and Personal Address: -
 - II. National Identity Card Number: -
 - III. Phone Number Mobile: - Fixed: -

Number and date of the Construction approval Plan relevant to the business (Copies Should be attached)
I certify that the above information is true and correct.

I request that a business license to be issued to me for the year for the place where the industry, business mentioned above. I agree with the existing rules and regulations on this regard.

Date:-
Signature of the applicant

For office use
Revenue Inspector,
I kindly request you to provide me your observations and recommendations for the issuance of a license in relation to the application mentioned on the back.

Date:-
Secretary

Secretary,
I recommend/do not recommend granting the license

Date :-
Revenue Inspector

Medical Officer of Health,
I kindly request that your observations and recommendations for the issuance of a license in relation to the application mentioned on the back.

Date:-
Secretary

Medical Officer of Health,

Eligible in accordance with by-law and other rules and regulations. I will report to recommend the issuance of licenses.

Date :-
Public Health Inspector

Secretary,
I recommend/do not recommend issuing a license for the relevant place as for the application it not recommended state the reason

Date :-
Medical Health Officer

**BY-LAW
OF THE PRADESHIYA SABHA RELATING OFFENSIVE AND DANGEROUS TRADE**

- | | |
|---|---|
| | 1. This by-law is enforced to regulate, supervise, and control the offensive dangerous trade conducted within the authority area of the Kalutara Pradeshiya Sabha. |
| <i>Short title</i> | 2. This by-law is cited as the by-law of the Kalutara Pradeshiya sabha relating offensive and dangerous trade. |
| | 3. The Pradeshiya sabha is vested with powers to formulate these by- laws by virtue of Section 126 (ix) of Pradeshiya Sabha Act No. 15 of 1987 with the Sub section 122 of the said Act. |
| | 4. It shall be lawful for the Pradeshiya sabha to determine and publish from time-to-time which trades are offensive trades, dangerous trades and offensive and dangerous trades are relevant to the purpose of this by-law among the trades established and maintained within the authority area of the Kaluthara Pradeshiya sabha (hereinafter referred to the authority area). |
| <i>That a license shall be obtained</i> | 5. No person shall engage in any form of offensive trade, dangerous trade or offensive and dangerous trade (hereinafter referred to trade) as declared under section 3 above in any premises located within the authority area except under a license obtained from the Chairman of the PradeshiyaSabha. |
| | 6. Any person applying for a license under this by-law shall apply for it under an application prepared in accordance with the schedule of this by-law. |
| | 7. Submission of an application under the above section can be made by Submitting the application by fulfilling the requirements by registered post, handing over in hand to the Pradeshiya sabha or by e-mail to the extent permitted by the PradeshiyaSabha. |
| <i>Inspection fee</i> | 8. It shall be lawful for the Council to decide and charge a fixed inspection fee for site inspections to be carried out prior to the issuance of a license in respect of each application made under this by-law. |
| <i>Conditions for a license</i> | 9. Any one Applying for a license under this by law shall have fulfilled the following conditions |
| | (1) If there are permanent constructions under the premises where the trade is being carried out (hereinafter referred to as the premises), the relevant constructions should be constructions made in accordance with a plan approved under the Urban Development Authority Act No. 41 of 1978 or under the Housing and Development Ordinance. |
| | (2) If the area is zoned in accordance with the provisions of the Urban Development Authority Act No. 41 of 1978 or the Housing and Development Ordinance, the premises should be set up accordingly. |
| | (3) All relevant constructions shall be in a properly finished but shall be constructed in such a way as not to adversely affect the trade conducted on the premises in any way. |
| | (4) The premises shall have space to enable the relevant operations to be carried out at a sufficient distance. |
| | (5) All areas of the premises shall be arranged in such a way as to maintain proper cleanliness. |
| | (6) If there is a manufacturing process on the premises, the part for it shall be specifically separated and the premises shall be designed to prevent customers from entering it in any way except for |

those who are engaged in the relevant activities.

- (7) If there are storage facilities in the premises, the relevant warehouses should be arranged in accordance with the proper safety standards and suitable for the purpose and shall be in a safe and proper condition with adequate space.
- (8) The premises shall be properly lighted and ventilated, or artificially meet the requirements.
- (9) The floor of the construction section and the non-construction section shall be prepared with a suitable slope so that it can be easily cleaned and easily drained.
- (10) The walls of the buildings on the premises shall be made of water-repellent material that can be easily cleaned, and the ceiling shall be installed for the parts where the trade is carried out other than those used for operations.
- (11) Doors and windows used for buildings on the premises shall have a smooth surface so that they do not absorb water and doors for restricted areas shall be fitted in such a manner as to close automatically.
- (12) The premises shall have a fire protection program in place and a fire safety certificate should be obtained as applicable.
- (13) All drains installed in and around the premises shall be arranged in such a way which can easily drain waste water and shall be directed to the culverts or central treatment unit so that it is not open to the environment.
- (14) Soakage pits, suction pits installed in the premises shall be positioned in accordance with the approved plan and should be set at a distance of at least 15.25 m from a water source and should not be exposed to air.
- (15) When discharging sewage and feces on the premises,
 - (A) It shall not in any way be allowed to flow into a public waterway, public drain, road or any other open area.
 - (B) The soakage pit or suction pit to which they are directed shall not be exposed to the air and shall be prepared in such a manner as not to pollute the ground water due to that pit.
 - (C) The relevant soakage pit or suction pit shall be at least 15.25 m from any water source.
- (16) If chemical waste water produced due to a manufacturing process on the premises, it should not be disposed of without treatment under the direction of a specific authority.
- (17) (A) Adequate supply of drinking water to the premises shall be provided and water storage facilities shall be provided.
 - (B) Water storage tanks shall be of sufficient height and the water stored there shall not be polluted in any way.
 - (C) If drinking water and non-drinking water are to be used in the premises, the drinking water shall be carried through separate pipelines so as not to be mixed with the non-drinking water, and such pipes shall be painted in different colors.

(18) For employees working in the premises,

- (A) If employed as a resident, there shall be accommodation facilities with adequate sanitary facilities.
 - (B) When providing residential facilities, the accommodation facilities should be at least four square meters per person.
 - (C) Adequate toilet facilities for the residents shall be kept separate from those of men and women and shall be of proper standard.
 - (D) If there are sections relevant to the business function and manufacturing functions the residents' section of the premises shall be maintained separately.
- (19) Adequate space shall be provided for customers visiting the premises to be able to maintain physical distance when required.
- (20) In the event of an epidemic within the authority area under the Quarantine and Prevention of Diseases Ordinance and the regulations made under it, adequate health care facilities shall be provided to enable the applicable regulations in such cases.

Issuing a license

10. Within fourteen days of receipt of the application for a license to be issued under this by-law, the Chairman,

- (1) Shall issue a permit for the premises to the applicant in accordance with the information under section 8.

frees for license

- (2) Shall reject the relevant application with reasons in case of non-compliance with the conditions under section 8.

11. The fee to be charged for a license issued under this by-law shall be the fee to be decided and published annually by the Council Subject to the provisions of the Basic Law.

12. If a license issued under this by-law is not previously cancelled in accordance with the provisions of this by-law, it shall be valid until 31st December of the year in which the license applies.

13. All persons licensed under this by-law shall act in accordance with the conditions set out herein.

- (1) If there is a rule which is imposed by the Chairman from time to time under the instructions of the Medical Officer of Health to control any epidemic situation that has been declared throughout Sri Lanka or in any part of the country or in any part of the territory or in any case where an epidemic has been declared under the regulations made under the Quarantine and Prevention of Diseases Ordinance, the premises shall be maintained Subject to each such rule.

- (2) All persons employed on the premises shall act in accordance with all orders made by the Chairman on the advice of the Medical Officer of Health in respect of any epidemic declared under the Quarantine and Prevention of Diseases Ordinance or any regulations made thereon.

- (3) Whenever there is a suspicion of an epidemic in the authority area, services should not be provided on the premises unless the person seeking employment comes in accordance with the health instructions issued to control the spread of the disease.

- (4) Health safety instructions imposed by the Director General of Health Services or the Medical Officer of Health or by the Chairman as per their instructions in the event of an epidemic or risk

of an epidemic in the authority area shall be implemented and the licensee should be satisfied of doing so.

- (5) First aid facilities should be provided relevant to each premises so that they can be used for emergencies and the staff should be trained for that.
- (6) Adequate fire protection system should be installed in the premises and it should be maintained in proper condition under proper inspection. Everyone working on the premises should be aware of the functioning of the fire protection system in the premises and should be given an understanding through a rehearsal of how to respond in the event of an emergency fire.
- (7) Premises and employees work in the premises shall be insured under appropriate insurance.
- (8) Correct information on the area of residence, full name, identity card number and telephone number of each employee employed on the premises should be maintained and all such information should be submitted as recommended by the Chairman.
- (9) In the event of an epidemic in the area, everyone working on the premises shall act in accordance with the public health care instructions and the instructions of the Medical Officer of Health or the health care instructions issued by the Chairman in accordance with the instructions of the Medical Officer of Health, and the licensee shall ensure of it.
- (10) Appropriate arrangements should be made for the disposal of gloves, masks etc. used in the premises.
- (11) Thermometer shall be kept in order to measure the body temperature of all visitors to the premises so that it can be used when health advice is given.
- (12) The premises should be kept clean at all times and related activities including disinfection should be maintained under proper management.
- (13) If there are any hazardous areas in the premises, the relevant sign boards should be clearly displayed.
- (14) According to the nature of the trade, if there are any chemicals or other Substances that are harmful to health, advertisements should be pasted on the dangers and their usage.
- (15) If there are chemicals used and sold on the premises, they should be securely packaged.
- (16) Anything on the premises should not be affected by the Tools, equipment, oils, disinfectants or anything else used for cleaning on the premises.
- (17) Surfaces that are frequently touched when working on the premises shall be regularly cleaned with disinfectant.
- (18) No one shall spit on the premises.
- (19) If hand washing is required as a precautionary measure for visitors and employees on the premises, facilities should be provided for it.
- (20) (A) If hazardous material is stored or moved around the premises, it should be stored in special safety containers.
(B) Skilled labor shall have been deployed for the above (A).

(21) For employees working in the premises,

(A) Adequate bathroom and toilet facilities for men and women shall be provided and shall be properly arranged.

(B) Restrictions on the activities of residents in a hazardous premise in accordance with the nature of the trade shall be enforced by the licensee and the relevant notices shall be prominently displayed on the premises.

(C) Adequate security equipment and tools shall be provided according to the form of trade.

(D) Required training and advice must be provided by the licensee to act in accordance with all instructions and orders given by the Chairman as per the instructions of the Medical Officer of Health in the event of any epidemic or suspicion of any epidemic situation in the area or in any part of the country or throughout Sri Lanka.

(E) A health monitoring system should be set up in the premises and a process should be put in place to provide necessary advice to the employees.

(22) In the event of an epidemic of transmissible or infectious disease in the authority area or in the event of a possible cause, the Chairman may instruct that one or more of the following steps be taken within the premises as recommended by the Medical Officer of Health and those instructions given should be implemented by the licensee.

(A) Shall maintain a distance from each other while working in the premises.

(B) The minimum number of employees required for the service shall be employed in small groups under several shifts.

(C) Public gatherings and meetings should not be held within the premises for a specified period of time.

(D) Shall make sure that the body temperature is under the normal range upon entering the premises.

(E) Meals shall be provided in small groups on the premises.

(F) Adequate disinfectant, soap and hand washing facilities have been provided to clean the hands of the employees and visitors to the premises.

(G) Masks shall be used while working on the premises, taking into account the need.

(H) Everyone in the premises shall properly implement the respiratory etiquette.

(I) The activities within the premises shall be limited to a certain period of time.

(J) The employees working on the premises shall be Subjected to health checkups as prescribed by the Medical Officer of Health within a specified period of time.

(23) The premises shall be cleaned daily and the disinfection process shall be carried out as per a schedule according to the situation and the licensee should ensure that it is so.

(24) The licensee should be aware of the potential risks in conducting the relevant trade on the premises, prescribe the appropriate remedies, etc., and take the necessary action.

(25) The following measures should be taken in relation to the waste management of the premises.

- (A) Disposal of waste in the premises shall be carried out in a proper manner and if the waste is disposed in the premises in accordance with the waste management program implemented by the Pradeshiya Sabha, the waste should be handed over in accordance with the relevant instructions and regulations.
 - (B) Under no circumstances shall the licensee mix hazardous waste with other waste and hand it over.
 - (C) In the case of premises not covered by the Solid Waste Management Service operated by the Pradeshiya Sabha, the licensee shall dispose of the waste Subject to the conditions recommended by the Medical Officer of Health or the Public Health Inspector.
 - (D) If there is a hazardous waste generated in the premises, action shall be taken to dispose of the contaminant in accordance with the rules and regulations in force in that regard.
- (26) When the permit applicable to the premises is in force the licensee shall maintain the premises in accordance with all instructions given by the Chairman on the recommendation of the Medical Officer of Health regarding the health safety measures of the employees of the premises and visitors to the premises.
- (27) The premises shall be maintained so as not to cause any odor or any other disturbance caused by any raw material or product or its by-product.
- (28) Packing height shall not exceed 1.5 m above ground level unless adequate security measures are in place when storing the manufacturing products on the premises or products for sale on the premises.
- (29) When the goods sold on the premises are governed by any other written law such as agrochemicals, chemicals or drugs, the relevant license shall be displayed on the premises in a manner that is properly visible to consumers.
- (30) All items for sale within the premises shall be packaged separately.
- (31) If emissions are released into the environment under products for sale on the premises, its release shall comply with the regulations of the Central Environmental Authority.
- (32) If noise is generated during activities on the premises, it shall be controlled in accordance with the regulations of the Central Environmental Authority.
- (33) Tools, water tanks, stoves and other equipment used in the premises shall be properly cleaned and maintained after use.
- (34) Any prohibited chemical for any purpose on the premises shall not be used.
- (35) All electrical wiring in the premises shall be properly maintained and a report shall be obtained from an electrical engineer or a qualified professional at least once in every two years.
- (36) The extent of the premises reserved for customers shall not be used for any other use.
- (37) Every place, tools, utensils on the premises shall not be kept in a manner of spreading mosquitoes, any other larvae or insects.
- (38) A vector or infected person suffering from or suspected of having an infectious disease shall not be

employed on the premises and the licensee should be satisfied that such person is not employed.

*That the
license shall be
displayed*

14. A license issued under this by-law and the copies in three languages of this by-law shall be displayed in all licensed premises.

*Entering in to
a statement of
agreement*

15. When the Chairman has recommended that the licensee shall enter into a statement of agreement regarding the maintenance of the premises as instructed by the Medical Officer of Health, taking into account the possible causes of the spread of an epidemic in the area, the licensee shall enter into a statement of agreement with the Chairman and the Chairman shall send a copy to the Medical Officer of Health.

*Entering a
Permits and
obtaining
sample*

16. It is lawful for the Chairman or any other authorized Public Health Inspector or any other authorized officer to enter the premises at any reasonable time to obtain the necessary samples and to inspect the premises in accordance with the provisions of this by-law.

17.(1) In the event of a violation of the provisions of this By-Law or any other contrary to the provisions of this By-Law in a premises licensed under this By-Law, the Chairman shall hand over a notice to the licensee to be compliance with the by-law notifying a specified period not exceeding thirty days.

(2) Upon Submission of a notice under this section to the licensee, the Chairman may grant an additional period of time on a reasonable request to grant an additional period to act in accordance with the terms of the relevant notice. The period which is granted so shall be Subject to a maximum period of fourteen days in addition to the period specified in the first notice.

*Cancellation to
the license*

18. The Chairman shall cancel the relevant license in the event that the licensee fails to comply with the notice within the period of time or additional period given under section 16 above.

19. It is an offense to maintain a premises without a license obtained under this by-law or in violation of the provisions of the by-law and after being convicted by a Magistrate Court, he/she shall be liable to a penalty under Sub-section 122 (2) of the Pradeshiya Sabha Act No. 15 of 1987. Further, after being found guilty of such an offense, and in the event of further breach of the law after a notice has been given by the Chairman or an officer authorized by him, breach of the law must be Subject to an additional fine referred to in Sub-section 122 (2) of the old Pradeshiya Sabha Act No. 15 of 1987 for each day in which they continue the breach of the law.

Derfinition

20. Unless other meaning is required with regard to text, in this by-law;

"Pradeshiya Sabha" means .. Kalutara Pradeshiya Sabha,

"Chairman" means the person who holds the office of the Chairman of the Kalutara Pradeshiya Sabha at present or the person who perform the duties of that position,

"Medical Officer of Health" means the person holding the post for the Medical Officer of Health Division relevant to the kalutara Pradeshiya Sabha area.

"Authorized Officer" means any officer authorized by the Chairman in writing,

"Reasonable time" means the time engaged in a licensed activity or related work,

"Trade" means taking of something or a commodity out and selling it for money, or preparation for sale, or production for sale.

21. In the event of any inconsistency between the Sinhala, English and Tamil texts of this by-law the Sinhala text shall prevail *In consistency between texts*

Schedule
Application for a Trade License for the year.....

01. Name of the applicant: -
02. Personal Address: -
03. National Identity Card Number: -
04. Phone number: -
05. Nature of the business: -
06. Start year: -
07. Address of the place of business: -
08. Grama Niladhari Division: -
09. Assessment Number: -
10. If the business name registration has been obtained, its reference number: -
11. The manager or agent of the place of business,
I. Name and Personal Address: -
II. National Identity Card Number: -
III. Phone Number Mobile: - Fixed: -

I certify that the above information is true and correct.

I request that a business license to be issued to me for the year for the place where the industry, business mentioned above. I agree with the existing rules and regulations on this regard.

Date:-
Signature of the applicant

For office use
Revenue Inspector,
I kindly request you to provide me your observations and recommendations for the issuance of a license in relation to the application mentioned on the back.

Date:-
Secretary

Secretary,
I recommend/do not recommend granting the license

Date :-
Revenue Inspector

Medical Officer of Health,
I kindly request that your observations and recommendations for the issuance of a license in relation to the application mentioned on the back.

Date:-
Secretary

Medical Officer of Health,
Eligible in accordance with by-law and other rules and regulations. I will report to recommend the issuance of licenses.

Date :-
Public Health Inspector

Secretary,
I recommend / do not recommend issuing a license for the relevant place as per the above application. (If not recommended, state the reason).

Date:-
Medical Officer of Health

**BY-LAW
ON MOBILE TRADE THE KALUTHARA PRADESHIYA SABHA**

- | | | |
|---|-----|---|
| | 1. | This By-Law is enacted to make provisions for ancillary matters, including the supervision of traders engaged in mobile trade within the authority area of the Kalutara Pradeshiya Sabha. |
| <i>Short title</i> | 2. | This by-law is cited as the by-law on mobile trade of the Kalutara Pradeshiya Sabha. |
| | 3. | The Pradeshiya Sabha is vested with powers to formulate these by- laws by virtue of Section 126 (x) of Pradeshiya Sabha Act No. 150 of 1987 Read with the Sub section 122 of the said Act. |
| <i>Obtaining a License</i> | 4. | A person who sells any commodity including goods or food while visiting the Kalutara Pradeshiya Sabha area (hereinafter referred to as authority area) shall be obtained a license from the Chairman under this by-law. Obtaining a License |
| <i>Applying For a License</i> | 5. | (1) Every person applying for a license under section 4 above shall apply for it through an application form obtained from the Pradeshiya Sabha.
(2) The fee to be charged by the Pradeshiya sabha for issuing an application for a license under this by-law shall be as determined by the Council. |
| <i>Conditions to issue a License</i> | 6. | The Chairman shall not issue a license in this regard unless all the persons applying for a license under this by-law as a mobile trader have fulfilled the following:
(1) The identities of the trader or persons engaged in the mobile trade shall be verified in an acceptable manner.
(2) If a bicycle, tricycle, cart, or motor vehicle is used for commercial purposes, evidence must be provided that it was designed or prepared in such a way that it can be used for such purposes.
(3) If loudspeakers are used in the mobile trade, it should be ascertained that a license has been obtained from the relevant competent authority in the event that a relevant license is required.
(4) An outline of the areas intended for mobile trade within the authority area shall be provided.
(5) If cooked food is sold in the mobile trade, all persons involved in the handling the relevant food shall have a certificate of the Medical Officer of Health of the area in accordance with the format set out in this Schedule of the By-Laws. |
| <i>Fee for a License</i> | 7. | The fee to be charged for a license issued under this by-law shall be a proportion to the period for which the license is requested and the fee shall be determined and declared by the Sabha by a resolution. |
| | 8. | The maximum validity period of a license issued under this by-law shall expire on 31st December of the year in which the license is issued and the relevant license may be issued for a period for which the license is applied for in the calendar year. |
| | 9. | Every mobile trader shall keep the relevant license in his possession. |
| | 10. | A license issued under this by-law shall be valid only for the period of its issuance unless it is revoked in accordance with the provisions of this by-law. |
| <i>Conditions Applicable to a License</i> | 11. | All persons licensed under this by-law shall conduct trade in accordance with the following conditions.
(1) There shall be no noise or air pollution to the public due to the mobile trade or its publicity. |

- (2) (i) Any waste generated during the mobile trade shall not be disposed to the surrounding environment; all waste should be handed over in accordance with the waste management program implemented by the Pradeshiya Sabha in the area.
- (ii) If the licensee manages the waste generated by himself, a certificate in that regard shall be Submitted and consent obtained from the Public Health Inspector of the authority area.
- (3) The trade shall be in accordance with the instructions and criteria put in place by the Medical Officer of Health or Chairman on the advice of the Medical Officer of Health in the event that there is a risk of an epidemic in the whole or part of the territory of Sri Lanka.
- (4) The license issued under this by-law shall be kept in the possession of the trader at all times and shall be Submitted for inspection at any time upon request by the Chairman or an authorized officer, a police officer.
- (5) In the event of any outbreak of any contagious disease or contagious disease relating to the regulations made under the Quarantine and Prevention Ordinance and any part of Sri Lanka within or within the authority area of Sri Lanka, the Medical Officer of Health shall be notified in that regard. The licensee must act in accordance with the instructions and the licensee must be satisfied that his employees are acting accordingly.
- (6) 1.If cooked food is sold under the mobile trade,
 - (i) All utensils and tools used for selling food shall be made of a Substance which does not emit any toxic Substance, odor or taste. Such equipment and tools shall be made of non-abrasive and non-corrosive materials and shall be made of materials that are resistant to continuous cleaning and disinfection.
 - (ii) All equipment and tools shall be designed in such a manner that antiseptics can be used for easy cleaning to prevent unhygienic.
 - (iii) If frozen material is sold, it shall be fitted with compatible storage and temperature measuring or temperature recording equipment.
 - (iv) Separate enclosed waste bins shall be maintained for the collection of waste accumulated during trade. However, when disposing of items such as face masks, one should keep sealed containers so that they do not mix with other waste.
 - (v) All equipment and tools used shall be in good condition.
 - (vi) Packaging should be designed and maintained to prevent food contamination and to prevent food from pests during the sale.
 - (vii) Whatever equipment is used to serve food to the consumer they shall not be prepared in manner that cannot be reused.
 - (viii) Food kept for sale shall not be contaminated in any way.
 - (ix) Catching food shall not be done using money and a separate person should be employed for money transactions.
 - (x) Metal grip should be used to hold food.
- (7) The mobile trade shall not disturb the movement of passengers or vehicles in any way.
- (8) Trade shall be conducted only within a territory valid for the license and in no way exceed the permitted period specified in the license.
- (9) A person suffering from or infecting or infecting any person with any form of contagious disease shall not engage in trade or trade-related assistance and shall maintain the sanitized material to be utilized when necessary.
- (10) The meat of any animal Subject to the Slaughter Ordinance shall not be sold under the mobile Trade.
- (11) No mobile trader should stay in one place for long periods of time.

12. Even if there is a license issued under this by-law, the Chairman shall, on the advice of the Medical Officer of Health, determine in or within the authority area or any part of it, if there is a risk of contagious or contagious disease spreading.

- (i) The activity may be permanently prohibited under a license issued.
- (ii) Areas of trade may be restricted under the license issued.
- (iii) Operation under the license may be suspended.

Obtaining samples

13. It is legal for the Chairman or an authorized officer to obtain a sample of a food, commodity or item sold by a mobile trader at its price, and no licensee shall refuse or interfere with it.

14. If a person engages in mobile trade violates the provisions of this By-Laws and disregards the instructions given to comply with the By-Laws, it shall be lawful for the Chairman to revoke a license issued by Chairman under Article 3 of this By-Laws.

*Penalty
for violation*

15. It is an offense to engage in the mobile trade without obtaining a license under this by-law and to engage in the trade without a valid license, and after being convicted by a Magistrate's Court, he shall be Subjected to a penalty under Sub-section 122 (2) of the Pradeshiya Sabha Act No. 150 of 1987

Definitions

16. Unless a different meaning is required in relation to the terms of this by- law, this by-law,

"Pradeshiya Sabha" means Kalutara Pradeshiya Sabha ,

"Chairman" means the person who holds the post of Chairman of the Pradeshiya Sabha at present or the person who performs the function of that post.

A "Medical Officer of Health" is a person who holds that post in a particular Medical Officer of Health division within the authority area of the Pradeshiya Sabha at that time.

A "Public Health Inspector" is a person who holds the post of a Public Health Inspector in a division of the Pradeshiya Sabha area at that time.

"Contamination" refers to the entry or formation of a palatable Substance into a food or food background
"Food hygiene" includes all the conditions, steps and practice necessary to ensure the safety and suitability of food at all stages of the food chain;

"Mobile trade" means the trade of goods, food, or any other commodity by oneself or with the help of an animal, or by car, cart, bicycle, or tricycle.

"Motor vehicle" also means the definition given in the Motor Vehicles Ordinance.

*Inconsistency
Between texts*

17. If there is a discrepancy between the Sinhala, Tamil and English texts in this by-law then the Sinhala text will prevail.

First Schedule

Application for Trade License for the year.....

- 01. Name of the applicant: -
- 02. Personal Address: -
- 03. National Identity Card Number: -
- 04. Telephone Number: -
- 05. Nature of Trade: -
- 06. Grama Niladhari Division: -

I do hereby certify that the above information is true and correct.

I request that a trade license be issued to me for the year for the industry and place of trade mentioned above. I agree with the existing rules on this.

Date:-

.....
Signature of the applicant

For office use

Revenue Inspector,

I kindly request you to give me your observations and recommendations as soon as possible for the issuance of a license in relation to the application mentioned on the back page

Date:-

.....
Secretary

Secretary,

I recommend / not recommend granting the license.

Date :-

.....
Revenue Inspector

Medical officer of Health,

I kindly request you to give me your observations and recommendations as soon as possible for the issuance of a license in relation to the application mentioned on the back page

Date:-

.....
Secretary

Medical Officer of Health,

Eligible in accordance with by - laws and other rules and regulations. I recommend the issuance of licenses.

Date :-

.....
Public Health Inspector

Secretary,

I/ I do not recommend issuing a permit for the relevant place as per the above application.
(If not recommended, state the reason)

Medical Officer of Health

Schedule

Photo

Medical certificate issued to Mobile traders in thePradeshiya sabha area

I..... Medical Officer of Health area do hereby certify that Mr. / Mrs..... bearer of National Identity Card No. was physically examined after a proper laboratory test revealed that he / she has not exposed an infectious disease or any illness that could pose a future threat to food safety. I also certify that he / she has suffered from skin infections, ulcers or diarrhea.

Date :-

.....
Medical Officer of Health
(Official seal)

BY-LAW REALATING TO HOTELS

- | | | |
|---------------------------|-----|--|
| | 1. | This by-law is enacted to regulate, supervise, inspect and control the operation of hotels within the authority area of the Kaluthara pradeshiya Sabha. |
| Short title. | 2. | This by-law is cited as the By-Law Relating to Hotels of the Kalutara pradeshiya Sabha |
| | 3. | The Pradeshiya Sabha is vested with powers to formulate these by- laws by virtue of Section 122 of Pradeshiya Sabha Act No. 15 of 1987, read with the Sub-Section 126(ix) of the said Act. |
| | 4. | No person within the jurisdiction of the Kalutara Pradeshiya Sabha (hereinafter referred to as the authority area) shall maintain a hotel (hereinafter referred to as the premises in some places) except under a license obtained from the Chairman under this by-law. |
| Applying for a License. | 5. | All persons applying for a license under this by-law shall apply for it under an application prepared in accordance with the schedule published in this by-law. |
| | 6. | Submission of an application under the above section 5 can be made by fulfilling the requirements and submitting an application to the Chairman by registered post, handing over in hand or by e-mail to the extent permitted by the Council. |
| Conditions for a license. | 7. | Any person applying for a license under this by-law shall not be issued a license by the Chairman unless the following conditions are met herein. |
| | (1) | All constructions relating to the premises shall be constructions duly made in accordance with the provisions of the Urban Development Authority Act No. 41 of 1978 or the Housing and Urban Development Ordinance and; <p>(A) The material used in all constructions shall not emit toxic substances and shall not emit toxic gases, and all constructions shall be made up of surfaces where organisms cannot be easily retained.</p> <p>(B) The internal layout shall be designed with adequate space to enable the service to be performed without interruption.</p> <p>(C) Shall be designed with a protective layout to prevent entry of contamination substances into food raw material and cooked food.</p> <p>(D) Shall be designed to check the hygienic conditions of the internal foods of the premises.</p> <p>(E) Things disposed under the internal processing activities of the premises shall be arranged with references that will not flow back in any way.</p> |
| | (2) | In the food processing area of the premises, |

- (A) Floor and walls shall be made of washable, non-slip and non-absorbent materials.
 - (B) All surfaces shall be inactive for easily cleaned detergents and disinfectants.
 - (C) The ceiling shall be constructed to minimize condensation and to prevent fungus formation and cracking.
 - (D) If there are any windows and other openings, they shall be shielded with covers prevent entering insects.
 - (E) Absorbent fans shall be installed to allow easy flow of air from outside and to flow exhaust air out.
- (3) For the employees on the premises;
- (A) If working as residents, rooms with at least 4 square meters of space per person shall be provided with adequate space outside the relevant section for customer service.
 - (B) Toilet facilities shall be provided with adequate sanitation facilities and shall be separated as males and females.
 - (C) The toilets and bathrooms provided shall be of permanent construction and shall be well-constructed and built outside the premises for the customers.
- (4) Premises shall have fire safety certificates as applicable and fire safety facilities shall be provided in the premises as specified.
- (5) All buildings on the premises shall be constructed to allow access to persons with disabilities and special needs.
- (6) Waste generated in the premises shall be disposed of in accordance with the waste management program implemented by the Pradeshiya Sabha and if the license holder himself disposes of the waste in the premises, the method followed shall be a method approved by the Public Health Inspector.
- (7) When entering the premises, a specific procedure shall be maintained to verify the identity of the entrants and to record it.
- (8) Adequate parking space shall be maintained in or near the premises for visitors to the premises.
- (9) Boards shall be fixed so that customers can know about the facilities and services provided on the premises, and if there is a registered business name or a corporate name registered with the Sri Lanka Tourism Authority, the relevant registration number shall be prominently displayed.
- (10) The interior design of the premises shall be designed in a way that is more customer friendly and

pleasing, and the constructions and fixtures made shall not obstruct to the safety of the customer in any way.

- (11) Staff employed or to be employed to serve customers on the premises shall be persons trained by reputed institutions to provide a professional service.

Acting according
to an application

8. Within fourteen days of receipt of the application for a license to be issued under this by-law, the Chairman;

- (1) Shall issue a license pertaining to the premises to the applicant when the conditions under Section 7 are complied with.

- (2) Shall reject the relevant application with reasons if the conditions under Section 7 are not complied with.

9. (1) The fees to be charged for a license issued under this by-law shall be the fees to be decided and declared by the Council subject to the provisions of the Basic Law.

- (2) It shall be lawful for the Council to decide and charge an inspection fee for site inspections related to the issuance of a license.

10. If a license issued under this by-law is not previously cancelled in accordance with the provisions of this by-law, it shall be valid until December thirty first of the year in which the license applies.

Conditions applicable
to a license

11. All persons receives a license under this by-law shall act in accordance with the following conditions herein.

- (1) If the license holder is not the manager of the institution, the identity information requested by the Chairman regarding the manager shall be provided, and it shall be provided so whenever changed.

- (2) Loudspeakers used for festive occasions, parties or other activities on the premises shall be maintained in accordance with environmental regulations and terms so as not to disturb others by playing musical instruments.

- (3) Adequate parking facilities shall be maintained so that no vehicles come to the premises are parked on public access.

- (4) Name, address, identity card number and contact numbers related to all persons comes to stay, and if there are information to be maintained specified from time to time by the Director of Health Services or the Medical Officer of Health of the authority area or the Chairman regarding the persons anticipating services under the health reasons in the authority area all such information shall be documented and maintained.

- (5) If there are any terms prescribed by the Chairman on the advice of the Medical Officer of Health

time to time in order to control an epidemic situation declared throughout Sri Lanka or in any part of the country or relevant to the authority area or in any case where an epidemic has been declared applicable under the regulations made under Quarantine and Prevention of Diseases Ordinance, the premises shall be maintained subject to all such terms.

- (6) Room for accommodation, all spaces for accommodators use, latrines and bathrooms shall be disinfected before being used by another person after being used by one person and latrines and bathrooms shall be disinfected daily even while customers are present.
- (7) Whenever there enough facts to suspect that there is a risk of an epidemic in the authority area, the body temperature of everyone who comes to stay on the premises shall be measured before entering the premises to check whether the body temperature is within the specific range by a person who is specifically assigned for that purpose and everyone's hands and feet shall be cleaned with disinfectants before entering the premises.
- (8) All reusable items such as pillowcases, bed sheets, blankets, towels etc., which kept in each room for the use of the customers shall not be used for another customer without washing and cleaning.
- (9) By no means shall not allow more than one adult in a single room, more than two adults in a Single room, more than three adults in a triple room, or exceeding the maximum number of persons when four square meters per person is considered as the minimum space when the room can be accommodated by a group, and those over the age of five years shall be considered as adults for the purpose in this subsection.
- (10) Beds inside a room shall be maintained taking into account the extent specified in subsection (9) above.
- (11) Under no circumstances shall anyone be permitted to lodge with a child except by a parent or legal guardian.
- (12) No person shall be allowed to sleep in an open area except the rooms on the premises.
- (13) No person shall be allowed to stay on the premises if they do not agree to verify their identity or are unable to verify their identity, and the information regarding all persons staying shall be a statement under their signature.
- (14) When it is not an air-conditioned room, all rooms shall be well ventilated and allowed to be used after leaving the doors and windows open for some time.
- (15) When a regulation under the Quarantine and Prevention of Diseases Ordinance comes into force in respect of any epidemic situation in the authority area, facilities shall be provided the use the rooms in accordance with all the provisions of that regulation.
- (16) If there are any terms prescribed by the Chairman on the advice of the Medical Officer of Health time to time in order to control an epidemic situation declared throughout Sri Lanka or in any part

of the country or relevant to the authority area or in any case where an epidemic has been declared applicable under the Quarantine and Prevention of Diseases Ordinance or regulations made under it, the premises shall be maintained subject to all such terms.

- (17) All persons employed on the premises shall act in accordance with all guidelines made by the Chairman on the advice of the Medical Officer of Health in any case where a disease is declared applicable under the orders made under the Quarantine and Prevention of Disease Ordinance.
- (18) Whenever there is a suspicion of an epidemic in the authority area, relating to all persons who come to the premises expecting services, services shall not be provided unless they visit the premises in accordance with the relevant health guidelines issued.
- (19) When there is an epidemic in the authority area or risk of an epidemic, the health safety instructions prescribed by the Director General of Health Services or the Medical Officer of Health or the Chairman as per their instructions shall be properly implemented in the premises in order to protect from it and the license holder shall be satisfied that it is being so.
- (20) All drains in the premises shall be easily drained and the effluent and sewage shall be directed to the septic tank, soakage pit or to the central treatment unit according to the approved procedures and the necessary action shall be taken to prevent contamination.
- (21) All latrines and hand washing places on the premises shall be cleaned frequently with disinfectant and appropriate method shall be maintained to ensure that all of them are being so.
- (22) The interior floor of the premises shall be arranged in such a way that it does not slip easily, and if it is somewhat easier to do so during the cleaning process boards mentioning on that regard shall be placed in such a place visible to the customers.
- (23) Drains in the premises shall be made as not to retain water and shall be cleaned with disinfectants twice daily.
- (24) No drain or sewage pipe in the premises shall be directed in any way to a public drain of the road or outside area.
- (25) The premises shall be maintained in such a way that there is no external odor due to the discharge of wastewater or discharge of waste.
- (26) Adequate facilities shall be in place to regulate the temperature required for cooking and refrigeration of food, and records shall be maintained that it is being so.
- (27) All equipment and utensils used for food preparation shall be maintained in accordance with the following requirements.
 - (A) All equipment and utensils used in food preparation shall be made of a non-absorbent material that does not emit any toxins, tastes or odors and shall be made of stainless material.

- (B) All equipment and utensils shall be of such a nature as to be easily cleaned.
- (C) Containers used for waste disposal shall be made of metal or non-leaking materials and shall have lids.
- (D) All equipment and utensil maintained shall be of a suitable condition to be used.
- (28) Containers used for serving food shall be such that they can be served in a way that does not harm the taste of the food.
- (29) Premises shall have separate refrigeration facilities to store things used for cooking food and cooked food or similar.
- (30) Fruits and vegetables used in food preparation shall be thoroughly washed, cleaned and used.
- (31) Water used in the premises shall be kept in non-hazardous containers free from contamination.
- (32) The ice used in the premises shall be made from drinking water.
- (33) Water pipes in the premises shall be maintained so that they can be distinguished from any other pipeline.
- (34) A specific internal arrangement shall be in place to ensure that every food item cooked on the premises is delivered to customers without hazard, and that specifically assigned persons shall be employed to regulate it.
- (35) Meat and fish brought in for food shall be stored in a separate refrigerator on the premises and shall always be kept at a temperature of two degrees Celsius until used without contamination.
- (36) All persons involved in serving, handling or assembling food on the premises;
- (A) Shall not touch or contact food with their open hands or fingers
- (B) Utensils and gloves used for handling food shall be a favorable use for food.
- (C) A clean towel shall be used to wipe hands.
- (D) The bottom of a used plate, cup or other container shall always be kept out of contact with any food.
- (E) All utensils used for food serving shall be kept clean and in separate containers.
- (F) Employees shall work to handle, assemble and serve food in such a way that their activity,

usage does not cause food contamination or microbial proliferation in any way.

- (37) When the Chairman has declared a disease condition applicable under the Quarantine and Prevention of Disease Ordinance in the authority area or under the orders made under it or has declared that there is a risk of any epidemic disease in the authority area as per the instructions of the Medical Officer of Health all persons involved in preparing, handling, serving, or assembling food on the premises shall maintain the premises in accordance with the directives made by the Medical Officer of Health or a Public Health Inspector or by the Chairman as per their instructions in addition to any other provisions of this By-Law.
- (38) Tables for serving and consuming food on the premises shall be in very clean condition and disinfected after each serve and consumption and the towels used for cleaning shall be of clean condition.
- (39) Surfaces that are touched by the customers on the premises shall be cleaned frequently with disinfectants.
- (40) Adequate facilities for hand washing and hand drying with disinfectant shall be provided in the processing area of the premises and in the food consumption areas of the premises and adequate lighting shall be maintained in the premises.
- (41) Prior to disposal of waste collected in the premises, they shall be maintained in such a way that they do not affect the things used on the premises in any way and does not cause contamination of food.
- (42) Pets such as dogs and cats shall not be kept on the premises in any way.
- (43) Employees working on the premises shall have undergone a training in food hygiene and shall be subjected to medical checkups within a period prescribed by the Medical Officer of Health to check that they are in proper health condition. Relevant records shall also be maintained so that they can be inspected at any time within the premises. Also the health check-ups on them shall be both clinical and epidemiological.
- (44) A health monitoring system shall be set up for the employees working on the premises and a process shall be put in place to get the health advice they need.
- (45) The waste generated on the premises shall be disposed in accordance with the waste management program implemented by the Council and in accordance with the written rules applicable to it.
- (46) If the waste generated on the premises is managed by the license holder himself, the Public Health Inspector in charge of the relevant area shall be informed and shall act in accordance with the instructions given by him.
- (47) Adequate first aid facilities shall be provided on the premises.

- (48) When instructions have been given to use gloves or masks in the community in the event of an epidemic, if any person entering the premises disposes the mask or gloves they are wearing on the premises, the disposable mask or gloves shall be disposed to closed containers that are kept on the premises specifically for that purpose, and such waste shall be disposed in accordance with the waste management program and instructions implemented by the Council without mixing with other wastes.
 - (49) Every person who handle food on the premises shall maintain maximum hygiene during handling of food and shall always wear hats, gloves, masks, shoes and appropriate hygienic clothing.
 - (50) A person suffering from any infectious disease or suspected to be infected with such a disease or a vector of such a disease or a person infected with wounds, skin infections or any other infectious disease shall not be employed on the premises.
 - (51) Every person involved in handling of food on the event rooms of the premises shall not engage in activities such as smoking, spitting, coughing, sneezing, or touching the nose, which can cause food contamination.
 - (52) If there are enough facts to think that any person is suffering from an infectious disease or an epidemic he shall not be entered to the festive occasions on the premises.
 - (53) In the event of any person visits the event rooms of the premises for consumption of food or employee serving on the premises contracted an infectious, transmittable or skin disease, the license holder shall notify the Medical Officer of Health and upon such notification, all persons on the premises shall act in accordance with the quarantine instructions given by the Medical Officer of Health or a Public Health Inspector authorized by him.
 - (54) When the are Subjected of the quarantine process the Premises event rooms of the premises shall not be used for any festive occasions until a certificate has been issued by the Medical Officer of Health or the Public Health Inspector stating that the quarantine period is over and the premises have been completely disinfected.
 - (55) Health care measures that are implemented on the event rooms of the premises shall be prominently displayed on the premises in such a way that everyone who handles and consumes food in the premises can learn about the relevant instructions and shall acted according to them.
 - (56) The license holder shall have provided all information regarding the employees working on the premises to the Chairman.
12. Taking into account the possible causes of the spread of an epidemic in the area, when the Chairman has prescribed that the license holder shall enter into a statement of agreement regarding the maintenance of the premises as instructed by the Medical Officer of Health, the license holder shall enter into a statement of agreement with the Chairman, and the Chairman shall send a copy of it to the Medical Officer of Health.

	13.	In the event of an order is in effect under the Quarantine and Prevention of Diseases Ordinance relating to any epidemic situation pertaining to the authority area, the premises shall be maintained in accordance with all the terms of that Order.
Power to enter the premises	14.	It is lawful for a Public Health Inspector or any other officer authorized by the Chairman to enter the premises at any reasonable time to inspect the premises whether it is in accordance with the provisions of this by-law and obtain the required samples.
Cancellation of the license	15.(1)	In the event that a premises licensed under this by-law violates the provisions of this by-law or acts against it, the Chairman shall submit a notice to the license holder informing a specific time period not more than thirty days to be in compliance with the by-law.
	(2)	After submission of a notice under this Section to the license holder, the Chairman may grant an additional period of time upon a reasonable request to further extend the time period to be in accordance with the terms of the relevant notice. The period granted so shall be subject to a maximum period of fourteen days in addition to the period specified in the first notice.
	16.	The Chairman shall cancel the relevant license in the event that the license holder neglect being complied with the notice within the period of time or additional period given under Section 15 above.
Penalty	17.	It is an offense to maintain a premises without a license to be obtained under this by-law or in violation of the provisions of this by-law and after being convicted by a Magistrate Court for that offense, shall be subject to a penalty under Subsection 122 (2) of the Pradeshiya Sabha Act No. 15 of 1987. Further, after being found guilty of such an offense, if the violation continues even after the notice has been given by the Chairman or an officer authorized by him, he shall be subject to an additional penalty referred to in the aforesaid subsection 122 (2) of the Pradeshiya Sabha Act No. 15 of 1987 for each day of such violation.
Definitions	18.	Unless other meaning is required with regard to text, in this by-law, “Council” means Kalutara Pradeshiya Sabha, “Chairman” means the person who hold the office of the Chairman of the Kalutara Pradeshiya Sabha at that time or the person who performs the duties of that position, “Medical Officer of Health” means the person who holds the office of the Medical Officer of Health Division relevant to the authority area of the Pradeshiya Sabha, “Public Health Inspector” means a person who holds the office of Public Health Inspector attached to the Pradeshiya Sabha or the office of the Medical Officer of Health relevant to the authority area of the Pradeshiya Sabha, “License holder” means an institution, person or an individual who has obtained a license under this by-law,

"Authorized Officer" means the officer authorized by the Chairman of the Pradeshiya Sabha at that time,

"Contamination" means the entry or occurrence of contamination substance in a food,

"Disinfectants" means reducing the amount of microorganisms in the environment by chemicals or physical means to a state that do not reduce the safety or suitability of the food,

"Food hygiene" means all the conditions, steps and practices to ensure the safety and suitability of food at all stages in the food chain,

"Hazards" means a biological, chemical, or condition that is likely to cause adverse health effects,

"Food safety" means the responsibility not cause any harm to the customer during preparing, processing, selling, storing, transporting food or while eating,

"Reasonable time" means any time engaged in a licensed activity or related work,

"Basic Law" means the Pradeshiya Sabha Act No. 15 of 1987

19. If there is any inconsistency between the Sinhala, Tamil and English texts of this by-law, the Sinhala text shall prevail.

Inconsistency
between texts

Schedule

Application to obtain a license to operate a hotel for the year.....

01. Name of the applicant: -
02. Personal Address: -
03. National Identity Card Number: -
04. Phone number: -
05. Start year: -
06. Address of the place of business: -
07. Grama Niladhari Division: -
08. Assessment Number: -
09. If the business name registration has been obtained, its reference number: -
10. Information of the manager or agent of the business place,
 - I. Name and personal address
 - II. National Identity Card Number
 - III. Telephone Number Mobile: - Fixed: -
11. Number and date of the construction approval plan relevant to the business: -
(Copies should be attached)

I certify that the above information is true and correct.

Date:-

.....
Signature of the applicant

For office use
Revenue Inspector,

Kindly request to provide you with your observations and recommendations promptly for the issuance of a license in respect of the application mentioned in the back.

Date:-

.....
Secretary

Secretary,

Recommended/Not recommended issuing license.

Date :-

.....
Revenue Inspector

Medical Officer of Health,

Kindly request that your observations and recommendations promptly for the issuance of a license in respect of the application mentioned in the back.

Date :-

.....
Secretary

Medical Officer of Health,

Compliance with By-Laws and other rules and regulations. I will report for the recommendation of issuing a license.

Date :-

.....
Public Health Inspector

Secretary,

I recommend/not recommend the issuance of a license for the relevant place as per above application.
(If not recommended, state the reason.)

Date :-

.....
Medical Officer of Health

BY-LAW ON RESTAURANTS OF THE PRADESHIYA SABHA

1. This by-law will be enacted to regularize and monitor the restaurants, hotels and canteens which are preparing, selling and provide dine in facilities of foods such as bakery and other food productions as cooked food, tea, coffee within the Kaluthara. Pradeshiya Sabha area.
2. This by-law is called the By-Law on Restaurants of the Kaluthara. Pradeshiya Sabha. Short Title
3. The Pradeshiya Sabha is vested with powers to formulate these by- laws by virtue of Section 126(IX) of Pradeshiya Sabha Act No.15 of 1987 read with the Sub-Section 122 of the said Act.
4. Anyone within the territory of the Kaluthara Pradeshiya Sabha (hereinafter referred to as the territory) shall not maintain restaurants, hotels, canteens and cafeterias (hereinafter referred to as premises) which are preparing, selling and provide dine in facilities of foods such as bakery and other food productions as cooked food, tea, coffee except under a license obtained from the Chairman under this by-law. That a license should be obtained
5. All persons applying for a license under this by-law shall apply for it under an application form prepared in accordance with the Schedule of this by-law. Applying for a License
6. Submission of an application under the above clause may be made by completing the relevant requirements and by submitting through registered post, by hand, or by e-mail to the extent permitted by the Council.
7. Anyone applying for a license under this by-law must have fulfilled the following conditions. Conditions for a license
 - (1) All constructions related to the premises should be constructions as per the plan approved under the Urban Development Authority Act No. 41 of 1978 or under the Housing and Urban Development Ordinance and,
 - (A) The material used in all constructions shall be prepared in such a way that the toxic material does not emit toxins and does not emit toxic gases and all surfaces should be constructed not to be easily retained by organisms.
 - (B) The internal layout should be designed with adequate space to enable the service to be performed without interruption.
 - (C) The food raw material and cooked food should be stored in a space designed with a safe preparation to prevent the ingress of toxins.
 - (D) The premises shall be designed to check the hygienic conditions of the internal food.

(E) Disposal under the internal processing activities of the premises shall be arranged with references that will not be returned in any way.

(2) At the food processing area on the premises,

(A) Floors and walls shall be made of washable, non-slip and water-repellent material.

(B) All surfaces shall be free from detergents and disinfectants which can be easily cleaned.

(C) The ceiling shall be constructed to minimize condensation and to prevent fungus formation and cracking.

(D) If there are windows and other openings, they should be covered with insect repellent.

(E) Absorbent fans shall be placed for easy flow of outside air and exhaust air.

(3) With respect to the catering area on the premises,

(A) Adequate space should be provided for customers to sit individually and in groups.

(B) When the relevant part of the catering area is an open space to the environment, it should be well ventilated and inaccessible to birds and other animals.

(C) Specific toilets shall be constructed for customers and shall be located at a sufficient distance and in other directions with automatic closing doors.

(D) If the catering area is an enclosed space, air conditioning or ventilation should be provided and fans as well as absorbing fans should be installed.

(E) Adequate space should be provided for services to move food here and there.

(F) Hand washing facilities should be provided before and after meals and promotional advertisements and guidelines should be affixed.

(G) Tables and chairs should be made of easy-to-clean and waterproof material.

(4) Ensure that air conditioners operate at adequate temperatures when adequate ventilation or air conditioning is provided in the premises, and that all air conditioning systems should be airtight.

(5) For those working on the premises,

(A) If they are residing, the accommodation should have adequate sanitary facilities and that place should be in a place separate from the food preparation, food production or raw material storage area.

(B) A minimum of four square meters of space should be reserved for one person to sleep while being a resident employee.

(C) Separate toilet and bathroom facilities should be provided for both men and women.

(6) The internal structure of the premises should be designed so that customers can order food with

adequate space with physical distance when required.

- (7) Facilities should be provided for persons with disabilities and persons with special needs to enter in accordance with the prescribed standards.
 - (8) There should be adequate parking facilities for customers.
 - (9) Automatic generators and water storage facilities should be available in the event of a power outage of sufficient capacity to be utilized in the event of an emergency power outage or water connection failure.
 - (10) Internal drainage and effluent discharge from the premises shall be directed to a ditch or suction pit, exceeding 15.25 m from the water source.
8. Within fourteen days of receipt of the application for a license under this by-law the Chairman;
- (1) Shall issue a license for the premises to the applicant in accordance with the information contained in Article 6. Issuing a license
 - (2) If the conditions Mentioned in Article 6 are not complied with, the relevant application should be rejected with reason.
9. (1) The fees to be charged for a license issued under this by-law shall be the fees to be determined and declared annually by the Council subject to the provisions of the Basic Law.
- (2) It should be lawful for the council to decide and charge an inspection fee for site inspections in connection with the issuance of a license Fees for a license
Testing fees
10. If a license issued under this by-law is not previously cancelled in accordance with the provisions of this by-law, it shall be valid until December 31st of the year in which the license applies. Validity period
11. All persons licensed under this by-law shall act in accordance with the following conditions Conditions applicable to a license
- (1) If there is a rule which is imposed by the Chairman from time to time under the instructions of the Medical Officer of Health to control any epidemic situation that has been declared throughout Sri Lanka or in any part of the country or in any part of the territory or in any case where an epidemic has been declared under the regulations made under the Quarantine and Prevention of Diseases Ordinance, the premises shall be maintained subject to each such rule
 - (2) Every person employed on the premises shall, in accordance with the regulations made under the Quarantine and Prevention of Diseases Ordinance, act in accordance with all orders made by the Chairman on the advice of the Medical Officer of Health in any case where an epidemic is declared.

- (3) Whenever there is a suspicion of an epidemic in the area of territory, service should not be provided to all persons who visit the premises seeking services unless it is in accordance with the relevant health instructions issued.
- (4) Health safety instructions imposed by the Director General of Health Services or the Medical Officer of Health or by the Chairman as per their instructions in the event of an epidemic or risk of an epidemic in the area of territory, should be implemented and the licensee should be satisfied of doing so.
- (5) All drains in the premises should be maintained in such a way that they can be easily drained, and waste water, sewage discharged from the premises should be diverted to the soakage pits, septic tank or central treatment unit according to the approved methods and necessary measures should be taken to prevent contamination.
- (6) All toilets and washrooms on the premises should be cleaned regularly with disinfectant and proper arrangements should be made to ensure that they are being done so.
- (7) The interior floor of the premises should be arranged in such a way that it does not slip easily, and in case of any inconvenience during cleaning, sign boards should be kept in that place so that the customers can see them.
- (8) Drainage system should be free of retention of water and cleaned twice daily with disinfectants.
- (9) No drains, sewage pipes, or culverts on the premises should be routed to any public drain or outlying area.
- (10) The premises should be maintained in such a way that there is no external odor due to the discharge of wastewater or discharge of waste.
- (11) Adequate facilities should be in place to regulate the temperature required for cooking and refrigeration, and records should be maintained to that effect.
- (12) All equipment and utensils used for food preparation should be maintained in accordance with the following requirements.
 - (A) All utensils and equipment used in food preparation shall be made of non-absorbent materials that do not emit any toxic substances, flavors or odors and should be made of stainless materials.
 - (B) All equipment and tools should be of a nature as to be easily cleaned.
 - (C) Containers used for disposal of waste should be made of metal or non-corrosive materials with lids.
 - (D) All equipment, tool maintained must be of a condition suitable to be used.

- (13) If food is to be distributed outside the premises during production, there must be a designated area for it.
- (14) Containers used for food distribution should be such that they can be distributed in a manner that does not harm the taste of the food.
- (15) Premises should have separate refrigeration facilities for storing goods used for food preparation and cooked food or similar.
- (16) Premises should have water storage facilities and the relevant containers should be stainless.
- (17) Fruits and vegetables used in food preparation should be thoroughly washed, cleaned and used.
- (18) Water used in the premises should be kept in non-hazardous containers free from being polluted.
- (19) The ice used in the premises should be made from drinking water.
- (20) Pipelines carrying water within the premises should be maintained so that they can be separately identified from any other pipeline.
- (21) A specific internal arrangement should be in place to ensure that all cooked food on the premises is delivered to the lodgers without hazard, and that persons with specific tasks should be employed to regulate it.
- (22) Fish and meat brought in for serving should be stored in a separate refrigerator on the premises and should always be kept at a temperature of two degrees without being contaminated Celsius until used.
- (23) Relevant prices for all food items for sale on-premises must be displayed under the sample or otherwise.
- (24) If an epidemic has been declared under the Quarantine and Prevention of Diseases Ordinance within the territory and regulations applicable to it or if there is a requirement that all persons in the territory should wear masks when entering the society due to the risk of any epidemic disease, no person without wearing a mask should be allowed to enter the premises for dealings.
- (25) All food items kept on the premises must be kept safe from contact with anyone outside the premises and the ordered food must be served after the food has been ordered. No food or leftovers so served should be kept for resale, and if there are any leftovers of the served food, they should be given to the person who ordered it to be taken.
- (26) Food for sale on the premises should not be kept in such a way as to cause contamination, and all activities such as serving food, packing for transportation, etc. should be carried out in a proper manner using appropriate gloves.
- (27) By everyone involved in serving, consuming, or packing food on the premises;
(A) Should not touch food with your hands or fingers openly.

- (B) Money should not be used while engaging in any form of service.
 - (C) Utensils and gloves used for touching food should be in a good condition to be used.
 - (D) A clean towel should be used to wipe both hands.
 - (E) The bottom of a used cup, plate or other container should always be kept out of contact with any food.
 - (F) All utensils used for food serving should be kept clean and in separate containers.
 - (G) Employees should work to ensure that any of their work or a container will not in any way cause food contamination or germs to be spread in a container.
 - (H) What is taken for food wrapping should not be a source of food poisoning in any way.
- (28) If there is a rule which is imposed by the Chairman under the instructions of the Medical Officer of Health to control any epidemic situation that has been declared in the territory or in any case where an epidemic has been declared under the regulations made under the Quarantine and Prevention of Diseases Ordinance, all persons engaged preparation, consumption, serving and packing of food should maintain the premises in accordance with the orders of the Chairman issued under the instructions of the Medical Officer of Health or the Medical Officer of Health or the Public Health Inspector , in addition to the provisions of this By-Laws
- (29) Facilities should be provided to pre-ordered and take -away food as much as possible, a separate window on the premises should be maintained for that purpose and instead of placing menus on tables, they should be placed so that the recipes are displayed on a screen as much as possible.
- (30) (A) Any work related to the production of food in the premises shall not be carried out in such a manner as to open it to a public road or public space, or to open air from such a public road or open space to the public, and food should be prepared in a specially enclosed space within the premises.
- (B) Chimneys and suction fans shall be installed so that hot air and steam generated in the enclosed space for food production can flow easily.
- (C) Noise from any approved activity in food production shall be in such a manner as not to disturb the public or consumers in any way.
- (31) Tables for serving and dine in on the premises should be kept very clean and disinfected after each serving and use and the towels used should be kept clean.
- (32) Surfaces in the premises that come in contact with customers should be cleaned regularly with disinfectant.

- (33) All cooked food that can be easily contaminated on the premises should be kept at a temperature not exceeding four degrees Celsius or not less than sixty degrees Celsius except in the following cases. Occasions where this is not applicable should be as follows.
- (A) In cases where the food is not exposed or displayed for sale for a whole time of more than two hours or
- (B) When the preparation and presentation are to be made within an short period of time.
- (34) All cooked food as pastries, patties, savories, pizza and similar food contain meat or fish that is normally sold on the premises and consumed in the condition which the food is sold should be kept in containers with covers.
- (35) Milk for use on the premises should be kept in a refrigerator at a temperature not exceeding seven degrees Celsius.
- (36) Sufficient hand washing facilities with sanitizers and hand drying facilities should be provided in the processing area of the premises and in the dine in areas and adequate lighting should be maintained in the premises.
- (37) Pesticides kept in the premises should be kept in a sealed container at a specific place in the premises.
- (38) The area for staff facilities in the premises should be spacious and with necessary sanitary facilities and toilets for both men and women should be maintained in accordance with sanitary standards.
- (39) Prior to disposal of waste collected in the premises, it should be maintained in such a way that it does not affect the things used in the premises in any way and thus does not cause contamination of food.
- (40) Cleaning activities in premises should be carried out on a regular basis subject to the following:
- (A) A specific task assignment should be maintained regarding activities such as the satisfactorily carrying out all parts of the institution and cleaning prioritizing the specific areas described in this by-law and application of disinfectants
- (B) It shall be the duty of the licensee to ensure that the work under (A) above is carried out precisely.
- (C) Appropriate cleaning should be done to prevent dust during food preparation, serving, packing and consumption on the premises.
- (D) All utensils used in the serving and consumption of food shall be maintained in such a manner that no portions of cooked food remain.

(E) The water used for cleaning, detergent disinfectants should be washed so that the does not remain on the dishes in any way.

(F) The ceiling, walls, etc. of the premises shall be kept free from any insects.

- (41) Pets such as dogs and cats should not be kept on the premises in any way.
- (42) Employees working on the premises should be trained in food hygiene and should be subjected to medical examinations within a specified period of time to ensure that they are in suitable health condition. Relevant records should also be maintained at the premises so that they can be inspected at any time. Also the health check-ups for them should be both clinical and epidemiological.
- (43) A health monitoring system should be set up for employees employed on the premises and a process should be put in place to get the health advice they need.
- (44) The waste generated on the premises should be maintained in accordance with the waste management program implemented by the council and in accordance with the written rules applicable to it.
- (45) If the waste generated on the premises is managed by the licensee himself, the Public Health Inspector in charge of the relevant area should be informed and should act accordingly in accordance with the instructions given by him.
- (46) Everyone working on the premises should not engage in cooking packing, serving of food or work without necessarily cleaning after using the toilet and after touching dirt, and everyone who engage in those type of work should wear a clean and pocketfree apron.
- (47) Those who work as cashiers on the premises should clean their hands frequently using sanitizers.
- (48) Adequate first aid facilities should be provided on the premises.
- (49) The number of persons that can be provided with dine in facilities in the premises should be displayed on the premises.
- (50) In the event of an outbreak of any instruction in the community to use gloves or masks in the community, if any person entering the premises disposes of the mask or gloves they are wearing on the premises, the masks or gloves should be disposed to closed containers specified on the premises. Those waste should be disposed in accordance with the waste management program and instructions implemented by the Council without mixing with other wastes
- (51) Anyone entering the premises for dine in should clean their hands from the area specifically designated for this purpose.
- (52) Everyone who dine in and take-away food from the premises should maintain proper distance.

- (53) Everyone who dine in on the premises should be as hygienic as possible and always wear head coverings, gloves, masks, shoes and appropriate hygienic clothing.
 - (54) A person suffering from any infectious disease or suspected to be infected with such a vector or infected with wounds, skin infections or any other infectious disease should not be employed on the premises.
 - (55) Everyone dine in on the premises should not engage in activities such as smoking, spitting, coughing, sneezing, or touching the nose, which can cause food contamination.
 - (56) Under no circumstances should anyone on the premises be allowed to dine in with any indication that they may be suffering from an infectious or transmissible disease.
 - (57) If any person comes to the premises for dine in or an employee of the premises infected with a transmissible disease, infectious or skin disease, the licensee should inform the Medical Officer of Health and after informing all persons involved in the premises should act in accordance with the quarantine instructions given by the Medical Officer of Health or an authorized Public Health Inspector.
 - (58) Once the premises have been subjected to the quarantine process, no one shall enter the premises for dine in until the issuance of a certificate of completion of the quarantine period by the Medical Officer of Health or the Public Health Inspector and until the premises have been completely disinfected.
 - (59) The licensee must take every step to maintain the premises in such a way that it does not cause food contamination during food consumption in any manner.
 - (60) Relevant instructions should be prominently displayed on the premises and should act upon accordingly so that everyone who dine in on the premises can learn about the health precautions that take place on the premises.
 - (61) The licensee must have provided all information about the employees working on the premises to the Chairman.
12. (1) It shall also be lawful for the Chairman to grade a premises relevant to this by-law in accordance with the recommendations of the Medical Officer of Health, taking into account the efficacy of the conditions under this by-law. Grading premises
 - (2) When the Chairman has graded the premises under this section, the grade of the premises for the year relevant to the license and a certificate issued by the Chairman shall be displayed on the premises for the public to see.
 13. It shall be lawful for a Public Health Inspector or any other officer authorized by the Chairman to enter the premises at any reasonable time to obtain the necessary samples to inspect the premises On-site inspection and Obtaining samples

in accordance with the provisions of this by-law.

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| | 14. | When the Chairman has recommended that the licensee should enter into a statement of agreement regarding the maintenance of the premises as instructed by the Medical Officer of Health, taking into account the possible causes of the spread of an epidemic in the area, the licensee should enter into a statement of agreement with the Chairman and the Chairman should send a copy to the Medical Officer of Health. |
| | 15. | When an order is in force under the Quarantine and Prevention of Disease Ordinance in respect of any epidemic situation relating to the territory, the premises shall be maintained in accordance with all the provisions of that Order. |
| Power to enter the premises | 16. | It shall be lawful for a Public Health Inspector or any other officer authorized by the Chairman to enter the premises at any reasonable time to obtain the necessary samples and to inspect the premises in accordance with the provisions of this by-law. |
| Cancellation of the license | 17. (1) | In the event of a violation of the provisions of this by-law or in a manner contrary to the provisions of this by-law in a premises licensed under this by-law, the Chairman should hand over a notice to the licensee to be compliance with the by-law notifying a specified period not exceeding thirty days. |
| | (2) | Upon submission of a notice under this section to the Licensee, the Chairman may grant an additional period of time on a reasonable request to grant an additional period to act in accordance with the terms of the relevant notice. The period which is granted so should be subject to a maximum period of fourteen days in addition to the period specified in the first notice. |
| | 18. | The Chairman should cancel the relevant license in the event that the licensee fails to comply with the notice within the period of time or additional period given under section 16 above. |
| Penalty | 19. | It is an offense to maintain a premises without a license obtained under this by-law or in violation of the provisions of the by-law and after being convicted by a Magistrate Court, he/she shall be liable to a penalty under sub-section 122 (2) of the Pradeshiya Sabha Act No. 15 of 1987. Further, after being found guilty of such an offense, and in the event of further breach of the law after a notice has been given by the Chairman or an officer authorized by him, breach of the law must be subject to an additional fine referred to in sub-section 122 (2) of the old Pradeshiya Sabha Act No. 15 of 1987 for each day in which they continue the breach of the law. |
| Clarification | 20. | Unless a different meaning is required in relation to the terms of this by-law,
“Council” means the Kalutara Pradeshiya Sabha,

“Chairman” means the person who hold the office of the Chairman of the Pradeshiya Sabha at present or the persons who perform the duties of that position,

"Medical Officer of Health" refers to the persons holding the post for the Medical Officer of Health Division relevant to the Pradeshiya Sabha area. |

“Public Health Inspector” means a person who holds the office of Public Health Inspector attached to the Pradeshiya Sabha or office of the Medical Officer of Health working in the territory of the Pradeshiya Sabha.

"Licensee" means an institution or a person who has obtained a license under this by-law,

"Authorized Officer" means the officer authorized by the Chairman of the Pradeshiya Sabha at that time.

"Contamination" refers to the entry or occurrence of any contamination substance in a food substance,

"Disinfectants" reduce the amount of microorganisms in the environment by chemicals or physical means that do not reduce the safety or suitability of the food.

"Food hygiene" refers to all the conditions, steps and practices to ensure the safety and suitability of food at all times in the food chain.

A "hazard" is a biological, chemical, or condition that is likely to cause adverse health effects.

"Food safety" also means the responsibility of the consumer to prepare, process, sell, store, transport, and not cause any harm to the consumer during or after dine in.

"Food" refers to the products used to prepare food and food being prepared for sale in a institution maintained for human consumption,

"Reasonable time" refers to any time engaged in a licensed activity or related work,

"Basic Law" refers to the Pradeshiya Sabha Act No. 15 of 1987.

21. If there variations between the Sinhala, English and Tamil texts in this by-law, then the Sinhala twxt will prevail.

Variation between
Texts

First Schedule

Application for Trade License for the year

01. Name of the applicant: -
02. Personal Address: -
03. National Identity Card Number: -
04. Telephone Number: -
05. Nature of the business: -
06. Start year: -
07. Address of the place of business: -
08. Grama Niladhari Division: -
09. Assessment Number: -
10. If the business has obtained name registration, its reference number: -

11. Information of the manager or agent of the place of business,

I. Name and personal address

II. National Identity Card Number

III. Phone Number

Mobile: -

Fixed: -

I certify that the above information is true and correct.

I request that a business license to be issued to me for the year for the place where the industry, business mentioned above. I agree with the existing rules and regulations on this regard.

Date:-

.....
Signature of the applicant

For office use

Revenue Inspector,

I kindly request you to provide me your observations and recommendations for the issuance of a license in relation to the application mentioned on the back.

Date:-

.....
Secretary

Secretary,

I recommend/do not recommend granting the license.

Date :-

.....
Revenue Inspector

Medical Officer of Health,

I kindly request that your observations and recommendations for the issuance of a license in relation the application mentioned on the back.

Date:-

.....
Secretary

Medical Officer of Health,

Eligible in accordance with by-law and other rules and regulations. I will report to recommend the issuance of licenses.

Date :

.....
Public Health Inspector

Secretary,

I recommend / do not recommend issuing a license for the relevant place as per the above application. (If not recommended, state the reason).

Date:-

.....
Medical Officer of Health

BYLAW RELATING TO MARKETS

1. This By-Law is enacted to regulate and monitor the public or private markets maintained within the authority area of Kalutara Pradeshiya Sabha.
2. This By Law is cited as the By Laws for markets of Kalutara Pradeshiya Sabah. Short Title
3. The Pradeshiya Sabha is vested with powers to formulate these by-laws by virtue of Section 126(XII) of Pradeshiya Sabha Act No.15 of 1987 read with the Sub-Section 122 of the said Act.
4. This by-law refers to a public or private market that is maintained for purchase or sale of goods or materials for the public on behalf of Kaluthara Pradeshiya Sabha or any other party located within the authority area of the Kalutara Pradeshiya Sabha (hereinafter referred to as authority area) for the purpose.
5. All public markets and private markets located within the authority area shall be maintained under the management of a market caretaker (hereinafter referred to as the premises at some places). That the market should be under the management of a caretaker
6. All public markets and private markets established and maintained within the authority area shall be constructed to meet the following requirements. Requirements for public and private market
 - (1) Permanent buildings pertaining to the premises shall be constructions constructed under the Urban Development Authority Act No. 41 of 1978 or in accordance with the provisions of the Housing and Urban Development Ordinance.
 - (2) Construction on the premises shall be well made of permanent structure and maintained in good condition.
 - (3) There shall be platforms for the sale of goods and materials for each permanent construction on the premises, and the front of the platforms shall be adequately spaced so that buyers can move around.
 - (4) Under the permanent construction of the premises, each stall shall be at least two square meters wide.
 - (5) All buildings related to the premises shall be constructed with access facilities for persons with disabilities and special needs.
 - (6) All construction on the premises shall be securely constructed, and all construction materials on the premises shall be free from contaminants and materials that are not suitable for food or stock, as well as those that do not emit toxic gases.
 - (7) The internal layout of the buildings on the premises shall be arranged in such a way that they can be separated, divided and positioned to prevent cross-pollution in the premises.

- (8) The internal structure of the premises shall be designed so that the hygienic operations of the process from bringing the goods to the premises to the sale can be carried out properly.
- (9) There should proper access to the premises for the vehicles carrying goods to the premises and the food items in the premises shall not be polluted in any way due to the motor vehicles entering the premises.
- (10) There should be adequate parking facilities for vehicles carrying goods and customers inside the premises.
- (11) The floor should be prepared in a manner that water does not remain in the premises and arranged in a manner that all the drains and rainwater in the premises flow easily.
- (12) Sewage pits for the discharge of wastewater within the premises shall be constructed in accordance with the approved design and shall be located at a distance of at least 15.25 m from a water source and shall not be exposed to the outside.
- (13) Adequate latrine facilities shall be provided in the premises and maintained separately for men and women. The provisions of the By-Laws relating to Public latrine in respect of public latrine maintained within the premises shall apply with the required minor changes.
- (14) Adequate space should be provided within the premises to allow the sale and purchase of goods while maintaining adequate social distance, and the internal structure should be maintained to facilitate the movement of goods within the premises without causing inconvenience to customers.
- (15) Every platform set up for the sale of goods should have a nonslip, waterproof, appropriate surface and be easy to clean with antiseptic.
- (16) The premises should be zoned according to what is for sale, and no goods other than specified in the particular zone shall not be sold.
- (17) No item or items for sale should be kept in direct contact with the ground and should always be placed on a rack with a sufficient height above the floor for sale.
- (18) It should be the duty of the caretaker of the market to make room for the sale so that there is enough space for the customers to move around in the premises to buy the goods.
- (19) Equipments used for weighing and measuring in the premises should be with proper standard
- (20) Animals such as dogs and cats should not be allowed to gather or stay in the premises.

Sale of fish in the
premises

7. Separate stalls shall be set up in the area reserved for the sale of fish in the premises and the following should be completed in this regard.
 - (1) Platforms for the sale of fish should be constructed with solid material and drains should also be

constructed in a manner that the water can flow easily.

- (2) All equipment in the fish storage, display, and sale areas should be free from germ and should not emit contaminants or toxic gases into the fish.
 - (3) Light bulbs and other fixtures hanging above the fish for sale should be in a safe condition and covered
 - (4) The fish market shall be kept clean and disinfected and before starting any sale the place shall be cleaned with anti-septic.
 - (5) The parts that contact with the fish kept for sale should not leak any liquid or gas and should not be contaminated in any way.
 - (6) Water from the cleaning and use of fish stalls should be diverted to a septic tank or suction pit under a separate drainage system and should not be in contact with other drains in the area.
 - (7) The effluent collected during the sale of fish should be temporarily collected in sealed containers so that it does not mix with other effluents in the premises and disposed of in accordance with the waste management system implemented by the Pradeshiya Sabha or as per the instructions of the Public Health Inspector.
 - (8) There should be refrigerators to store extra quantities of fish other than kept for sale.
 - (9) If the fish is stored on site, adequate refrigerators should be available and the relevant refrigerators should be maintained under continuous electricity supply .
 - (10) Fish taken out of the refrigerator should be kept at natural temperature and not re-refrigerated and sold.
 - (11) Packaging material should not be used in any way in printing paper or in direct contact with fish.
 - (12) Fish shall not be stored in sales stall, the equipment non-related fish sale shall not be kept in the stall.
 - (13) All fish sellers shall wear clean clothes.
 - (14) If there is a license to be obtained under any written law for the operation of a premises for the sale of fish, all such licenses must have been obtained by the fish sellers in the premises, none of those provisions shall not undermine these provisions.
8. If a zone is created for the sale of meat in the premises, specific stalls shall be set up in this regard and the following requirement shall be completed,
- (1) Relevant stalls shall be constructed in such a manner as to be considered as a specific premises for the purpose, and all relevant stalls shall be maintained under a license in accordance with the

Sale of meat
in the premises

written rules relating to the maintenance of the premises for the sale of meat

- (2) All equipment in the meat storage, display, and sale areas should be free from germs and should not emit pollutants or toxic gases into the meat
- (3) Light bulbs and other fixtures hanging above the meat for sale should be in a safe condition and covered
- (4) The meat shall be kept clean and disinfected and before starting any sale the place shall be cleaned with anti-septic.
- (5) The parts that contact with the meat kept for sale should not leak any liquid or gas and should not be contaminated in any way.
- (6) Water from the cleaning and use of meat stalls should be diverted to a septic tank or suction pit under a separate drainage system and should not be in contact with other drains in the area.
- (7) The effluent collected during the sale of meat should be temporarily collected in sealed containers so that it does not mix with other effluents in the premises and disposed of in accordance with the waste management system implemented by the Pradeshiya Sabha or as per the instructions of the Public Health Inspector.
- (8) There should be refrigerators to store extra quantities of meat other than kept for sale.
- (9) If the meat is stored on site, adequate refrigerators should be available and the relevant refrigerators should be maintained under continuous electricity supply.
- (10) The meat taken out of the refrigerator should be kept at natural temperature and not re-refrigerated and sold.
- (11) Packaging material should not be used in any way in printing paper or in direct contact with the meat.
- (12) The meat shall not be stored in the sales stall, the equipment non-related meat sale shall not be kept in the stall.
- (13) All meat sellers shall wear clean clothes.
- (14) If there is a license to be obtained under any written law for the operation of premises for the sale of meat. All such licenses must have been obtained by the meat sellers in the premises; none of those provisions shall not undermine these provisions.

General Conditions

9. Platforms for selling fruits and vegetables in the premises should be at least 45 cm above ground level and in the absence of such platforms, they should be placed on a board of sufficient height and sold
10. Those who engaged in sales in the premises shall use the standardized weighing and measuring equipment
11. Vegetables and fruits kept for sale should never be kept in mix with rotten vegetables and fruits and should always be disposed only in the containers for the disposal of rotten vegetables and fruits.
12. Every trader should make sure that rotten vegetables or fruits that have not been ready at any time for the consumption

13. Only drinking water shall be used for washing the vegetables and fruits in the premises and the washing shall be done only in a designated place.
14. Garbage accumulated due to sales should be disposed only in the containers kept for disposal at the premises or at the designated place at the end of the sales.
15. No cooking or making fire or any other preparation of food shall be done by anyone at the premises.
16. When selling cooked food at the premises;
 - (1) Food shall not be sold in a place where there is a risk of food contamination.
 - (2) Always the food items shall be sold from the sealed or airtight containers.
 - (3) Food items kept in any open space shall not be sold.
 - (4) Cooked food shall not be taken here and there around the premises and sold.
 - (5) Everyone who sells food item shall use gloves and touch the food only with the help of a handle to hold food.
17. No person shall drink alcohol or make arrangements to drink alcohol or smoke in any way at the premises
18. No person in the premises should utter filthy words or behave in an obscene manner
19. Anyone who suffers from any infectious disease, or who is suspected of having contracted disease, or who has been infected with a wound, skin infection, ulcer, or diarrhea, or who has been cared for, should not trade on the premises.
20. The loudspeakers shall not be used in the premises to advertise or present musical programs
21. No person in the premises shall beg or hold performances
22. Whatever the above provisions of this by-law contain, there are reasonable grounds to suspect that in any area or authority area in Sri Lanka, when there is a provision for the spread of an epidemic under the Quarantine and Prevention of diseases Ordinance and the regulations made under it, In such cases, it should be lawful for the Chairman to prescribe that all or some of the following procedures shall be followed by the users of the premises as instructed by the Medical Officer of Health.
 - (1) That water should be supplied to wash the hands of traders and consumers at various places in the premises
 - (2) That water should be supplied to wash the hands of traders and consumers at various places in the premises
 - (3) That public latrines in the premises should be temporarily closed.

Maintaining
the public Marke-
tin
in an epidemic
Situation

- (4) That there should be several entrances and exits to the premises.
- (5) That the relevant minimum distance between traders and consumers should be maintained and the minimum distance to be maintain between each other.
- (6) That the premises should be well ventilated
- (7) That the number of people entered to the premises at a time by the entrances should be limited
- (8) That respiratory etiquette should be maintained on the premises and that anyone suspected of having a fever or respiratory illness or such condition should be prohibited from entering the premises
- (9) Traders and users of the premises are required to wear face masks and traders are required to wear face masks and gloves
- (10) That conduct and other necessary instruction should be displayed at the premises and maintained on a regular basis
- (11) That when dealing with money in the premises, a specific person shall be deployed at each stall to perform that task and he or she shall regularly sterilize and clean their hands
- (12) That food should not be consumed by anyone in any way in the premises
- (13) That the premises should be divided into sections and operated for a limited trade.
- (14) That the premises were not maintained for commercial purposes for a period of time

The terms
must be complied

23. All persons who use the premises shall act in accordance with the provisions made by the Chairman under the above clause
24. Every public market owned by the Pradeshiya Sabha and private market should have a boundary schedule to the land area
25. When it is a public market belonging to the Pradeshiya Sabha
 - (1) The Chairman shall ensure that all steps taken to maintain the provisions of this By-Laws are properly implemented
 - (2) As per the decision of the Pradeshiya Sabha, the public market of the Sabha can be entrusted to the second parties identified under the proper tender procedure
 - (3) When the public market is maintained by the parties contracted on behalf of the Pradeshiya Sabha, it shall be supervised by an officer authorized by the Chairman to specify whether it shall be conducted in accordance with the provisions of this By-Law

Determination of
fees

26. (1) When the public market is maintained by the Pradeshiya Sabha, the fees to be charged for trade in the premises should be as determined by the Sabha
- (2) All matters related to the fees prescribed under sub-clause (1) above and the reservation of space for public market vendors shall be decided by the sabha taking into consideration the recommendations of a committee appointed by the Pradeshiya Sabha.

License for Private
Market

27. All private operating maintained within the authority area shall not be maintained except under a license to be obtained from the Chairman.
28. All private markets operating within the authority shall not be issue a license unless they comply with the provisions of this By-Law

29. All persons applying for a license under Article 26 shall apply to the Chairman in accordance with an application under the Schedule to this By-Law Applyin for Licenes
30. The fees to be charged in respect of requests received from the Pradeshiya Sabha shall be legally determined by the sabha through a prior proposal
31. If a license issued under section 26 is not previously revoked in accordance with the provisions of this by-law, it shall be valid until 31st December of the year in which the license issued
32. (1) (1) The fees to be charged for a license issued under this by-law shall be determined and declared by the Sabha, subject to the provisions of the Basic Law License fee
(2) It should be lawful for the Sabha to determine and charge an inspection fee for a site inspection in connection with the issuance of a license
33. It shall be lawful for an officer authorized by the Chairman to enter the premises and obtain the necessary items to inspect the premises in accordance with the provisions of this By-Law Authority for inspection
34. (1) In the event of a breach or contradiction of the provisions of this by-law, the Chairman shall give notice to the licensee giving a specified period not exceeding thirty days for compliance with the by-law Violation of the terms of the license
(2) Upon submission of a notice under this section to the licensee, the Chairman may grant additional time upon request, on reasonable grounds, to grant further time to act in accordance with the terms of the relevant notice. The period so granted shall be subjected to a maximum period of fourteen days in addition to the period specified in the first notice.
35. The Chairman shall revoke the relevant license in the event that the licensee fails to comply with the notice within the period of time or additional period granted under section 33 above
36. It is an offense to act in violation of any provision of this by-law or to operate a private market without obtaining a license under this by-law and after being convicted by a magistrate court under sub-section 122 (2) of the Pradeshiya Sabha Act No. 15 of 1987 shall be subjected to a Penalty. Penalty
37. Unless the context required an interpretation of the terms of this by-law,
"Sabha" means Kaluthara Pradeshiya Sabha,
"Chairman" refers to the person who holds the post of Chairman of the Kaluthara Pradeshiya Sabha at present or the person who performs the function of that position.
"Authorized Officer" Any officer authorized in writing by the Chairman of the Pradeshiya Sabha,
"Pollution" means food or food pollutants entry or occurrence.
"Hygiene" refers to all the conditions and practices required to ensure the safety and suitability of food at all stages of a food chain

Inconsistencies between texts	38.	If there are any discrepancies between the Sinhala, English and Tamil texts in this by-law, Sinhala text will prevail
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Schedule**Application for Trade License for the year.**

01. Name of the applicant: -
 02. Personal Address: -
 03. National Identity Card Number: -
 04. Telephone Number: -
 05. Address of the place where the fair is held: -
 06. Start year: -
 07. Address of the place of business: -
 08. Grama Niladhari Division: -
 09. Assessment Number: -

I do hereby certify that the above information is true and correct.

I kindly request you that please issue me trade license for the year for the industry and place of trade mentioned above. I agree with the existing rules in this regard.

Date:-.....

.....
 Signature of the applicant

For office use

Revenue Inspector,

I kindly request that your observations and recommendations for the issuance of a license in relation to the applicant mentioned on the back page.

Date:-.....

.....
 Secretary

Secretary,

I recommend / Not recommend granting the license

Date :-

.....
 Revenue Inspector

Medical Officer of Health,

Kindly request your observations and recommendations for the issuance of a license in relation to the application mentioned on the back page.

Date:-.....

.....
 Secretary

Medical Officer of Health,

Eligible in accordance with by-laws and other rules and regulations. I do hereby recommend the issuance of licenses.

Date :-

.....
Public Health Inspector

Secretary,

I recommend / I do not recommend the issuance a license for the relevant place as per the above application.
(If not recommended, state the reason).

Date :-

.....
Medical Officer of Health

BY LAWS RELATING TO PUBLIC LATRINES OF
PRADESHIYA SABHA

1. The objective of the enforcement of this by law is to regulate the use and maintenance of Public Latrine System in this Kalutara Pradeshiya Sabah authority area.
2. 01.This By Law is cited as the By Law for regulating the use and maintenance of Public Latrines within the authority area of Kalutara Pradeshiya Sabah
3. The Pradeshiya Sabha is vested with powers to formulate these by- laws by virtue of Section 126(IX), of Pradeshiya Sabha Act No.15 of 1987 read with the Sub-Section 122 of the said Act.
4. It shall be the responsibility of the Sabaha to maintain Public Latrine facilities in the places where general public gather, within the authority area of Kalutara Pradeshiya Sabah (hereinafter refers as authority area).
5. All Public Latrine facilities within authority area of Pradeshiya Sabah shall be maintained with clean and tidy adequately under the sanitary requirement and shall be well maintained.
6. Separate facilities for men, women and for persons with disabilities should be maintained in each public Latrine maintained by the Sabha.
7. All public Latrines within the authority area of Pradeshiya Sabah shall be maintained in accordance with the conditions prescribed by the Medical Officer of Health to be maintained for the benefit of the public health
8. Adequate water supply should be maintained permanently for all public Latrines and water

Short Title

The sabah should
maintain public
latrine Sacilities

storage facilities shall also be provided for this purpose.

9. All public Latrines shall be easily accessible to both men and women as well as persons with disabilities.
10. Each Latrine should have facilities such as hand washing with proper, permanent water connection in a designated area with a basin made of stainless steel and should always have facilities with the adequate sanitary wipers, detergent and hand drying facilities also be provided.
11. Each public Latrine should have separate cloth racks in each compartment and should also be provided with space to keep the belongings
12. Adequate number of foot operated dust bins should be kept in each compartment of every public Latrine for the public use.
13. If there are any masks or gloves worn by the users of the public Latrine, the masks or gloves should be disposed in to the foot operated dust bins. This specifically stated on the dust bins.
14. The surface of all the public Latrine should be made of cement or porcelain so that the water does not retain and slip easily and the floor should be prepared so that water can drain easily.
15. (01) Instructions on specific sanitary measures to be followed by the public Latrine users for protection of public health to be displayed in the public Latrine premises for easy understanding.
(02) All persons who use public Latrines shall act in accordance with the relevant instructions.
16. A latrine shall always be cleaned and be kept under sanitary condition and germicide should be used when cleaning and shall be well maintained and staff should be deployed to ensure the cleanliness.
17. Adequate lighting should be provided in all public Latrines.
18. If the Sabah decides to charge a fee for the services provided in public Latrines within the authority area, a notice shall be prepared and affixed in all three languages clearly with regard to the available facilities and the fees charged.
19. When using public Latrines, the accumulated waste should be disposed in accordance with the specific procedure and the disposal of masks and gloves used should be considered as medical waste and disposed accordingly.
20. The utensils used in public Latrines should be cleaned with water after every use and then keep them ready for the easy use of others.
21. If a public Latrine is maintained by a second party on behalf of the Shaba, the provisions of this by-law shall applicable to all public Latrine so maintained by the second party. The compliance

Charge a fee

Obtaining the assistance of a second party

of provisions of this by-law shall be monitored regularly by the assigned employees, appointed for this purpose.

22. In addition to the provisions of this By-Law, the users of public Latrine shall also abide by provisions of the *Quarantine and Prevention of Diseases Ordinance*, when prescribed or applied to any epidemic situation

23. It shall be lawful to restrict the use of any public Latrine within the authority are for the benefit of public health for a specified period of time, to restrict its use, or to suspend it temporarily by the Chairman as prescribed by the Medical Officer of Health.

24. Taking into the consideration of the factors that may cause or spread of any epidemic disease within the authority area declared by the Quarantine and Prevention of Diseases Ordinance, the Chairman shall take all necessary steps to ensure that the use of public Latrine is accordance with the instructions given by the Medical Officer of Health prior to the use Latrine by the public.

Use of public
Latrines during
an epidemic
situation

25. Prior to the use of public Latrine in connection with the steps under section 23 above, the Chairman shall display the instructions in a manner that is easily visible to the user of the public Latrine in accordance with instructions of the Medical Officer of Health.

26. All public Latrines should be cleaned with antiseptic according to a specific daily schedule in a manner that no odor is emitted, while such cleaning activities shall be recorded in a report kept in the premises. The Chairman shall implement an appropriate program to regulate the continuity of the clean-up operations.

27. No matter whatever stated in the above clauses of this by-law, there shall not be any impediment by any provision of this by-law to the implementation of the provisions of the Quarantine and Prevention of Disease Ordinance or any regulation obtained thereon.

28. If a Public Latrine is maintained on behalf of the Council under the administration of a second party, the provisions of this by-law shall apply to all public Latrines so maintained and shall always be deemed to have been applicable.

29. If a fee is charged for the use of a public Latrine, a receipt shall be issued to the user for the specific amount so charged.

30. It is an offense for any person who act in violation of a provision of this by-law and after being convicted by an authorized court, the person shall be liable to a penalty under sub-section 122 (2) of the Pradeshiya Sabha Act, No. 15 of 1987.

Penalty

31. For the purpose of these By Laws, unless the context otherwise requires,
“Sabah” means the Kalutara Pradeshiya Sabha
“Chairman” means Chairman of the Kaluthara. Pradeshiya Sabha or the person executes the duties of the chairman.
“Medical Officer of Health” means the person holding the post of the Medical Officer of Health in the relevant area of the Pradeshiya Sabha area.

Definition

32. If there is a discrepancy among the Sinhala, Tamil and English texts in this by-law, the Sinhala texts will prevail. Discrepancy among the medium.

Discrepancy
among the medium

BY-LAW ON CONTROLLING THE DISPOSAL OF WASTE HAZARDOUS TO PUBLIC HEALTH

01. This by-law is enacted to recommend disposal strategies to prevent the disposal of health safety equipment used by the Public to the environment being hazardous to public health in an epidemic situation within the authority area of the Kalutara Pradeshiya Sabha.
- Short title. 02. This by-law is cited as the by-law to control the disposal of waste hazardous to the public health of the Kalutara Pradeshiya Sabha.
03. The Pradeshiya Sabha is vested with powers to formulate these by-laws by virtue of Section 122 of Pradeshiya Sabha Act No.15 of 1987 read with the Sub-Section 126(ix) of the said Act.
- Applicability. 04. In the event of the use of masks, gloves or any other protective wear (hereinafter referred to as equipment in some places) by the people of the authority area in accordance with the terms and conditions laid down by the Chairman under the instructions of the Medical Officer of Health to control an epidemic situation that has been declared throughout Sri Lanka or in any part of the country or relevant to the authority area or in any case where an epidemic has been declared under the Quarantine and Prevention of Diseases Ordinance or any of the regulations made under it, the disposal of such items after use shall be subject to the provisions herein.
- That specific garbage bins shall be maintained. 05. All public or private premises shall have separate closed garbage containers for the disposal of gloves, masks or any other protective wear used by the public for health safety purposes or at any instance as referred to in Section 4 above relating to the authority area.
06. No gloves, masks and other such items shall be disposed by any person other than a specifically separated garbage container mentioned under Section 5 above, subject to the circumstances referred to in under Section 4 of this by-law within the authority area.
- Responsibility of the public authority. 07. It is the responsibility and duty of the authority of the premises to maintain adequate garbage disposal containers for the disposal of gloves, masks and other such items used in all public premises in the event of a situation referred to in under Section 4 of this by-law.
- Prevention of mixing. 08. No person shall mix or dispose any waste other than the waste specified under this by-law to a garbage container maintained for the purpose of this by-law.
09. Disposal or dumping of waste collected under this by-law shall be carried out only in accordance with the procedure recommended by the Chairman on the instructions of the Medical Officer of Health, and the waste management program implemented by the Pradeshiya Sabha shall be publicized within the authority area.
- Penalty. 10. It is an offense for any person to act in violation of the provisions under Sections 6 and 8 of this by-law, and after being convicted by the Magistrate's Court, shall be subject to a penalty under Sub-Section 122(2) of the Pradeshiya Sabha Act No. 15 of 1987 of the said Ordinance.
- Definition. 11. Unless other meaning is required with regard to text, in this by-law,
- “Council” means the Kalutara Pradeshiya Sabha,
 “Chairman” means the person who hold the office of the Chairman of the Kalutara Pradeshiya Sabha at that time or perform the duties of that position,
 “Medical Officer of Health” means the person holding the post for the Medical Officer of Health Division relevant to the authority area of the Pradeshiya Sabha.
 “Public Health Inspector” means a person who holds the post of Public Health Inspector attached to the Pradeshiya Sabha or the office of the Medical Officer of Health relevant to the authority area of

the Pradeshiya Sabha.

"Authority Area" means the Kalutara Pradeshiya Sabha area,

12. In the event of any inconsistency between the Sinhala, English and Tamil texts of this by-law the Sinhala text shall prevail. Inconsistency between texts.

**BY-LAW OF REGULATING THE CONDUCT OF SHOWS ON THE ROADS AND STREETS OF
THE PRADESHIYA SABHA**

01. This by-law is enacted to control, regulate and to make arrangements for consequent matters to the conduct of shows by gathering people in any road, street and related reserve in the area of authority of the Kalutara Pradeshiya Sabha.
02. This by-law is known as the by-law of regulating the conduct of shows on the roads and streets of the Kalutara Pradeshiya Sabha Short name.
03. The Pradeshiya Sabha is vested with powers to formulate these by- laws by virtue of Section 126(VII) of Pradeshiya Sabha Act No.15 of 1987 read with the Sub-Section 122 of the said Act.
04. No person shall conduct a show or engage in any such activity in such a way as to gather the public except with a prior written permission of the Chairman in any road, street and related reserve in the area of authority of the Kalutara Pradeshiya Sabha (herein after referred to as the authority area). Obtaining permission.
05. Any person wishing to conduct a show or engage in any activity in such a way as to gather the public on a particular road, street, or related reserve in the authority area within a specified period of time, shall apply for the permission in advance by submitting an application to the Chairman.
06. When someone has made a request to gather people to conduct a show on a road, street or related reserve, or gather people to engage in any kind of such activity, the Chairman shall not grant permission to any person to do so without subjecting himself/herself to the recommendations and conditions of the Medical Officer of Health if there is a recommendation and conditions to which such gathering is appropriate for the benefit of the prevailing public health in the area. Granting permission by the Chairman.
07. Whenever any epidemic situation has been declared by the Quarantine and Prevention of Diseases Ordinance and the regulations made under it in relation to the whole island or part of Sri Lanka or whenever an epidemic is declared in the authority area no person shall engage in activities that gather the public on a road, street or related reserve in the authority area.
08. This by-law stipulates that the applicant shall maintain the relevant show subject to the following conditions: Conditions
- (1) That during the performance of the show, the relevant activities will be carried out in accordance with the health care strategies recommended to be maintained for the benefit of the public health of the area during the entire period,
- (2) That the show shall always be held only for random gatherings and that the show shall not be advertised in advance,
- (3) That no fees shall be charged for the purpose of the show,
- (4) That at no time engage in the show that maintains a position that minimizes the visibility of the show,

- (5) That the performer shall keep adequate sealed garbage bins at the venue, and if there is anything disposed by the people gathered they should be disposed to the garbage bins, and shall conduct the show by encouraging the audience to do so.
- (6) That the garbage collected in garbage bins at the venue during the show will be disposed of by the performer at the end of the show in accordance with the active waste management program in the area.
- (7) That if loudspeakers or other visual display boards are to be set up at the venue, prior approval shall be obtained in accordance with the applicable written law and it shall be maintained so that it can be easily seen in more directions.
- (8) That the show will be held in such a manner that it will not cause any hindrance to traffic or pedestrian traffic.
- (9) That if there are any public health rules to be followed by the gathering under the permission given to hold the show or perform the show, the relevant show will be held or the show will be held in satisfaction that all those rules will be fulfilled in that manner.
- That Traffic should not be disrupted.
9. When the Chairman permits to hold a show on a road, street or related reserve or any other such event the relevant permission under section 5 of this by-law shall be granted after been satisfied that it shall not disrupt with the traffic or public using the road, street or related reserve.
10. In cases where a specific public place has been reserved by the Council for a gathering of the people or for purpose of a show, the Chairman shall not grant permission for any show on a road or in a related reserve except at that place.
- Fees.
11. The fees to be charged for the issuance of a permit under this by-law shall be a fee decided and published by the Council by a resolution of motion from time to time.
12. Acting under a permit obtained from the Chairman under this by-law shall be subject to the provisions of the Quarantine and Prevention of Diseases Ordinance and the regulations made under it.
- Cancellation of the license
13. It is lawful for the Chairman to cancel a permit issued under this by-law at any time when the Chairman is satisfied that there are factors causing an epidemic in the authority are, and upon such cancellation the amount charged for a permit shall be released to the applicant.
- Penalty
14. It is an offense to hold a show in a road, street in the authority area without a permit to be obtained under this by-law or to act in violation of the provisions of this by-law and after being convicted by a Magistrate Court, he/she shall be liable to a penalty under sub-section 122 (4) of the Pradeshiya Sabha Act No. 15 of 1987.
- Definition.
15. Unless other meaning is required with regard to text, in this by-law;
- The "Council" means the Kalutara Pradeshiya Sabha,
The "Chairman" means the current Chairman of the Kalutara Pradeshiya Sabha or the person performs the duties of that position,
and
The "Medical Officer of Health" means the person who hold the office of that position related to the division of the Medical Officer of Health of the relevant area.
- Inconsistency between texts.
16. In the event of any inconsistency between the Sinhala, English and Tamil texts of this by-law the Sinhala text shall prevail.

BY-LAW REGARDING FOOD PRODUCTION PLACES

01. This by-law is enacted to regulate, monitor, inspect and control food production places within the authority area of the Kalutara. Pradeshiya Sabha.
02. This by-law is cited as the By-Law Regarding Food Production Places of the Kalutara Pradeshiya Sabha. Short title.
03. The Pradeshiya Sabha is vested with powers to formulate these by- laws by virtue of Section 122 of Pradeshiya Sabha Act No.15 of 1987 read with the sub - section 126(ix) of the said Act. Legal power.
04. No person within the jurisdiction of the Kalutara Pradeshiya Sabha (hereinafter referred to as the authority area) shall maintain a place where food is produced commercially for human consumption (hereinafter referred to as the premises in some places) except under a license obtained from the Chairman under this by-law. That a license shall be obtained.
05. All persons applying for a license under this by-law shall apply for it under an application prepared in accordance with the schedule published in this by-law. Applying for a License.
06. Submission of an application under the above section can be made by fulfilling the requirements and submitting an application to the Chairman by registered post, handing over in hand or by e-mail to the extent permitted by the Council.
07. Any person applying for a license under this by-law shall not be issued a license by the Chairman unless the following conditions are met herein. Conditions for a license.
 - (1) All constructions relating to the premises shall be constructions duly made in accordance with the provisions of the Urban Development Authority Act No. 41 of 1978 or the Housing and Urban Development Ordinance and;
 - (A) The material used in all constructions shall not emit toxic substances and shall not emit toxic gases, and all constructions shall be made up of surfaces where organisms cannot be easily retained.
 - (B) The internal layout shall be designed with adequate space to enable the service to be performed without interruption.
 - (C) Shall be designed with a protective layout to prevent entry of contamination substances into food raw material and cooked food.
 - (D) Shall be designed to check the hygienic conditions of the internal foods of the premises.
 - (E) Things disposed under the internal processing activities of the premises shall be arranged with references that will not flow back in any way.
 - (2) In the food processing area of the premises,
 - (A) Floor and walls shall be made of washable, non-slip and non-absorbent materials.
 - (B) All surfaces shall be inactive for easily cleaned detergents and disinfectants.
 - (C) The ceiling shall be constructed to minimize condensation and to prevent fungus formation and cracking.
 - (D) If there are any windows and other openings, they shall be shielded with covers prevent entering insects.
 - (E) Absorbent fans shall be installed to allow easy flow of air from outside and to flow exhaust air out.
 - (3) Ensure that air conditioners operate at adequate temperatures when adequate ventilation is provided

in the premises or air conditioned, and all air conditioning systems shall be designed to prevent air from returning.

(4) For the employees on the premises;

(A) If resided, there shall be room facilities with adequate sanitary facilities for the accommodation, and it shall be in a place separate from the food preparation, food production or ingredients storage area.

(B) Rooms shall be arranged so that at least four square meters of space is available for each employee to sleep.

(C) Adequate latrine and bathroom facilities shall be provided for both females and males.

(5) The internal structure of the premises shall be designed so that customers can order food with adequate space with physical distancing when required.

(6) There shall be adequate parking facilities for customers.

(7) Automatic generators and water storage facilities of sufficient capacity shall be available to be utilized in the event of an emergency power outage or water supply failure.

(8) Internal drains and waste discharged from the premises shall be directed to a septic tank or a soakage pit and if that soakage pit or septic tank is in a source of water, it shall be at a distance more than 15.25 meters away.

Issuing a license.

08. Within fourteen days of receipt of the application for a license to be issued under this by-law, the Chairman;

(1) Shall issue a license pertaining to the premises to the applicant when the conditions under Section 7 are complied with.

(2) Shall reject the relevant application with reasons if the conditions under Section 7 are not complied with.

Fees for a license.

09. (1) The fees to be charged for a license issued under this by-law shall be the fees to be decided and declared by the Council subject to the provisions of the Basic Law.

Inspection fees.

(2) It shall be lawful for the Council to decide and charge an inspection fee for site inspections related to the issuance of a license.

Validity period.

10. If a license issued under this by-law is not previously cancelled in accordance with the provisions of this by-law, it shall be valid until December thirty first of the year in which the license applies.

Conditions relevant to a license.

11. All persons receives a license under this by-law shall act in accordance with the following conditions herein.

(1) If there are any terms prescribed by the Chairman on the advice of the Medical Officer of Health time to time in order to control an epidemic situation declared throughout Sri Lanka or in any part of the country or relevant to the authority area or in any case where an epidemic has been declared applicable under the Quarantine and Prevention of Diseases Ordinance or regulations made under it, the premises shall be maintained subject to all such terms.

- (2) All persons employed on the premises shall act in accordance with all terms made by the Chairman on the advice of the Medical Officer of Health in any case where an epidemic is declared applicable under the regulations made under the Quarantine and Prevention of Disease Ordinance.
- (3) Whenever there is a suspicion of an epidemic in the authority area, relating to all persons who come to the premises expecting services, services shall not be provided unless they visit the premises in accordance with the relevant health guidelines issued.
- (4) When there is an epidemic in the authority area or risk of an epidemic, the health safety instructions prescribed by the Director General of Health Services or the Medical Officer of Health or the Chairman as per their instructions shall be properly implemented in the premises in order to protect from it and the license holder shall be satisfied that it is being so.
- (5) All drains in the premises shall be easily drained and the effluent and sewage shall be directed to the septic tank, soakage pit or to the central treatment unit according to the approved procedures and the necessary action shall be taken to prevent contamination.
- (6) All latrines and hand washing places on the premises shall be cleaned frequently with disinfectant and appropriate method shall be maintained to ensure that all of them are being so.
- (7) The interior floor of the premises shall be arranged in such a way that it does not slip easily, and if it is somewhat easier to do so during the cleaning process boards mentioning on that regard shall be placed in such a place visible to the customers.
- (8) Drains in the premises shall be made as not to retain water and shall be cleaned with disinfectants twice daily.
- (9) No drain or sewage pipe in the premises shall be directed in any way to a public drain of the road or outside area.
- (10) The premises shall be maintained in such a way that there is no external odor due to the discharge of wastewater or discharge of waste.
- (11) Adequate facilities shall be in place to regulate the temperature required for cooking and refrigeration of food, and records shall be maintained that it is being so.
- (12) All equipment and utensils used for food preparation shall be maintained in accordance with the following requirements.
 - (A) All equipment and utensils used in food preparation shall be made of a non-absorbent material that does not emit any toxins, tastes or odors and shall be made of stainless material.
 - (B) All equipment and utensils shall be of such a nature as to be easily cleaned.
 - (C) Containers used for waste disposal shall be made of metal or non-leaking materials and shall have lids.
 - (D) All equipment and utensil maintained shall be of a suitable condition to be used.
- (13) If food is to be distributed outside the premises during production, there shall be a specific designated place for it.

- (14) Containers used for serving food shall be such that they can be served in a way that does not harm the taste of the food.
- (15) Premises shall have separate refrigeration facilities to store things used for cooking food and cooked food or similar.
- (16) Premises shall have water storage facilities and the relevant containers shall be stainless.
- (17) Fruits and vegetables used in food preparation shall be thoroughly washed, cleaned and used.
- (18) Water used in the premises shall be kept in non-hazardous containers free from contamination.
- (19) The ice used in the premises shall be made from drinking water.
- (20) Water pipes in the premises shall be maintained so that they can be distinguished from any other pipeline.
- (21) A specific internal arrangement shall be in place to ensure that every food item cooked on the premises is delivered to customers without hazard, and that specifically assigned persons shall be employed to regulate it.
- (22) Meat and fish brought in for food shall be stored in a separate refrigerator on the premises and shall always be kept at a temperature of two degrees Celsius until used without contamination.
- (23) If an order has been issued that all persons should wear masks when socializing when an epidemic situation has been declared in the authority area under the Quarantine and Prevention of Diseases Ordinance and the regulations made under it or due to the risk of an epidemic in the authority area, any person not wearing a face mask shall not be allowed to enter the premises for transactions.
- (24) Everyone involved in food production shall use hats when involved in production activities.
- (25) Food for sale on the premises shall not be kept in such a way as to cause contamination, and all activities such as serving food, assembling for takeaway, *etc.*, shall be carried out under a specific procedure using appropriate gloves.
- (26) All persons involved in serving, usage or assembling food on the premises;
 - (A) Shall not touch or contact food with their open hands or fingers
 - (B) Under no circumstances shall money be used while working.
 - (C) Utensils and gloves used for handling food shall be a favorable use for food.
 - (D) A clean towel shall be used to wipe hands.
 - (E) The bottom of a used plate, cup or other container shall always be kept out of contact with any food.
 - (F) All utensils used for food serving shall be kept thoroughly clean and in separate containers.

- (G) Employees shall work to use, assemble food in such a way that their activity, usage does not cause food contamination or microbial proliferation in any way.
- (H) What is taken for food wrapping shall not be a source of food contamination in any way.
- (27) When the Chairman has declared a disease condition applicable under the Quarantine and Prevention of Disease Ordinance in the authority area or under the orders made under it or has declared that there is a risk of any epidemic disease in the authority area as per the instructions of the Medical Officer of Health all persons involved in preparing, usage, serving, or assembling food on the premises shall maintain the premises in accordance with the directives made by the Medical Officer of Health or a Public Health Inspector or by the Chairman as per their instructions in addition to any other provisions of this By-Law.
- (28) (A) Any work related to food production on the premises shall not be open to a public road or public space or shall not be done in a space where air flows easily from such a public road or open space for the general public, and food production activities shall take place in an enclosed space within the premises.
- (B) Chimneys and absorbent fans shall be installed so that hot air and steam generated in the closed space for food production can flow easily.
- (C) Noise generated from any approved activity in food production shall not be a disturbance in any way to the public or consumers.
- (29) Tables for serving and consuming food on the premises shall be in very clean condition and disinfected after each serve and consumption and the towels used for cleaning shall be of clean condition.
- (30) Surfaces that are touched by the customers on the premises shall be cleaned frequently with disinfectants.
- (31) All cooked food that can be easily spoiled among the cooked food on the premises shall be kept at a temperature not exceeding four degrees Celsius or else below 60 degrees Celsius except in the following cases. Occasions where it is not, shall be as follows.
- (A) In cases where the entire collection is not exposed or displayed for sale for more than two hours or
- (B) When preparation and serving are done in an approximate time period.
- (32) Pastries, patties, savories, pizza and similar food which include cooked meat or fish which are consumed in the condition where there are normally sold on the premises shall be kept in containers with covers.
- (33) Milk for use on the premises shall be kept in a refrigerator at a temperature not exceeding seven degrees Celsius.
- (34) Pesticide materials kept on the premises shall be kept in a locked container at a specific place on the premises.
- (35) The area for employee facilities in the premises shall be with adequate sanitary facilities and shall be spacious and latrines for both males and females shall be maintained in accordance with sanitary standards.

- (36) Prior to disposal of waste collected in the premises, they shall be maintained in such a way that they do not affect the things used on the premises in any way and does not cause contamination of food.
- (37) Cleaning activities on the premises shall be carried out on a regular schedule subject to the following:
 - (A) A specific task assignment shall be maintained to adequately clean all sections of the institution, and to prioritize the cleaning and application of disinfectants in the specific areas described in this by-law.
 - (B) It shall be the work of the license holder to make sure that the work under (A) above is carried out precisely.
 - (C) Relevant cleaning activities shall be done to prevent dust during preparation and assembling of food in the premises.
 - (D) All utensils used in food preparation shall be maintained so that parts of cooked food do not remain in any way.
 - (E) The water used for cleaning, detergents and disinfectants shall be washed away so that it does not remain on the containers in any way.
 - (F) The ceiling, walls, *etc.*, of the premises shall be maintained so that no insects remain.
- (38) Pets such as dogs and cats shall not be raised on the premises in any way.
- (39) Employees working on the premises shall have undergone a training in food hygiene and shall be subjected to medical checkups within a period prescribed by the Medical Officer of Health to check that they are in proper health condition. Relevant records shall also be maintained so that they can be inspected at any time within the premises. Also the health check-ups on them shall be both clinical and epidemiological.
- (40) A health monitoring system shall be set up regarding the employees working on the premises and a process shall be put in place to get the health advice they need.
- (41) The waste generated on the premises shall be disposed in accordance with the waste management program implemented by the Council and in accordance with the written rules applicable to it.
- (42) If the waste generated on the premises is managed by the license holder himself, the Public Health Inspector in charge of the relevant area shall be informed and shall act in accordance with the instructions given by him.
- (43) Prior to commencing work on the premises, all persons working on the premises shall not engage in cooking and assembling food without adequate sanitation after using the toilet and after contact with dirt, and everyone who engaged in work so shall wear a clean and pocket-free apron.
- (44) Those who work as cashiers on the premises shall clean their hands frequently using disinfectants.
- (45) Adequate first aid facilities shall be provided on the premises.

- (46) When instructions have been given to use gloves or masks in the community in the event of an epidemic, if any person entering the premises disposes the mask or gloves they are wearing on the premises, the disposable mask or gloves shall be disposed to closed containers that are kept on the premises specifically for that purpose, and such waste shall be disposed in accordance with the waste management program and instructions implemented by the Council without mixing with other wastes.
 - (47) Every person involved in usage of food on the premises shall maintain maximum hygiene during handling of food and shall always wear hats, gloves, masks, shoes and appropriate hygienic clothing.
 - (48) A person suffering from any infectious disease or suspected to be infected with such a disease or a vector of such a disease or a person infected with wounds, skin infections or any other infectious disease shall not be employed on the premises.
 - (49) Every person involved in usage of food on the premises shall not engage in activities such as smoking, spitting, coughing, sneezing, or touching the nose, which can cause food contamination.
 - (50) If there are enough facts to think that any person is suffering from an infectious disease or an epidemic he shall not be entered to the premises.
 - (51) If an employee serving on the premises contracted an infectious, transmittable or skin disease, the license holder shall notify the Medical Officer of Health and upon such notification, all persons on the premises shall act in accordance with the quarantine instructions given by the Medical Officer of Health or a Public Health Inspector authorized by him.
 - (52) The license holder shall take every step to maintain the premises in such a way not to happen or not to do any activity in any way that could cause food contamination during food production.
 - (53) The license holder shall have provided all information regarding the employees working on the premises to the Chairman.
12. (1) It shall also be lawful for the Chairman to grade a premises relevant to this by-law according to the recommendations of the Medical Officer of Health, taking into account the quality when fulfilling the conditions under this by-law. Grading the premises.
- (2) Where the Chairman has graded under this section, the grade of the premises for the year relevant to the license and a certificate issued by the Chairman shall be displayed on the premises as visible to the public.
13. It is lawful for a Public Health Inspector or any other officer authorized by the Chairman to enter the premises at any reasonable time to inspect the premises whether it is in accordance with the provisions of this by-law and obtain the required samples. On-site inspection and obtaining samples.
14. Taking into account the possible causes of the spread of an epidemic in the area, when the Chairman has prescribed that the license holder shall enter into a statement of agreement regarding the maintenance of the premises as instructed by the Medical Officer of Health, the license holder shall enter into a statement of agreement with the Chairman, and the Chairman shall send a copy of it to the Medical Officer of Health.
15. In the event of an order is in effect under the Quarantine and Prevention of Diseases Ordinance

relating to any epidemic situation pertaining to the authority area, the premises shall be maintained in accordance with all the terms of that Order.

Power to enter the premises.

16. It is lawful for a Public Health Inspector or any other officer authorized by the Chairman to enter the premises at any reasonable time to inspect the premises whether it is in accordance with the provisions of this by-law and obtain the required samples.

Cancellation of the license.

17. (1) In the event that a premises licensed under this by-law violates the provisions of this by-law or acts against it, the Chairman shall submit a notice to the license holder informing a specific time period not more than thirty days to be in compliance with the by-law.

(2) After submission of a notice under this Section to the license holder, the Chairman may grant an additional period of time upon a reasonable request to further extend the time period to be in accordance with the terms of the relevant notice. The period granted so shall be subject to a maximum period of fourteen days in addition to the period specified in the first notice.

18. The Chairman shall cancel the relevant license in the event that the license holder neglect being complied with the notice within the period of time or additional period given under Section 17 above.

Penalty.

19. It is an offense to maintain a premises without a license to be obtained under this by-law or in violation of the provisions of this by-law and after being convicted by a Magistrate Court for that offense, shall be subject to a penalty under Sub-Section 122(2) of the Pradeshiya Sabha Act No. 15 of 1987. Further, after being found guilty of such an offense, if the violation continues even after the notice has been given by the Chairman or an officer authorized by him, he shall be subject to an additional penalty referred to in the aforesaid Sub-Section 122(2) of the Pradeshiya Sabha Act No. 15 of 1987 for each day of such violation.

Definitions

20. Unless other meaning is required with regard to text, in this by-law,

“Council” means Kalutara Pradeshiya Sabha,

“Chairman” means the person who hold the office of the Chairman of the Kalutara Pradeshiya Sabha at that time or the person who performs the duties of that position,

“Medical Officer of Health” means the person who holds the office of the Medical Officer of Health Division relevant to the authority area of the Pradeshiya Sabha,

“Public Health Inspector” means a person who holds the office of Public Health Inspector attached to the Pradeshiya Sabha or the office of the Medical Officer of Health relevant to the authority area of the Pradeshiya Sabha,

“License holder” means an institution, person or an individual who has obtained a license under this by-law,

“Authorized Officer” means the officer authorized by the Chairman of the Pradeshiya Sabha at that time,

"Contamination" means the entry or occurrence of contamination substance in a food,

"Disinfectants" means reducing the amount of microorganisms in the environment by chemicals or physical means to a state that do not reduce the safety or suitability of the food,

"Food hygiene" means all the conditions, steps and practices to ensure the safety and suitability of food at all stages in the food chain,

"Hazards" means a biological, chemical, or condition that is likely to cause adverse health effects,

"Food" means the things produced and kept for sale in the institution for the human consumption as food or drinks and the separate things used to prepare food.

"Reasonable time" means any time engaged in a licensed activity or related work,

"Basic Law" means the Pradeshiya Sabha Act No. 15 of 1987 .

21. If there is any inconsistency between the Sinhala, Tamil and English texts of this by-law, the Sinhala text shall prevail. Inconsistency between texts.

Schedule

Application to obtain a license to maintain a food production place for the year.....

01. Name of the applicant: -
02. Personal Address: -
03. National Identity Card Number: -
04. Phone number: -
05. Name of the business : -
06. Start year: -
07. Address of the place of business: -
08. Grama Niladhari Division: -
09. Assessment Number: -
10. If the business name registration has been obtained, its reference number: -
11. Information of the manager or agent of the business place,
 - I. Name and personal address
 - II. National Identity Card Number
 - III. Telephone Number Mobile: - Fixed: -
12. Number and date of the construction approval plan relevant to the business: -
(Copies should be attached)

I certify that the above information is true and correct.

I request you to issue me a license for the year for the place where the business mentioned above is conducted.

Date:-

.....
Signature of the applicant.

For office use

Revenue Inspector,

Kindly request to provide you with your observations and recommendations promptly for the issuance of a license in respect of the application mentioned in the back.

Date:-

.....
Secretary.

Secretary,

Recommended/Not recommended issuing license.

Date :-

.....
Revenue Inspector.

Medical Officer of Health,

Kindly request that your observations and recommendations promptly for the issuance of a license in respect of the application mentioned in the back.

Date :-

.....
Secretary.

Medical Officer of Health,

Compliance with By-Laws and other rules and regulations. I will report for the recommendation of issuing a license.

Date :-

.....
Public Health Inspector.

Secretary,

I recommend/ not recommend the issuance of a license for the relevant place as per above application. (If not recommended, state the reason.)

Date :-

.....
Medical Officer of Health.

BY-LAW REGARDING VEGETABLES AND FRUITS SELLING PLACES

1. This by-law is enacted to regulate, supervise, inspect and control the vegetables and fruits selling places in the authority area of the Kalutara. Pradeshiya Sabha.
2. This by-law is cited as the By-Law Regarding Vegetables and Fruits Selling Places in the Kalutara Pradeshiya Sabha. Short title.
3. The Pradeshiya Sabha is vested with powers to formulate these by- laws by virtue of Section 122 of Pradeshiya Sabha Act No.15 of 1987 read with the Sub-Section 126(ix) of the said Act.
4. No person within the jurisdiction of the Kalutara Pradeshiya Sabha (hereinafter referred to as the authority area) shall maintain a vegetables and fruits selling center or a storage center for such sale (hereinafter referred to as the premises) except under a license obtained from the Chairman under this by-law.
5. All persons applying for a license under this by-law shall apply for it under an application prepared in accordance with the schedule published in this by-law. Applying for a License.
6. Submission of an application under the above section can be made by fulfilling the requirements and submitting an application to the Chairman by registered post, handing over in hand or by e-mail to the extent permitted by the Council.
7. Any person applying for a license under this by-law shall not be issued a license by the Chairman unless the following conditions are met herein. Conditions for a license.
 - (1) Permanent constructions related to the premises shall be constructions in accordance with the provisions mentioned under the Urban Development Authority Act or the Housing and Urban Development Ordinance.
 - (2) The material used for construction shall be made of materials that do not retain living organisms, and permanent constructions shall be made on the premises to prevent the entry and retention of pests and fumes.
 - (3) The premises shall be designed to be easily cleaned and in a way so that water does not retain.
 - (4) The interior of the premises shall be designed so that the nature of the fruits and vegetables can be inspected always.
 - (5) The building, walls of the premises shall be made of washable materials with waterproofing so as not to absorb water.
 - (6) Every construction on the premises shall be free of holes cause for the retention of insects.
 - (7) Surfaces where vegetables and fruits are stored and kept shall be easily disinfected and made of non-absorbent materials.
 - (8) Surfaces where vegetables and fruits are stored and kept shall be inactive to disinfectants and cleaning agents.
 - (9) If vegetables or fruits are stored or stored and kept on the premises; refrigeration facilities shall be in place to maintain the specified temperature.

- (10) When keeping vegetables and fruits for sale, refrigeration facilities shall be available to maintain it at low temperatures.
 - (11) There shall be a ceiling or concrete surface above the place where vegetables and fruits are stored or kept.
 - (12) The premises shall be air conditioned or windows and other openings shall be set so that air can be flow well.
 - (13) The interior parts of the premises shall be constructed to be easily cleaned.
 - (14) The water required for the premises shall be supplied from within or outside the premises and shall be equipped with storage facilities for continuous water supply.
 - (15) The premises shall have a separate place for washing vegetables and fruits and shall be constructed so that water does not retain in the premises.
 - (16) Internal drains of the premises shall be directed to a soakage pit or a septic tank and if there is a source of water in the premises of the respective soakage pit or septic tank, it shall be set at a distance of at least 15.25 meters away.
 - (17) For the employees on the premises;
 - (i) If staying as residents, there shall be rooms with adequate sanitary facilities for accommodation.
 - (ii) Latrine facilities shall be provided as appropriate.
 - (18) Platforms for keeping or storing vegetables and fruits in the premises shall be set at a height of at least 28 cm above the ground.
- Issuing a license. 8. Within fourteen days of receipt of the application for a license to be issued under this by-law, the Chairman;
- (1) Shall issue a license pertaining to the premises to the applicant when the conditions under Section 7 are complied with.
 - (2) Shall reject the relevant application with reasons if the conditions under Section 7 are not complied with.
- Fees for a license. 9. (1) The fees to be charged for a license issued under this by-law shall be the fees to be decided and declared by the Council subject to the provisions of the Basic Law.
- Inspection fees. (2) It shall be lawful for the Council to decide and charge an inspection fee for site inspections related to the issuance of a license.
- Validity period. 10. If a license issued under this by-law is not previously cancelled in accordance with the provisions of this by-law, it shall be valid until December thirty first of the year in which the license applies.
- Conditions applicable to a license. 11. All persons receives a license under this by-law shall act in accordance with the following conditions herein.
- (1) If there are any terms prescribed by the Chairman on the advice of the Medical Officer of Health time to time in order to control an epidemic situation declared throughout Sri Lanka or in any part

of the country or relevant to the authority area or in any case where an epidemic has been declared applicable under the regulations made under Quarantine and Prevention of Diseases Ordinance, the premises shall be maintained subject to all such terms.

- (2) All persons employed on the premises shall act in accordance with all terms made by the Chairman on the advice of the Medical Officer of Health in any case where an epidemic is declared applicable under the regulations made under the Quarantine and Prevention of Disease Ordinance.
- (3) Whenever there is a suspicion of an epidemic in the authority area, relating to all persons who come to the premises expecting services, shall not related to the transactions unless they visit the premises in accordance with the relevant health guidelines issued.
- (4) When there is an epidemic in the authority area or risk of an epidemic, the health safety instructions prescribed by the Director General of Health Services or the Medical Officer of Health or the Chairman as per their instructions shall be properly implemented in the premises in order to protect from it and the license holder shall be satisfied that it is being so.
- (5) All drains in the premises shall be easily drained and the effluent and sewage shall be directed to the septic tank, soakage pit or to the central treatment unit according to the approved procedures and the necessary action shall be taken to prevent contamination.
- (6) No drain or sewage pipe in the premises shall be directed in any way to a public drain of the road or outside area.
- (7) The premises shall be maintained in such a way that there is no external odor due to the discharge of wastewater or discharge of waste.
- (8) Light bulbs fixed above the vegetables or fruits for sale or stored shall be of a safe condition and all of them shall be covered.
- (9) Disposal of waste collected in the premises shall be done in accordance with the waste management program implemented by the Pradeshiya Sabha and in accordance with the applicable written laws in this regard.
- (10) If the waste collected at the premises is managed by the license holder himself, it shall be in accordance with a procedure prescribed by the Public Health Inspector or the Medical Officer of Health.
- (11) When using weighing equipment for the sale of vegetables and fruits in the premises, it shall be done in accordance with the prescribed standards.
- (12) If prepare fruits to make it easier to eat or to prepare fruit juices on the premises, everyone who does so shall not engage in any activity such as fruit preparation or fruit juice preparation without the use of gloves and hats.
- (13) When preparing fruit for consumption, shall always use drinking water and ice made from that water.
- (14) Preparation of fruits for consumption shall not be done in advance except in the presence of consumers.
- (15) Vegetables and fruits shall be kept for sale so that they do not mix with rotten vegetables and fruits.

- (16) The premises shall be kept in a clean condition at all times and no activities shall be carried out on the premises in such a manner as to cause any contamination of vegetables or fruits in the premises for any reason.
- (17) When the Chairman has declared a disease condition applicable under the Quarantine and Prevention of Disease Ordinance in the authority area or under the orders made under it or has declared that there is a risk of any epidemic disease in the authority area as per the instructions of the Medical Officer of Health all persons working on the premises shall maintain the premises in accordance with the directives made by the Medical Officer of Health or a Public Health Inspector or by the Chairman as per their instructions in addition to any other provisions of this By-Law.
- (18) Prior to disposal of waste collected in the premises, they shall be maintained in such a way that they do not affect the things used on the premises in any way and does not cause contamination of vegetables and fruits.
- (19) Pets such as dogs and cats shall not be raised on the premises in any way.
- (20) A health monitoring system shall be set up for the employees working on the premises and a process shall be put in place to get the health advice they need.
- (21) Those who work as cashiers on the premises shall clean their hands frequently using disinfectants.
- (22) When instructions have been given to use gloves or masks in the community in the event of an epidemic, if any person entering the premises disposes the mask or gloves they are wearing on the premises, the disposable mask or gloves shall be disposed to closed containers that are kept on the premises specifically for that purpose, and such waste shall be disposed in accordance with the waste management program and instructions implemented by the Council without mixing with other wastes.
- (23) A person suffering from any infectious disease or suspected to be infected with such a disease or a vector of such a disease or a person infected with wounds, skin infections or any other infectious disease shall not be employed on the premises.
- (24) If there are enough facts to think that any person is suffering from an infectious disease or an epidemic, he shall not be allowed to the premises in any event.
- (25) Employee serving on the premises contracted an infectious, transmittable or skin disease, the license holder shall notify the Medical Officer of Health and upon such notification, all persons on the premises shall act in accordance with the quarantine instructions given by the Medical Officer of Health or a Public Health Inspector authorized by him.

On-site inspection
and obtaining
samples.

12. It is lawful for a Public Health Inspector or any other officer authorized by the Chairman to enter the premises at any reasonable time to inspect the premises whether it is in accordance with the provisions of this by-law and obtain the required samples.
13. Taking into account the possible causes of the spread of an epidemic in the area, when the Chairman has prescribed that the license holder shall enter into a statement of agreement regarding the maintenance of the premises as instructed by the Medical Officer of Health, the license holder shall enter into a statement of agreement with the Chairman, and the Chairman shall send a copy of it to the Medical Officer of Health.

- 14.(1) In the event that a premises licensed under this by-law violates the provisions of this by-law or acts against it, the Chairman shall submit a notice to the license holder informing a specific time period not more than thirty days to be in compliance with the by-law. Cancellation of the license.
- (2) After submission of a notice under this Section to the license holder, the Chairman may grant an additional period of time upon a reasonable request to further extend the time period to be in accordance with the terms of the relevant notice. The period granted so shall be subject to a maximum period of fourteen days in addition to the period specified in the first notice.
15. The Chairman shall cancel the relevant license in the event that the license holder neglect being complied with the notice within the period of time or additional period given under Section 14 above.
16. It is an offense to maintain a premises without a license to be obtained under this by-law or in violation of the provisions of this by-law and after being convicted by a Magistrate Court for that offense, shall be subject to a penalty under Sub-Section 122(2) of the Pradeshiya Sabha Act No. 15 of 1987. Further, after being found guilty of such an offense, if the violation continues even after the notice has been given by the Chairman or an officer authorized by him, he shall be subject to an additional penalty referred to in the aforesaid Sub-Section 122(2) of the Pradeshiya Sabha Act No. 15 of 1987 for each day of such violation. Penalty.
17. Unless other meaning is required with regard to text, in this by-law,
- “Council” means Kalutara Pradeshiya Sabha,
- “Chairman” means the person who hold the office of the Chairman of the Kalutara Pradeshiya Sabha at that time or the person who performs the duties of that position,
- “Medical Officer of Health” means the person who holds the office of the Medical Officer of Health Division relevant to the authority area of the Pradeshiya Sabha,
- “Public Health Inspector” means a person who holds the office of Public Health Inspector attached to the Pradeshiya Sabha or the office of the Medical Officer of Health relevant to the authority area of the Pradeshiya Sabha,
- “License holder” means an institution, person or an individual who has obtained a license under this by-law, Definitions.
- “Authorized Officer” means the officer authorized by the Chairman of the Pradeshiya Sabha at that time,
- “Contamination” means the entry or occurrence of contamination substance in a food,
- “Disinfectants” means reducing the amount of microorganisms in the environment by chemicals or physical means to a state that do not reduce the safety or suitability of the food,
- “Reasonable time” means any time engaged in a licensed activity or related work,
- “Basic Law” means Pradeshiya Sabha Act No. 15 of 1987.
18. If there is any inconsistency between the Sinhala, Tamil and English texts of this by-law, the Sinhala text shall prevail. Inconsistency between texts

Schedule

Application to obtain a license to maintain a vegetables/fruits trade stall for the year

01. Name of the applicant: -
02. Personal Address: -
03. National Identity Card Number: -
04. Phone number: -
05. Name of the business : -
06. Address of the place of business: -
07. Grama Niladhari Division: -
08. Assessment Number: -
09. If the business name registration has been obtained, its reference number: -
10. Information of the manager or agent of the business place,
 - I. Name and personal address
 - II. National Identity Card Number
 - III. Telephone Number Mobile: - Fixed: -
11. Number and date of the construction approval plan relevant to the business: -
(Copies should be attached)

I certify that the above information is true and correct.

I request you to issue me a license for the year for the place where the trade mentioned above is conducted.

Date:-

.....
Signature of the applicant.

For office use

Revenue Inspector,

Kindly request to provide you with your observations and recommendations promptly for the issuance of a license in respect of the application mentioned in the back.

Date:-

.....
Secretary.

Secretary,

Recommended/Not recommended issuing license.

Date :-

.....
Revenue Inspector.

Medical Officer of Health,

Kindly request that your observations and recommendations promptly for the issuance of a license in respect of the application mentioned in the back.

Date :-

.....
Secretary.

Medical Officer of Health,

Compliance with By-Laws and other rules and regulations. I will report for the recommendation of issuing a license.

Date :-

.....
Public Health Inspector.

Secretary,

I recommend/not recommend the issuance of a license for the relevant place as per above application.
(If not recommended, state the reason.)

Date :-

.....
Medical Officer of Health.

BY-LAW REGARDING RECEPTION HALLS

1. This by-law is enacted to protect the public health under the activities of the reception halls maintained in the authority area of the Kalutara Pradeshiya Sabha and regulate, supervise and control such places.
- Short title. 2. This by-law is cited as the By-Law Regarding Reception Halls in the Kalutara. Pradeshiya Sabha.
- Legal Power. 3. The Pradeshiya Sabha is vested with powers to formulate these by- laws by virtue of Section 122 of Pradeshiya Sabha Act No.15 of 1987 read with the Sub-Section 126(ix) of the said Act.
4. No person within the jurisdiction of the Kalutara Pradeshiya Sabha (hereinafter referred to as the authority area) shall maintain a reception hall except under a license obtained from the Chairman under this by-law.
- Applying for a License 5. All persons applying for a license under this by-law shall apply for it under an application prepared in accordance with the schedule under this by-law.
6. Submission of an application under the above section can be made by fulfilling the requirements and submitting an application to the Chairman by registered post, handing over in hand or by e-mail to the extent permitted by the Council.
- Conditions for a license 7. Any person applying for a license under this by-law shall not be issued a license by the Chairman unless the following conditions are met herein.
 - (1) All constructions relating to the premises shall be constructions duly made in accordance with the provisions of the Urban Development Authority Act No. 41 of 1978 or the Housing and Urban Development Ordinance and;
 - (A) If the authority area is subject to zoning, the relevant constructions shall be located accordingly.
 - (B) The Certificate of Conformity shall be obtained prior to construction use.
 - (2) All constructions shall be well made of permanent construction materials.
 - (3) The reception halls shall have the necessary reservations, divisions and placements to prevent cross-contamination, and the interior shall be designed to maintain adequate distance.
 - (4) Adequate space shall be maintained inside the halls so that operations can be carried out without interruption.
 - (5) Premises including buildings shall be designed to prevent the entry and retention of pests and contamination substances.
 - (6) The premises shall be designed to facilitate easy and proper cleaning and to facilitate proper supervision of food hygiene.
 - (7) The stages in the premises shall be of proper standard and the halls shall be designed to absorb internal sound.
 - (8) The interior of the hall shall be air-conditioned or have windows that can be opened to not less than one-fifteenth of the area of the hall leaving space for adequate ventilation.

- (9) Adequate lighting in halls shall be arranged in a natural or artificial way.
- (10) Doors shall have a smooth and non-absorbent surface and shall be fixed in such a way that automatically closed when appropriate.
- (11) Fire protection equipment shall be fixed in all halls in the premises.
- (12) There shall be no fungus growth or leakage from any of the fixtures or structures installed in the premises.
- (13) Window openings in the premises shall be easy to clean and shall be fitted with nets to prevent insects from entering.
- (14) There shall be separate latrine facilities for customers and employees, which shall be maintained separately for both males and females.
- (15) Buildings on the premises shall be made with access facilities for the disabled.
- (16) Closed drains with slopes preventing sedimentation shall be installed as not to retain wastewater and sewage, and all drains shall be directed to a septic tank, soakage pit or central treatment unit constructed in accordance with an approved plan, and an approved method shall be followed through a water trap or plan to prevent contamination between the premises and the final disposal.
- (17) The waste collected in the premises shall be handed over in accordance with a waste management program implemented by the Pradeshiya Sabha or a specific arrangement shall be made for the disposal of waste in accordance with a procedure prescribed by the Medical Officer of Health or Public Health Inspector.
- (18) Drinking water shall be adequately supplied for the use in the premises and shall be stored in containers under specified standards.
- (19) Facilities made with stainless steel or other suitable material for hand washing shall be supplied on the premises.
- (20) In the cooking and processing area on the premises,
 - (A) Floor and walls shall be made of washable and non-slip and non-absorbent materials.
 - (B) All surfaces shall be inactive for easily cleaned detergents and disinfectants.
 - (C) The ceiling shall be constructed to minimize condensation and to prevent fungus formation and cracking.
 - (D) If there are any windows and other openings, they shall be shielded with covers prevent entering insects.
 - (E) Absorbent fans shall be installed to allow easy flow of air from outside and to flow exhaust air out.
- (21) In relation to the place where food is served to the customers on the premises;
 - (A) The space for serving food shall be prepared with more space so that food can be obtained with adequate distance.

(B) When food is consumed in an open space, it shall be designed to get well ventilated and prevent birds and other animals from entering.

(22) Adequate parking lots shall be provided for visitors to the premises.

(23) For the employees on the premises,

(A) If resided, there shall be room facilities with adequate sanitary facilities for the accommodation, and it shall be in a place separate from the food processing and storage area.

(B) Rooms shall be arranged so that at least four square meters of space is available for each employee to sleep.

(C) Adequate latrine and bathroom facilities shall be provided.

(24) The premises shall be equipped with automatic generators of sufficient capacity to be utilized in case of emergency power failure.

Issuing a license. 8. Within fourteen days of receipt of the application for a license to be issued under this by-law, the Chairman;

(1) Shall issue a license pertaining to the premises to the applicant when the conditions under Section 7 are complied with.

(2) Shall reject the relevant application with reasons if the conditions under Section 7 are not complied with.

Fees for a license. 9. (1) The fees to be charged for a license issued under this by-law shall be the fees to be decided and declared by the Council subject to the provisions of the Basic Law.

Inspection fees. (2) It shall be lawful for the Council to decide and charge an inspection fee for site inspections related to the issuance of a license.

Validity period. 10. If a license issued under this by-law is not previously cancelled in accordance with the provisions of this by-law, it shall be valid until December 31 of the year in which the license applies.

Conditions applicable to a license. 11. All persons receives a license under this by-law shall act in accordance with the following conditions herein.

(1) If there are any terms prescribed by the Chairman on the advice of the Medical Officer of Health time to time in order to control an epidemic situation declared throughout Sri Lanka or in any part of the country or relevant to the authority area or in any case where an epidemic has been declared applicable under the Quarantine and Prevention of Diseases Ordinance or regulations made under it, the premises shall be maintained subject to all such terms.

(2) All persons employed on the premises shall act in accordance with all guidelines made by the Chairman on the advice of the Medical Officer of Health in any case where a disease is declared applicable under the orders made under the Quarantine and Prevention of Disease Ordinance.

(3) Whenever there is a suspicion of an epidemic in the authority area, relating to all persons who come to the premises expecting services, services shall not be provided unless they visit the premises in

accordance with the relevant health guidelines issued.

- (4) When there is an epidemic in the authority area or risk of an epidemic, the health safety instructions prescribed by the Director General of Health Services or the Medical Officer of Health or the Chairman as per their instructions shall be properly implemented in the premises in order to protect from it and the license holder shall be satisfied that it is being so.
- (5) All drains in the premises shall be easily drained and the effluent and sewage shall be directed to the septic tank, soakage pit or to the central treatment unit according to the approved procedures and the necessary action shall be taken to prevent contamination.
- (6) All latrines and hand washing places on the premises shall be cleaned frequently with disinfectant and appropriate method shall be maintained to ensure that all of them are being so.
- (7) The interior floor of the premises shall be arranged in such a way that it does not slip easily, and if it is somewhat easier to do so during the cleaning process boards mentioning on that regard shall be placed in such a place visible to the customers.
- (8) Drains in the premises shall be made as not to retain water and shall be cleaned with disinfectants twice daily.
- (9) No drain or sewage pipe in the premises shall be directed in any way to a public drain of the road or outside area.
- (10) The premises shall be maintained in such a way that there is no external odor due to the discharge of wastewater or discharge of waste.
- (11) Adequate facilities shall be in place to regulate the temperature required for cooking and refrigeration of food, and records shall be maintained that it is being so.
- (12) All equipment and utensils used for food preparation shall be maintained in accordance with the following requirements.
 - (A) All equipment and utensils used in food preparation shall be made of a non-absorbent material that does not emit any toxins, tastes or odors and shall be made of stainless material.
 - (B) All equipment and utensils shall be of such a nature as to be easily cleaned.
 - (C) Containers used for waste disposal shall be made of metal or non-leaking materials and shall have lids.
 - (D) All equipment and utensil maintained shall be of a suitable condition to be used.
- (13) Containers used for serving food shall be such that they can be served in a way that does not harm the taste of the food.
- (14) Premises shall have separate refrigeration facilities to store things used for cooking food and cooked food or similar.
- (15) Fruits and vegetables used in food preparation shall be thoroughly washed, cleaned and used.
- (16) Water used in the premises shall be kept in non-hazardous containers free from

contamination.

- (17) The ice used in the premises shall be made from drinking water.
- (18) Water pipes in the premises shall be maintained so that they can be distinguished from any other pipeline.
- (19) A specific internal arrangement shall be in place to ensure that every food item cooked on the premises is delivered to customers without hazard, and that specifically assigned persons shall be employed to regulate it.
- (20) Meat and fish brought in for food shall be stored in a separate refrigerator on the premises and shall always be kept at a temperature of two degrees Celsius until used without contamination.
- (21) All persons involved in serving, handling or assembling food on the premises;
 - (A) Shall not touch or contact food with their open hands or fingers
 - (B) Utensils and gloves used for handling food shall be a favorable use for food.
 - (C) A clean towel shall be used to wipe hands.
 - (D) The bottom of a used plate, cup or other container shall always be kept out of contact with any food.
 - (E) All utensils used for food serving shall be kept clean and in separate containers.
 - (F) Employees shall work to handle, assemble and serve food in such a way that their activity, usage does not cause food contamination or microbial proliferation in any way.
- (22) When the Chairman has declared a disease condition applicable under the Quarantine and Prevention of Disease Ordinance in the authority area or under the orders made under it or has declared that there is a risk of any epidemic disease in the authority area as per the instructions of the Medical Officer of Health all persons involved in preparing, handling, serving, or assembling food on the premises shall maintain the premises in accordance with the directives made by the Medical Officer of Health or a Public Health Inspector or by the Chairman as per their instructions in addition to any other provisions of this By-Law.
- (23) Tables for serving and consuming food on the premises shall be in very clean condition and disinfected after each serve and consumption and the towels used for cleaning shall be of clean condition.
- (24) Surfaces that are touched by the customers on the premises shall be cleaned frequently with disinfectants.
- (25) Adequate facilities for hand washing and hand drying with disinfectant shall be provided in the processing area of the premises and in the food consumption areas of the premises and adequate lighting shall be maintained in the premises.
- (26) Prior to disposal of waste collected in the premises, they shall be maintained in such a way that they do not affect the things used on the premises in any way and does not cause contamination of food.
- (27) Pets such as dogs and cats shall not be kept on the premises in any way.

- (28) Employees working on the premises shall have undergone a training in food hygiene and shall be subjected to medical checkups within a period prescribed by the Medical Officer of Health to check that they are in proper health condition. Relevant records shall also be maintained so that they can be inspected at any time within the premises. Also the health check-ups on them shall be both clinical and epidemiological.
- (29) A health monitoring system shall be set up for the employees working on the premises and a process shall be put in place to get the health advice they need.
- (30) The waste generated on the premises shall be disposed in accordance with the waste management program implemented by the Council and in accordance with the written rules applicable to it.
- (31) If the waste generated on the premises is managed by the license holder himself, the Public Health Inspector in charge of the relevant area shall be informed and shall act in accordance with the instructions given by him.
- (32) Adequate first aid facilities shall be provided on the premises.
- (33) When instructions have been given to use gloves or masks in the community in the event of an epidemic, if any person entering the premises disposes the mask or gloves they are wearing on the premises, the disposable mask or gloves shall be disposed to closed containers that are kept on the premises specifically for that purpose, and such waste shall be disposed in accordance with the waste management program and instructions implemented by the Council without mixing with other wastes.
- (34) Every person who handle food on the premises shall maintain maximum hygiene during handling of food and shall always wear hats, gloves, masks, shoes and appropriate hygienic clothing.
- (35) A person suffering from any infectious disease or suspected to be infected with such a disease or a vector of such a disease or a person infected with wounds, skin infections or any other infectious disease shall not be employed on the premises.
- (36) Every person involved in handling of food on the premises where the reception halls are located shall not engage in activities such as smoking, spitting, coughing, sneezing, or touching the nose, which can cause food contamination.
- (37) If there are enough facts to think that any person is suffering from an infectious disease or an epidemic he shall not be entered to the festive occasions on the premises.
- (38) In the event of any person visits the premises for consumption of food or employee serving on the premises of a reception hall contracted an infectious, transmittable or skin disease, the license holder shall notify the Medical Officer of Health and upon such notification, all persons on the premises shall act in accordance with the quarantine instructions given by the Medical Officer of Health or a Public Health Inspector authorized by him.
- (39) When the premises where the reception halls are located are subjected to the quarantine process, the premises shall not be used for any festive occasions until a certificate has been issued by the Medical Officer of Health or the Public Health Inspector stating that the quarantine period is over and the premises have been completely disinfected.

(40) Health care measures that are implemented on the premises shall be prominently displayed on the premises in such a way that everyone who handles and consumes food in the reception halls can learn about the relevant instructions and shall acted according to them.

(41) The license holder shall have provided all information regarding the employees working on the premises to the Chairman.

12. Taking into account the possible causes of the spread of an epidemic in the area, when the Chairman has prescribed that the license holder shall enter into a statement of agreement regarding the maintenance of the premises as instructed by the Medical Officer of Health, the license holder shall enter into a statement of agreement with the Chairman, and the Chairman shall send a copy of it to the Medical Officer of Health.

13. In the event of an order is in effect under the Quarantine and Prevention of Diseases Ordinance relating to any epidemic situation pertaining to the authority area, the premises shall be maintained in accordance with all the terms of that Order.

Power to enter the premises.

14. It is lawful for a Public Health Inspector or any other officer authorized by the Chairman to enter the premises at any reasonable time to inspect the premises whether it is in accordance with the provisions of this by-law and obtain the required samples.

15.(1) In the event that a premises licensed under this by-law violates the provisions of this by-law or acts against it, the Chairman shall submit a notice to the license holder informing a specific time period not more than thirty days to be in compliance with the by-law.

(2) After submission of a notice under this Section to the license holder, the Chairman may grant an additional period of time upon a reasonable request to further extend the time period to be in accordance with the terms of the relevant notice. The period granted so shall be subject to a maximum period of fourteen days in addition to the period specified in the first notice.

Cancellation of the license.

16. The Chairman shall cancel the relevant license in the event that the license holder neglect being complied with the notice within the period of time or additional period given under Section 15 above.

Penalty.

17. It is an offense to maintain a premises without a license to be obtained under this by-law or in violation of the provisions of this by-law and after being convicted by a Magistrate Court for that offense, shall be subject to a penalty under Subsection 122(2) of the Pradeshiya Sabha Act No. 15 of 1987. Further, after being found guilty of such an offense, if the violation continues even after the notice has been given by the Chairman or an officer authorized by him, he shall be subject to an additional penalty referred to in the aforesaid Subsection 122(2) of the Pradeshiya Sabha Act No. 15 of 1987 for each day of such violation.

Definitions.

18. Unless other meaning is required with regard to text, in this by-law,

“Council” means Kalutara Pradeshiya Sabha,

“Chairman” means the person who hold the office of the Chairman of the Kalutara Pradeshiya Sabha at that time or the person who performs the duties of that position,

“Medical Officer of Health” means the person who holds the office of the Medical Officer of Health Division relevant to the authority area of the Pradeshiya Sabha

“Public Health Inspector” means a person who holds the office of Public Health Inspector attached to the Pradeshiya Sabha or the office of the Medical Officer of Health relevant to the authority area of

the Pradeshiya Sabha,

“License holder” means an institution, person or an individual who has obtained a license under this by-law,

“Authorized Officer” means the officer authorized by the Chairman of the Pradeshiya Sabha at that time,

"Contamination" means the entry or occurrence of contamination substance in a food,

"Disinfectants" means reducing the amount of microorganisms in the environment by chemicals or physical means to a state that do not reduce the safety or suitability of the food,

"Food hygiene" means all the conditions, steps and practices to ensure the safety and suitability of food at all stages in the food chain,

"Hazards" means a biological, chemical, or condition that is likely to cause adverse health effects,

"Food safety" means the responsibility not cause any harm to the customer during preparing, processing, selling, storing, transporting food or while eating,

"Reasonable time" means any time engaged in a licensed activity or related work,

"Basic Law" means the Pradeshiya Sabha Act No. 15 of 1987.

19. In the event of any inconsistency between the Sinhala, English and Tamil texts of this by-law the Sinhala text shall prevail. Inconsistency between texts

Schedule

Application to obtain a Trade License for the year.....

01. Name of the applicant: -
02. Personal Address: -
03. National Identity Card Number: -
04. Phone number: -
05. Start year: -
06. Address where the reception hall is located : -
07. Grama Niladhari Division: -
08. Assessment Number: -
09. If the business name registration has been obtained, its reference number:-
10. Information of the manager or agent of the business place,

I. Name and personal address

II. National Identity Card Number

III. Telephone Number Mobile: - Fixed: -

11. Number and date of the construction approval plan relevant to the business: -
(Copies should be attached)

I certify that the above information is true and correct.

Date:-

.....

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Signature of the applicant.

For office use

Revenue Inspector,

I kindly request you to provide me your observations and recommendations promptly for the issuance of a license in relation to the application mentioned on the back.

Date: -

.....
Secretary.

Secretary,

I recommend/do not recommend granting the license.

Date :-

.....
Revenue Inspector.

Medical Officer of Health,

I kindly request you to provide me your observations and recommendations promptly for the issuance of a license in relation to the application mentioned on the back.

Date:-

.....
Secretary.

Medical Officer of Health,

Eligible in accordance with by-law and other rules and regulations. I report to recommend the issuance of licenses.

Date :-

.....
Public Health Inspector.

Secretary,

I recommend / do not recommend issuing a license for the relevant place as per the above application.
(If not recommended, state the reason).

Date:-

.....
Medical Officer of Health.

BY-LAW RELATING TO BEAUTY CENTERS

	1.	This by-law is enacted to control and regulate the maintenance of beauty centers maintained within the authority area of the Kalutara Pradeshiya Sabha.
Short title.	2.	This by-law is cited as the By-Law Relating To Beauty Centers of the Kalutara Pradeshiya Sabha.
Legal Power	3.	The Pradeshiya Sabha is vested with powers to formulate these by- laws by virtue of Section 122 of Pradeshiya Sabha Act No.15 of 1987 read with the Sub-Section 126(xxiii) of the said Act.
	4.	No person within the jurisdiction of the Kalutara Pradeshiya Sabha (hereinafter referred to as the authority area) shall maintain a beauty center (hereinafter referred to as the premises) except under a license obtained from the Chairman under this by-law.
Applying for a License.	5.	All persons applying for a license under this by-law shall apply for it under an application prepared in accordance with the schedule under this by-law.
Conditions related to a license.	6.	Submission of an application under the above section can be made by fulfilling the requirements and submitting an application to the Chairman by registered post, handing over in hand or by e-mail to the extent permitted by the Council.
	7.	Any person applying for a license under this by-law shall not be issued a license by the Chairman unless the following conditions are met herein.
	(1)	Constructions relating to the premises shall be constructions duly made in accordance with the provisions of the Urban Development Authority Act No. 41 of 1978 or the Housing and Urban Development Ordinance.
	(2)	The premises shall be maintained under its own business name.
	(3)	The License holder shall confirm that a person with a Certificate in Beauty Certificate or a similar vocational competency certificate conducted by a training institute registered with the Tertiary and Vocational Education Commission is employed on the premises.
	(4)	Constructions on the premises shall be made of permanent construction materials and shall be of good and hygienic condition.
	(5)	Adequate space shall be provided in proportion to the number of clients simultaneously serving not less than 2.25 square meters of floor area separately for each client.
	(6)	For any client who arrive therein in anticipation of services shall provide with adequate space to be seated conveniently with at least 1:5 meters distance from the place where another client is being served.

-
- (7) All walls of the premises shall be not less than 2.7 meters in height and shall be painted.
 - (8) All sections of the premises shall be finished with a ceiling or concrete plate and shall be at least 2.7 meters above the ground level.
 - (9) The premises shall be air-conditioned or have windows that can be opened sufficiently to allow air to flow in from the outside.
 - (10) The premises shall be well finished so that the relevant light is well received.
 - (11) Drinking water shall be adequately supplied for the use of the premises and shall be stored in containers which meet the standards.
 - (12) Facilities shall be provided for bathing when required after providing the services of the client.
 - (13) A separate part of the premises shall be maintained for washing the equipment and containers used for the clients.
 - (14) There shall be adequate latrine facilities for the employees and customers of the institution and it shall be constructed of permanent materials in a proper and hygienic manner.
 - (15) Specific equipment shall be fixed for washing the hands, head or face of the customers and they shall be cleaned and disinfected after use by one person before being used by another and that equipment shall be made of stainless materials.
 - (16) Adequate measures shall be taken not flow the wastewater discharged from the premises into public drains or open ground and shall be properly directed to a septic tank or a soakage pit.
 - (17) A septic tank or soakage pit relevant to the premises shall not be open to the outside and if there is a water source it shall be constructed at a distance of at least 15.25 meters away.
 - (18) If there is a disposal of chemical wastewater from the premises, the relevant disposal shall be made in accordance with a procedure recommended by the Central Environmental Authority or the Medical Officer of Health or the Public Health Inspector.
 - (19) There shall be a separate area on the premises with adequate facilities for the customers waiting for services.
 - (20) The electrical circuit in the premises shall be checked by a professional and certified to be safe from leakage.
8. Within fourteen days of receipt of an application for a license made under this by-law, the Issuing a license Chairman;

- (1) Shall issue a license to the applicant related to the premises if it is in accordance with the conditions mentioned in Section 7.
- (2) Shall reject the relevant application with reasons if it is not complied with the conditions mentioned in Section 7.
- fees for a license 9. (1) The fees to be charged for a license issued under this by-law shall be the fees to be decided and declared by the Council subject to the provisions of the Basic Law.
- (2) It shall be lawful for the Council to decide and charge an inspection fee for site inspections in connection with the issuance of a license.
10. If a license issued under this by-law is not previously cancelled in accordance with the provisions of this by-law, it shall be valid until December thirty first of the year in which the license is related.
11. All persons received a license under this by-law shall act in accordance with the following conditions herein.
- (1) If there are any terms prescribed by the Chairman on the advice of the Medical Officer of Health time to time in order to control an epidemic situation declared throughout Sri Lanka or in any part of the country or relevant to the authority area or in any case where an epidemic has been declared applicable under the Quarantine and Prevention of Diseases Ordinance or regulations made under it, the premises shall be maintained subject to all such terms.
- (2) All persons employed on the premises shall act in accordance with all orders issued by the Chairman on the advice of the Medical Officer of Health in the event of an outbreak of an epidemic being declared under the regulations made under the Quarantine and Prevention of Diseases Ordinance.
- (3) Whenever there is a suspicion of a risk of an epidemic in the authority area, service facilities shall not be provided on the premises unless all persons seeking services come to the premises in accordance with the relevant health guidelines issued.
- (4) Health safety instructions shall be implemented properly on the premises as directed by the Director General of Health Services or the Medical Officer of Health or by the Chairman on their instructions, in case of any outbreak or risk of any epidemic in the authority area to protect from it, and the license holder shall be satisfied that it is being so.
- (5) An information register shall be maintained relevant to all those who come to the premises expecting services.
- (6) Every time engages in haircuts, hair colorings, beards and hair removal of the customers, everyone who engages in such activities shall wear face masks and gloves as much as possible.
- (7) To manage and maintain equipment and utensils on the premises, the license holder shall ensure that there are,

- (A) Adequate facilities for the sterilization of used equipment and utensils;
 - (B) an accepted sterilization method and a adequate number of equipment used for sterilization;
 - (C) Soap or soapy liquid with hand washing facilities when providing services to the service providers inside;
 - (D) Adequate number of white or other light colored towels and upper body covers and hats for the use of the clients;
 - (E) When electric power tools are used, secure and permanent power plugs, to one customer's desk;
 - (F) Sterilization methods after each use of equipment.
- (8) Every employee working on the premises shall have a training in the use of safety equipment, service delivery and other activities related to the premises.
 - (9) Facilities shall be available to provide hot and cold water as required for the services relevant to the premises.
 - (10) Everything used for cosmetic purposes shall be standardized things approved and registered.
 - (11) Service providers shall be well trained to provide first aid functions as required under the services provided on the premises.
 - (12) The windows shall be kept open for good circulation of air in the premises, and if air conditioned, all air conditioners shall be kept constant at the prescribed temperature.
 - (13) The filters of the air conditioners in the premises shall be regularly cleaned and maintained.
 - (14) The relevant service shall be provided only after the hands have been cleaned with soap or sanitizer before providing the service to a customer.
 - (15) When working on the premises, the service shall not be provided to a customer without adequate cleaning prior to service after the use of toilets or after contact with any contaminants.
 - (16) When serving the customers on the premises, every service provider shall wear an apron and it shall be of very clean condition.
 - (17) Dust and hair shall be swept and removed after each service on the premises, and all shall be temporarily disposed into a sealed garbage bin.
 - (18) Floor, chairs, and tables on the premises shall be cleaned daily with disinfectants before starting work.
 - (19) No person shall use the service area of the premises for eating or any other purpose.

- (20) Foot-operated garbage bins with lids shall be kept for the separate collection of waste collected in the premises, and waste shall be collected only into that.
- (21) The following procedures shall be followed in the management of waste that collects in relation to the premises.
 - (A) Removed hair shall be collected at the end of each service and disposed in a separate garbage bin.
 - (B) Other waste generated by the activities in the premises shall be collected separately without mixing them with the discharged hair.
 - (C) The waste related to the premises shall be disposed in accordance with the waste management program implemented by the Pradeshiya Sabha or in accordance with the waste disposal strategy implemented by the license holder as agreed by the Public Health Inspector.
- (22) Latrines in the premises shall be cleaned and disinfected at least twice a day and shall be kept free from odor, and in the event of an outbreak or suspicion of an epidemic in the authority area, the latrines on the premises shall be cleaned and maintained in accordance with the guidelines given by the Chairman as instructed by the Medical Officer of Health.
- (23) Any person who suffers from any infection, transmittable or skin disease, or who has recently suffered from such a disease, or who has recently nursing a person who has recently infected from any such disease, unless the period of infection and incubation has expired, shall not be employed or employed as an assistant at any licensed place.
- (24) Any person identified as suffering from any infection, transmittable or skin disease shall not normally be entered to the premises for service.
- (25) When the license holder decides or in case where it is prescribed by the Council or any other competent authority as instructed by the Medical Officer of Health, the body temperature of all persons visit seeking service on the premises shall be checked to ensure that their body temperature is at a normal level and entered into the premises, and required thermometers shall be maintained to check body temperature without contact.
- (26) The health guidelines to be followed by each client on the premises shall be displayed on the premises and the license holder shall ensure that all activities are carried out in accordance with those guidelines.
- (27) Applies to everyone employed on the premises, the license holder shall ensure that,
 - (A) That the clothing worn at work is clean and in good health condition,
 - (B) That the jewelry worn and their nails are maintained in a manner that does not harm the customer,
 - (C) That the hands are sanitized and cleaned prior to service.

- (28) It is the job of the license holder to subject the employees of the premises to medical checkups at least once a year.
- (29) A copy of this by-law and license shall be maintained on display in each premises.
12. Taking into account the possible causes of the spread of an epidemic in the area, when the Chairman has prescribed that the license holder shall enter into a statement of agreement regarding the maintenance of the premises as instructed by the Medical Officer of Health, the license holder shall enter into a statement of agreement with the Chairman, and the Chairman shall send a copy of it to the Medical Officer of Health.
13. In the event of an order is in effect under the Quarantine and Prevention of Diseases Ordinance relating to any epidemic situation pertaining to the authority area, the premises shall be maintained in accordance with all the terms of that Order.
14. It is lawful for a Public Health Inspector or any other officer authorized by the Chairman to enter the premises at any reasonable time to inspect the premises whether it is in accordance with the provisions of this by-law and obtain the required samples. Power to center the Premiss
- 15.(1) In the event that a premises licensed under this by-law violates the provisions of this by-law or acts against it, the Chairman shall submit a notice to the license holder informing a specific time period not more than thirty days to be in compliance with the by-law. Cancellation of the license
- (2) After submission of a notice under this Section to the license holder, the Chairman may grant an additional period of time upon a reasonable request to further extend the time period to be in accordance with the terms of the relevant notice. The period granted so shall be subject to a maximum period of fourteen days in addition to the period specified in the first notice.
16. The Chairman shall cancel the relevant license in the event that the license holder neglect being complied with the notice within the period of time or additional period given under Section 15 above.
17. It is an offense to maintain a premises without a license to be obtained under this by-law or in violation of the provisions of this by-law and after being convicted by a Magistrate Court for that offense, shall be subject to a penalty under Sub-Section 122(2) of the Pradeshiya Sabha Act No. 15 of 1987. Further, after being found guilty of such an offense, if the violation continues even after the notice has been given by the Chairman or an officer authorized by him, he shall be subject to an additional penalty referred to in the aforesaid Sub-Section 122(2) of the Pradeshiya Sabha Act No. 15 of 1987 for each day of such violation. Penalty
18. Unless other meaning is required with regard to text, in this by-law,
- “Council” means Kalutara Pradeshiya Sabha, Definitions

“Chairman” means the person who hold the office of the Chairman of the Kalutara Pradeshiya Sabha at that time or an officer who performs the duties of that position,

“Medical Officer of Health” means the person who holds the office of the Medical Officer of Health Division relevant to the authority area of the Pradeshiya Sabha,

“Public Health Inspector” means a person who holds the office of Public Health Inspector attached to the Pradeshiya Sabha or the office of the Medical Officer of Health relevant to the authority area of the Pradeshiya Sabha,

"Disinfectant" means to reduce the amount of microorganisms in the environment by a chemical agent or physical means to a level that does not reduce the safety or suitability,

"Reasonable Time" shall mean the Licensed Function or the relevant time.

19. If there is any inconsistency between the Sinhala, Tamil and English texts of this by-law, the Sinhala text shall prevail.

Inconsistency
between texts

Schedule

Application to obtain a Trade License for the year.....

01. Name of the applicant: -
02. Personal Address: -
03. National Identity Card Number: -
04. Phone number: -
05. Start year: -
06. Address where the beauty center is maintained: -
07. Grama Niladhari Division: -
08. Assessment Number: -
09. If the business name registration has been obtained, its reference number:-
10. Information of the manager or agent of the business place,

I. Name and personal address

II. National Identity Card Number

III. Telephone Number Mobile: - Fixed: -

11. Number and date of the construction approval plan relevant to the business: -
(Copies should be attached)

98A

IV (අ) වැනි කොටස - ශ්‍රී ලංකා ප්‍රජාතාන්ත්‍රික සමාජවාදී ජනරජයේ අති විශේෂ ගැසට් පත්‍රය - 2023.02.13
PART IV (A) - GAZETTE EXTRAORDINARY OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA - 13.02.2023

I certify that the above information is true and correct.

Date:-

.....
Signature of the applicant

For office use

Revenue Inspector,

Kindly request to provide you with your observations and recommendations promptly for the issuance of a license in respect of the application mentioned in the back.

Date:-

.....
Secretary

Secretary,

Recommended/Not recommended issuing license.

Date :-

.....
Revenue Inspector

Medical Officer of Health,

Kindly request that your observations and recommendations promptly for the issuance of a license in respect of the application mentioned in the back.

Date :-

.....
Secretary

Medical Officer of Health,

Compliance with By-Laws and other rules and regulations. I will report for the recommendation of issuing a license.

Date :-

.....
Public Health Inspector

Secretary,

I recommend/not recommend the issuance of a license for the relevant place as per above application. (If not recommended, state the reason.)

Date :-

.....
Medical Officer of Health

BY-LAW ON PRIVATE EDUCATIONAL INSTITUTIONS

	1.	This by-law is enacted to regulate, supervise and inspect matters relating to public health in places where private educational institutions are maintained within the authority area of the Kalutara Pradeshiya Sabha.
Short title	2.	This by-law is cited as the By-Law on Private Educational Institutions of the Kalutara Pradeshiya Sabha.
	3.	The Pradeshiya Sabha is vested with powers to formulate these by- laws by virtue of Section 122 of Pradeshiya Sabha Act No.15 of 1987 read with the Sub-Section 126(ix) of the said Act.
	4.	No person within the jurisdiction of the Kalutara Pradeshiya Sabha (hereinafter referred to as the authority area) shall maintain any building as a private educational institution except under a license obtained from the Chairman under this by-law.
Applying for a License	5.	All persons applying for a license under this by-law shall apply for it under an application prepared in accordance with the schedule under this by-law.
	6.	Submission of an application under the above section can be made by fulfilling the requirements and submitting an application to the Chairman by registered post, handing over in hand or by e-mail to the extent permitted by the Council.
Inspection fees	7.	It is lawful for the Council to decide and charge a fixed inspection fee for site inspections to be carried out prior to the issuance of a license in relation to the application made under this by-law.
Conditions for a License	8.	Anyone applying for a license under this by-law shall have fulfilled the following conditions applicable to a private educational institution herein (hereinafter referred to as premises).
	(1)	All permanent constructions pertaining to the premises shall be constructions in accordance with a plan approved under the Urban Development Authority Act No. 41 of 1978 or under the Housing and Urban Development Ordinance.
	(2)	All constructions on the premises shall be compliant with the objectives for an educational purpose.
	(3)	All relevant constructions shall be with a proper finishing and arranged in a manner that is more favorable and does not adversely affect the educational activities carried out on the premises.
	(4)	The internal structure of the premises, the layout shall be arranged with adequate space.
	(5)	All areas of the premises shall be arranged in such a way as to maintain proper cleanliness.

- (6) The premises shall be properly ventilated and lighted, or artificially fulfilled with the necessary requirements.
- (7) All outputs on the premises shall be permanently made.
- (8) There shall be separate entrances and exits to the premises and there shall be emergency exits to exit the premises in case of an emergency.
- (9) Lecture halls shall be set up in the premises with platforms and they shall be well ventilated or air conditioned.
- (10) Each lecture hall shall have separate entrances and exits and shall include an additional exit door for emergency exits when the hall is for more than one hundred students.
- (11) Loudspeaker facilities shall be provided when there is a lecture hall for more than fifty children.
- (12) In the interior layout of a lecture hall, the seats shall be arranged so that they can be seated at a distance from each other and each seat shall have a table that is at least 0.75 m long and wide.
- (13) If the tables and seats in a lecture hall are arranged in such a way that they can be seated together, the space shall be kept so that the dimensions and distances mentioned in Section 12 above can be maintained and when seating for a group, seats and tables shall be set up to accommodate no more than six students.
- (14) Between seats and tables; There shall be enough space between each set of seat and table, and the space provided shall be in such way that it is easy to move.
- (15) Seats and tables shall be firmly fixed to the floor and all shall be well made and easy to use.
- (16) The interior walls of the premises shall be arranged in such a way that they do not retain organisms and every wall shall be properly finished.
- (17) The premises shall have a fire protection program in place and a fire safety certificate shall be obtained as applicable.
- (18) All halls and other buildings constructed within the premises and section without constructions shall be free from unsafe barriers and shall be in a risk-free condition.
- (19) Drains in the premises shall be constructed in such a way that it easily drained without retaining wastewater and shall be directed to a septic tank or a soakage pit or a central treatment unit.

(20) Septic tanks and soakage pits installed in the premises shall be installed in accordance with the approved plan and if there is a water source, it shall be set at a distance of at least 15.25 m away and it shall not be exposed to air.

(21) Adequate latrine facilities shall be provided in the premises and all latrines;

(A) Shall be provided separately for males and females.

(B) Shall equipped with water storage facilities to maintain an adequate supply of water on a regular basis.

(C) Each latrine shall have a permanent well-fixed stainless water basin with a good water supply for hand washing at a specified space allocated.

Issuing license	9.	Within fourteen days of receipt of the application for a license to be issued under this by-law, the Chairman;
	(1)	Shall issue a license pertaining to the premises to the applicant when the conditions under Section 8 are complied with.
	(2)	Shall reject the relevant application with reasons if the conditions under Section 8 are not complied with.
Fees for a license	10.	The fees to be charged for a license issued under this by-law shall be the fees to be decided and declared by the Council subject to the provisions of the Basic Law.
Validity period of a license	11.	If a license issued under this by-law is not previously cancelled in accordance with the provisions of this by-law, it shall be valid until December 31 of the year in which the license applies.
Information related to a license	12.	All persons receives a license under this by-law shall act in accordance with the following conditions herein.
	(1)	If there are any terms prescribed by the Chairman on the advice of the Medical Officer of Health time to time in order to control an epidemic situation declared throughout Sri Lanka or in any part of the country or relevant to the authority area or in any case where an epidemic has been declared applicable under the Quarantine and Prevention of Diseases Ordinance or regulations made under it, the premises shall be maintained subject to all such terms.
	(2)	The premises shall be well ventilated; if not, all lecture halls shall be air-conditioned and the relevant air conditioning machines shall be in good working condition in order to maintain a proper temperature.
	(3)	The sound emitted by the loudspeakers maintained in the lecture halls; shall be adequately controlled and maintained in accordance with the national environmental regulations.

- (4) If someone with an infectious disease condition arrives, there shall be a specific place on each premises to temporarily quarantine them.
- (5) Sufficient identity information including the name, addresses, and telephone numbers of all those studying on the premises shall be maintained, and information about the daily visitors shall be maintained in an identifiable manner.
- (6) All latrines in the premises shall be regularly disinfected and maintained.
- (7) All drains in the premises shall be properly cleaned and maintained on the ground surface preventing water and dust retention.
- (8) If hand hygiene is required when entering the premises, water basins with adequate water supply shall be installed and cleaning agents and sanitizers shall be provided.
- (9) Seats shall be arranged in such a way that the lecturer is easily visible to the students and the students are easily visible to the lecturer.
- (10) A system shall be set up to record information about those who visit the premises on each day when the educational activities takes place, shall maintain a separate identity information regarding all those who work on the premises.
- (11) About employees working on the premises,
 - (A) If employed as a resident, there shall be adequate sanitary facilities and accommodation facilities.
 - (B) Adequate latrine facilities shall be provided and maintained separately for males and females.
- (12) First aid facilities shall be provided on the premises so that they can be used for emergencies; The staff shall be trained for that.
- (13) Noise generated during lectures on the premises shall be controlled in accordance with the regulations of the Central Environmental Authority.
- (14) All electrical wiring connections in the premises shall be properly maintained; A report from an electrical engineer or a qualified professional shall be obtained at least once in every two years.
- (15) A person suffering from an infectious disease or suspected to be an infected or such a vector or an infected person shall not be employed on the premises and the license holder shall be satisfied that such person is not employed.
- (16) Sewage collected in the premises shall be disposed in sealed garbage bins specifically maintained for that purpose; and if there are disposable masks and gloves on the premises; all of them shall

only be disposed into foot-operated containers which shall be maintained on the premises for only that purpose.

(17) Sewage collected on the premises shall be disposed in accordance with a program implemented by the Pradeshiya Sabha or the Public Health Inspector.

(18) It is lawful for the Chairman to carry out the following actions on the premises or any of them or any other regulations for the benefit of public health on the advice of the Medical Officer of Health when required to act in the event of an outbreak of an epidemic under the Quarantine and Prevention of Disease Ordinance or a regulation made under it or when there is an epidemic situation in the authority area or when the Chairman has decided, on the advice of the Medical Officer of Health, that there are sufficient grounds to suspect the spread of an epidemic.

(A) That the work on the premises carried out under the licences shall be temporarily suspended for a period of time.

(B) That an emergency response plan shall be in place on the premises.

(C) That mass gatherings within the premises shall be stopped.

(D) That the distribution of lecture leaflets by hand shall be stopped.

(E) That a specified distance shall be maintained within the premises.

(F) That to make sure that the body temperature is below the normal range, when entering the premises.

(G) That the air conditioner filters shall be cleaned once a week.

(H) That shall be entered to a statement of agreement with the Chairman related to the maintenance of the premises in accordance with the set of instructions.

(I) That food shall not be sold or distributed on the premises.

(J) That respiratory etiquettes shall be followed when coughing and sneezing.

(K) That there shall be a specific place for food consumption and that food shall be consumed separately at that place.

(L) That health guidelines to be maintained on the premises shall be exhibited in an easily identifiable manner.

(M) That entry into the premises and exit from the premises shall be done in groups.

(N) That those who work on the premises shall undergo regular medical check-ups as prescribed by the Medical Officer of Health at regular intervals.

13. If the sale of processed food is carried out on the premises, the premises shall be maintained in

accordance with the relevant written laws and none of those shall be considered to have been suppressed subject to a license obtained under this by-law.

- | | | |
|--------|---|-------------------------------------|
| 14. | Each premises shall display this by-law and the license obtained thereon or a copy thereof. | That the license shall be displayed |
| 15. | It is lawful for the Chairman or any other authorized Public Health Inspector or any other authorized officer to enter the premises and obtain the required samples at any reasonable time to inspect the premises whether it is in accordance with the provisions of this by-law. | Power to enter a premises |
| 16.(1) | In the event that a premises licensed under this by-law violates the provisions of this by-law or acts against it, the Chairman shall submit a notice to the license holder informing a specific time period not more than thirty days to be in compliance with the by-law. | |
| (2) | After submission of a notice under this Section to the license holder, the Chairman may grant an additional period of time upon a reasonable request to further extend the time period to be in accordance with the terms of the relevant notice. The period granted so shall be subject to a maximum period of fourteen days in addition to the period specified in the first notice. | |
| 17. | The Chairman shall cancel the relevant license in the event that the license holder fails to be comply with the notice within the period of time or additional period given under Section 16 above. | Cancellation of the license |
| 18. | It is an offense to maintain a premises without a license to be obtained under this by-law or in violation of the provisions of this by-law and after being convicted by a Magistrate Court for that offense, shall be subject to a penalty under Subsection 122(2) of the Pradeshiya Sabha Act No. 15 of 1987, Further, after being found guilty of such an offense, if the violation continues even after the notice has been given by the Chairman or an officer authorized by him, he shall be subject to an additional penalty referred to in that sub-section for each day of such violation. | penalty |
| 19. | Unless other meaning is required with regard to text, in this by-law, | Definitions |
| | “Council” means Kalutara Pradeshiya Sabha, | |
| | “Chairman” means the person who hold the office of the Chairman of the Kalutara Pradeshiya Sabha at that time or an officer who performs the duties of that position, | |
| | “Medical Officer of Health” means the person who holds the office of the Medical Officer of Health Division relevant to the authority area of the Pradeshiya Sabha. | |
| | “Public Health Inspector” means a person who holds the office of Public Health Inspector attached to the Pradeshiya Sabha or the office of the Medical Officer of Health relevant to the authority area of the Pradeshiya Sabha. | |
| | "Basic Law" means the Pradeshiya Sabha Act No. 15 of 1987. | |

Inconsistency
between tex

20. In the event of any inconsistency between the Sinhala, English and Tamil texts of this by-law the Sinhala text shall prevail.

Schedule

Application to obtain a Trade License for the year.....

01. Name of the applicant: -
02. Personal Address: -
03. National Identity Card Number: -
04. Phone number: -
05. Start year: -
06. Address of the private educational institution: -
07. Grama Niladhari Division: -
08. Assessment Number: -
09. If the private educational institution is registered, its reference number: -
10. Information of the manager or agent of the private educational institution,
 I. Name and personal address
 II. National Identity Card Number
 III. Telephone Number Mobile: - Fixed: -
11. Approved building plan number and date: -
12. Number and Date of the Certificate of Conformity: -

I certify that the above information is true and correct.

I certify that the above information is correct. I request to issue a license to me for the year.....

Date: -

.....
Signature of the applicant

For office use

Revenue Inspector,

I kindly request you to provide me your observations and recommendations for the issuance of a license in relation to the application mentioned on the back.

Date: -

.....
Secretary

Secretary,

I recommend/do not recommend granting the license.

Date :-

.....
Revenue Inspector

Medical Officer of Health,

I kindly request that your observations and recommendations for the issuance of a license in relation to the application mentioned on the back.

Date:-

.....

Secretary

Medical Officer of Health,

Eligible in accordance with by-law and other rules and regulations. I will report to recommend the issuance of licenses.

Date :-

.....

Public Health Inspector

Secretary,

I recommend / do not recommend issuing a license for the relevant place as per the above application.
 (If not recommended, state the reason).

Date:-

.....

Medical Officer of Health

BY-LAWS ON THE CONTROL AND MANAGEMENT OF PUBLIC HEALTH CARE FACILITIES

1. This By-Law is enacted for the control and management of public health care facilities in the. Kalutara Pradeshiya Sabha area.
2. This by-law is cited the by-law on the control and management of public health care facilities in the Kalutara Pradeshiya Sabha. Area. Short Title
3. The Pradeshiya Sabha is vested with powers to formulate these by- laws by virtue of Section 126(IX) of Pradeshiya Sabha Act No.15 of 1987 read with the Sub-Section 122 of the said Act.
4. Public health care facilities implemented in the. Kalutara Pradeshiya Sabha area (hereinafter referred to as Authority area) shall be necessary to maintain it in an appropriate manner. The Chairman shall, in consultation with the Medical Officer of Health, take such action.
5. The Medical Officer of Health and all Public Health Inspectors in the authority area shall be treated as officers of the Sabha for the purpose of controlling and managing the public health facilities operated by the Sabha. The Medical Officer of Health and the Public Health Inspectors shall be treated as officer of the Sabha
6. The Chairman may delegate any of the powers and functions conferred on him under any written law in the control and management of public health facilities in the Authority area to the Medical Officer of Health or the Public Health Inspectors subject to the provisions of the relevant written law. Delegate of Power

Under the supervision of the Medical	7.	1.The management of public health care facilities related to the following services operated by the Sabha in the authority area shall be carried out under the supervision of the Medical Officer of Health. 1. Waste management activities in the area 2. Maternal and Child Health Clinics 3. Public toilets and latrines 4. Public Market Services 5.Maintaining slaughterhouses
Making Regulations	8.	In the event of any outbreak of any epidemic affecting the Quarantine and Prevention of Diseases Ordinance and the Regulations made under it, or any other regulation applicable under that Ordinance, shall be maintained by the Sabha. All regulations regarding the maintenance of services shall be made by the Chairman in accordance with the recommendations of the Medical Officer of Health.
Monthly Report	9.	A report prepared on the recommendations to be implemented for the next month in the proper maintenance of the public health facilities maintained by the Sabha and a monthly report on the activities related to the management of the public health facilities relevant to the public health in the area with respect to the previous month shall be submitted by the the Medical Officer of Health to the Sabha every month.
	10.	The recommendation of the Medical Officer of Health shall be submitted to the Sabha in respect of every measure applicable to the control and management of the relevant health care facilities in the authority exercise of the Sabha within the authority area of the Public Health Authority conferred by the written law.
	11.	Health protection to be enforced in the authority area in case of any contagious disease within the authority area or in case of a disease situation connected under the Quarantine or Prevention of Diseases Ordinance and the orders made under it, steps shall be taken by the Chairman in consultation with the Medical Officer of Health.
Obtaining details	12.	In a determination made under Article 11 above, it is the duty of the ordering person to duly provide such prescribed information to the prescribed persons within the prescribed time.
	13.	Information to be collected in order to prevent the spread of an epidemic or any contagious disease within the authority area applicable to the regulations made under the Quarantine and Prevention of diseases Ordinance. It is lawful for a Medical Officer of Health to direct any person to provide data to himself or to an authorized authority.
Penalty	14	If a person who has obtained the relevant order in accordance with an order under Section 11 above, does not act in accordance with Section 12 above and after being convicted by a Magistrate Court under section 122 (2) of the Pradeshiya Sabha Act No. 15 of 1987 shall be subjected to a penalty.

15. It is the duty of the Chairman to maintain a proper arrangement under the Head Office of the Sabha and all sub-offices for the execution of the functions prescribed and delegated under this By-Law.
16. Unless other meanings are required in relation to the terms of this by-law, “Sabha” refers the Kalutara Pradeshiya Sabha

 “Chairman” refers those who hold the office of the Chairman of the Kalutara Pradeshiya Sabha at present or perform the duties of that office,

 "Medical Officer of Health" refers to the persons holding the post for the Medical Officer of Health Division relevant to the Pradeshiya Sabha area.

 "Public Health Inspector" refers a person who holds the post of Public Health Inspector attached to the office of the Kalutara Pradeshiya Sabha or Medical Officer of Health attached to the authority area of the Kalutara Pradeshiya Sabha.
 "Person" refers to a person or in case of an organization, the Managing Director or Manager of the organization or any person acting on behalf of that organization,
17. If there are inconsistencies between the Sinhala, Tamil and English texts in this by-law, the Sinhala text will prevail.

BY-LAW FOR SETTING STANDARDS TO BE FOLLOWED REGARDING SANITARY REQUIREMENTS FOR PRIVATE MARKETS OR FAIRS

1. This by-law is enacted to set standards to be followed regarding the sanitary requirements for private markets or fairs within the authority area of the Kalutara Pradeshiya Sabha.
2. This by-law is cited as the by-law on the setting of sanitary standards for fairs of the Kalutara Pradeshiya Sabha. Short Title
3. The Pradeshiya Sabha is vested with powers to formulate these by- laws by virtue of Section 122 of Pradeshiya Sabha Act No.15 of 1987 read with the Sub-Section 126(xii) of the said Act.
4. The extent of the land (hereinafter referred to as the premises) on which each market, including a public market and a private market (hereinafter referred to as market), which is located within the jurisdiction of the Kalutara Pradeshiya Sabha (hereinafter referred to as the authority area) shall be specified, and it shall be a premises maintained and prepared under a name board for the same purpose.
5. All markets located within the authority area shall be maintained in accordance with the following standards to maintain proper sanitary conditions. That a Maarket
Shall comply with
sanitary standards
 - (1) The premises shall be zoned mainly for the exchange of goods brought for sale in vehicles as meat and fish, vegetables and fruits and other goods and for the washing of fruits and vegetables.

- (2) Latrines in the premises shall be adequate for both men and women outside the zones referred to in Sub-Section (1) above and shall be directed to a septic tank or soakage pit by a specific drain so that the water used therein shall not flow into any zone of the premises.
- (3) Zones within the premises shall be numbered and displayed in a map at the entrance to the premises in order for the easy attention of the visitors to the premises.
- (4) Permanent constructions within the premises shall be constructions built in accordance with the provisions of the written law to that effect.
- (5) Every construction on the premises shall be well constructed and anything or any material used for that purpose shall not release anything which contaminates food.
- (6) Necessary separations shall be made to prevent cross-contamination in the premises.
- (7) Arrangements shall be made to prevent the spread of animals such as dogs and cats in the premises, and all construction surfaces shall be prepared as inanimate surfaces.
- (8) A parking zone shall be established to prevent contamination of things brought in, things kept in the premises for sale from any substance, liquid or gas releases or leaks from any vehicle entering the premises.
- (9) The people deployed to unload, move the goods or the people work for such purposes shall be pre-identified for the purpose and the information for their identities shall be maintained by the market keeper documenting and updating the information.
- (10) The market keeper shall document the identities of those who come to the premises for trade and those who come for their support and maintain the information updated.
- (11) The floor of the premises shall be prepared so that water does not stagnate and the internal drains shall be arranged so that water can flow easily.
- (12) Septic tank or soakage pit shall be adequately constructed in the premises to allow wastewater to flow, and any soakage pit or soakage pit in the premises shall be located at a distance of at least 15.25 m, if there is a water source without an external opening.
- (13) All stands set up to keep goods for trade within the premises shall have a washable surface and each surface shall be disinfected and cleaned prior to use.
- (14) The interior layout of the premises shall be arranged with a reasonable distance to walk easily.
- (15) Goods and materials sold on the premises shall be kept out of direct contact with the ground and shall be placed on a stand or platform at a certain height above the ground.
- (16) Closed garbage bins shall be set up in each zone sufficient for the temporary disposal of waste

collected in the premises, and the waste shall be disposed only to the appropriate garbage bin where it should be disposed of according to its nature.

(17) Traders engaged in trading in the premises or customers shall not spit on the premises.

(18) No cooking or lighting shall be done on the premises and if cooked food is taken out and sold, all such food shall be stored in airtight containers and all food shall be sold with gloves and kitchen tongs.

(19) When disposing the gloves, masks used on the premises; Specific closed garbage bins shall be adequately maintained for their disposal; relevant disposals shall be done accordingly.

(20) Within the area where the fish is sold on the premises;

(A) Stands for the sale of fish shall be made of permanent materials and shall be cleaned and used before use with soap or disinfectant.

(B) The water used shall be directed to a septic tank or soakage pit through properly constructed closed drains.

(C) If fish is stored, it should be refrigerated and stored at a temperature of two degrees Celsius or less.

(D) Light bulbs and fittings hanging above the fish for sale shall be secured and covered.

(E) No substance, liquid or gas shall be leaked at or above the place where the fish is kept for sale and in contact with the fish and no contamination of the fish shall occur in any way.

(F) Sewage collected during the sale of fish shall be temporarily collected in closed garbage bins so as not to mix with other wastes on the premises and disposed in accordance with a waste management program implemented by the Pradeshiya Sabha or in accordance with the instructions of the Public Health Inspector.

(G) Refrigerated fish kept for sale shall not be re-refrigerated under ambient temperature.

(H) What is used for packaging in the sale of fish shall not be a printed paper or a packaging material that comes in direct contact with the fish.

(I) All fishmongers shall not be infected with any infectious disease or skin disease.

(J) All fishmongers shall wear appropriate clean clothes while selling fish.

(K) Weighing equipment shall be of proper standard and shall be disinfected and cleaned.

(21) Within the area where the meat is sold on the premises;

- (A) Stands for the sale of meat shall be made of permanent materials and shall be cleaned and used before use with soap or disinfectant.
 - (B) The water used shall be directed to a septic tank or soakage pit through properly prepared closed drains.
 - (C) If meat is stored, it should be refrigerated and meat should be stored at a temperature of two degrees Celsius or less.
 - (D) Light bulbs and fittings hanging above the meat for sale shall be secured and covered.
 - (E) No substance, liquid or gas shall be leaked at or above the place where the meat is kept for sale and in contact with the meat and the contamination of the meat shall not occur in any way.
 - (F) Sewage collected during the sale of meat shall be temporarily collected in closed garbage bins so as not to mix with other wastes on the premises and disposed in accordance with the waste management program implemented by the Pradeshiya Sabha or as per the instructions of the Public Health Inspector.
 - (G) Refrigerated meat kept for sale shall not be re-refrigerated under ambient temperature.
 - (H) What is used for packaging in the sale of meat shall not be printed paper or packaging material that comes in direct contact with the meat.
 - (I) All meat sellers shall not be infected with any infectious disease or skin disease.
 - (J) All engaged in the sale of meat shall wear appropriate clean clothes while selling meat.
 - (K) Weighing equipment shall be of proper standard and shall be disinfected and cleaned.
- (22) Within the area where vegetables and fruits are sold on the premises;
- (A) Sales locations shall be well ventilated and well lighted artificially or naturally.
 - (B) No washing of fruits and vegetables shall be done on the same place; vegetables and fruits washed and cleaned in a separate place on the premises for this purpose shall be kept for sale.
 - (C) No rotten vegetables or fruits shall be mixed with good quality vegetables and fruits.
 - (D) A person suffering from any infectious disease, infected or a person suffering from a skin disease shall not engage in selling activities.
 - (E) Rotten fruits and vegetables shall be disposed only in specifically designated containers.
 - (F) No person engaged in sale shall eat food, smoke, spit, chew betel and other items, cough, sneeze or touch the nose in such a manner as to contaminate vegetables or fruits and the hygiene

of vegetables and fruits shall be maintained.

(G) The water used to prevent drying of vegetables and fruits shall be drinking water and the use of any prohibited chemical substance in fruits and vegetables shall not be allowed.

(23) When the Chairman has made an order in this regard on the instructions of the Medical Officer of Health that any epidemic situation has arisen in an authority area or when any of the provisions applicable under the Quarantine and Prevention of Diseases Ordinance or any of the regulations made therein shall come into force, the following actions shall be properly implemented;

(A) That facilities shall be provided for cleaning hands at specific places in the premises and action will be taken accordingly.

(B) That the prevailing conditions and regulations regarding the use of public toilets in the premises shall be properly implemented.

(C) That the disinfection process to be carried out in the premises on the instructions of the Medical Officer of Health or the Public Health Inspector shall be carried out in accordance with the recommended schedule.

(D) That all operations on the premises shall be carried out in accordance with the instructions given to the users of the premises to protect social distancing.

(E) That action will be taken accordingly when the entry of vehicles into the premises is restricted.

(F) That notices have been circulated in the premises regarding the health practices to be followed from time to time and that action will be taken accordingly.

(O) That the masks and gloves used in the premises are disposed without mixing with other garbage.

6. In order to maintain a market in accordance with the standards set forth in Section 5 of this by-law, all actions shall be taken by a keeper of the common market in the case of a common market and by the license holder in the case of a private market.

7. The Chairman or a Public Health Inspector or an authorized officer shall inspect whether the premises are maintained in accordance with the standards set forth in this by-law.

Inspecting Power

8. When any market is maintained in violation of or not complies with the standards set out in Section 5 above; a written notice issued by the Chairman may specify a time period to be compliance with the standards.

Provide a specific time period by notice

9. Failure to comply with a notice issued under Section 8 above shall be an offense and shall be punishable under Sub-Section 122 (2) of the Pradeshiya Sabha Act No. 15 of 1987, after being convicted by a Magistrate Court.

penalty

Definition	10.	Unless other meaning is required with regard to text, in this by-law, "Council" means Kalutara Pradeshiya Sabha, "Chairman" means to the person who holds the office of the Chairman of the Kalutara Pradeshiya Sabha at that time or an officer who performs the duties of that position. "Authorized Officer" means any officer authorized in writing by the Chairman of the Kalutara Pradeshiya Sabha, "Contamination" means the entry or occurrence of contamination substance in a food or food chain; "Hygiene" means all the conditions and practices required to ensure the safety and suitability of food at all stages of a food chain.
Inconsistency between texts	11.	In the event of any inconsistency between the Sinhala, English and Tamil texts of this by-law the Sinhala text shall prevail.
BY-LAW REGARDING PROVISIONS RELATING TO DISINFECTION OF PUBLIC PLACES		
	1.	This by-law is enacted to make provisions for the relevant incidental matters, including the disinfection of public places and places of worship within the authority area of the Kalutara Pradeshiya Sabha.
Short Title	2.	This by-law is cited as the by-law regarding the provisions relating to disinfection of public places in the Kalutara Pradeshiya Sabha.
	3.	The Pradeshiya Sabha is vested with powers to formulate these by- laws by virtue of Section 122 of Pradeshiya Sabha Act No.15 of 1987 read with the Sub-Section 126(ix) of the said Act.
Circumstances where disinfection shall be done	4.	Under the following circumstances the Chairman shall disinfect or arrange to do so any place where the public gathers or gathered for matters of public importance or for a specific purpose including places of worship within the authority area of the Kalutara Pradeshiya Sabha (herein after referred to as authority area): (1) In cases where there is a need to disinfect places of worship or other places where public gathers or gathered located within the authority area in accordance with the provisions of the Quarantine and Prevention of Diseases Ordinance and the regulations made under it. (2) When there is a spread of an epidemic in any part or territory of Sri Lanka or in the authority area or when the Chairman has decided on the advice of the Medical Officer of Health that there are sufficient grounds to suspect the spread of any epidemic in the authority area.

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- (3) When a person dies due to an undiagnosed disease in a authority area and the places where the deceased person travelled has been identified.
 - (4) When the Medical Officer of Health or the Public Health Inspector has decided that the premises should be disinfected when a large gathering of the public is held or is being held at any place of worship and when such a religious ceremony is over.
 - (5) When a premises is maintained for a period of time without any activity and is used to gather people back to the premises.
 - (6) When it has been reported that a patient who has been infected or suspected of being infectious, or who has been in contact with such a patient has visited or acted in a place where public is gathered.
 - (7) When the Medical Officer of Health has advised that the areas identified as common public places shall be disinfected, when an outbreak of an epidemic is reported in their authority area or in any part of Sri Lanka.
 - (8) When the Medical Officer of Health has instructed that the relevant premises shall be disinfected for the benefit of the public health, when it matters the public to gather at any place of worship or public place.
 - (9) When any public places are subject to disinfection in accordance with a plan implemented for the purpose of promoting and protecting public health in the authority area.
 - (10) Whenever it is decided by the Chairman to disinfect any public premises as per the instructions of the Medical Officer of Health that it should be done for the sake of a more accurate health care existence.
5. If any public premises in the authority area is used by any person for public gathering, when there is a possibility of an epidemic spreading in the area or when there is a suspicion that it may be so, it is lawful for the Chairman to make any of the following orders to the person or the organizer engaged as instructed by the Medical Officer of Health.

Ordering a part to disinfect

 - (1) That the premises shall be disinfected before gathering the people in the relevant premises.
 - (2) That the premises shall be disinfected after the people have gathered and dispersed in the relevant premises.
 - (3) That the premises shall be disinfected before and after use.
 6. It is the responsibility and duty of the person who gets the order to act in accordance with the orders made by the Chairman under the above section.

	7.	The Chairman may act for the disinfection of religious places and public places within the authority area for the benefit of the public in accordance with a specific schedule prepared on the instructions of the Medical Officer of Health.
Penalty	8.	It is an offense if a person does not act in accordance with the orders made under Section 5 above by the Chairman and shall be subject to a penalty under Sub-Section 122(2) of the Pradeshiya Sabha Act No. 15 of 1987, after being convicted by a Magistrate Court.
Definition	9.	If disregards the orders made by the Chairman under Section 5, it is lawful for the Chairman to disinfect the premises relevant to that order and charge the defaulter the cost spent incurred.
	10.	Unless other meaning is required with regard to text, in this by-law, "Council" means Kalutara Pradeshiya Sabha, "Chairman" means the person who holds the office of the Chairman of the Kalutara Pradeshiya Sabha at that time or performs the duties of that position, "Medical Officer of Health" means those who hold the office of the Medical Officer of Health Division relevant to the authority area of the Pradeshiya Sabha. "Public Health Inspector" means a person who holds the office of Public Health Inspector attached to the Pradeshiya Sabha or the office of the Medical Officer of Health relevant to the authority area of the Pradeshiya Sabha. "Person" means an individual or managing director or manager of the organization or any person acting on behalf of that organization when referring to an organization by the name of an individual.
Inconsistency between texts	11.	In the event of any inconsistency between the Sinhala, English and Tamil texts of this by-law the Sinhala text shall prevail.

BY-LAW ON THE TERMS AND CONDITIONS FOR MARKET SUPERVISORS AND OTHER EMPLOYEES

	1.	This By-Law is imposed to specify the relevant Terms and Conditions for the proper performance of the duties of the Supervisors and Other Employees appointed for the market owned by Kaluthara. Pradeshiya Sabha
Short title	2.	This by-law is cited as the by-law to specify the work of the market Supervisors and Other Employees of Kaluthara Pradeshiya Sabha
	3.	The Pradeshiya Sabha is vested with powers to formulate these by- laws by virtue of Section 126(XII) of Pradeshiya Sabha Act No.15 of 1987 read with the Sub-Section 122 of the said Act.

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| 4. | For every market belong to the . Kaluthara..Pradeshiya Sabha, there should be a post in the name of the market supervisor and a suitable person should be appointed to the post. Appropriate appointments should be made by the authority | Appointment |
| 5. | The provisions of Section 32 of the Provincial Council Act No. 42 of 1987 as well as the provisions of Sub-section 19 (1) of the Pradeshiya Sabha Act No. 15 of 1987 as appropriate, shall be applicable with regard to appointments to the post of Market Supervisor. | |
| 6. | In order to carry out the duties of the Market Supervisor in a proper and appropriate manner, the necessary supporting posts shall be created by the Sabha and established in accordance with the relevant procedures | Supporting posts creation |
| 7. | The Market Supervisor shall carry out the following functions either by himself or his associates within the Public Market Premises (hereinafter referred to as the Premises) | Functions of market Supervisor |
- (1) Registration and maintenance of all traders in the premises.
 - (2) Placement of Traders by taking into account the zoning that operates within the premises.
 - (3) If there is a permanent operation of the shops, it is necessary to keep a close eye on the conduct of the trade under the respective premises in accordance with the terms of the relevant agreement.
 - (4) To monitor the cleanliness of the latrines in the premises and to ensure that the latrines are maintained in accordance with the by-laws regarding public latrines and to direct the staff in this regard
 - (5) Taking action to ensure that the waste collected in the premises is disposed in accordance with the waste management program implemented by the Pradeshiya Sabha
 - (6) Sewage in the premises should be directed to the respective pits or suction ditches so that water does not escape out of the drains
 - (7) Taking all measures to maintain the provisions of the by-laws of the Pradeshiya Sabha regarding the public market and private market regarding the trade carried out in the premises
 - (8) Carrying out the disinfection process in the public market premises in a timely manner.
 - (9) Ensuring that no alcohol, drug use or any other illegal activities take place in the remises.
 - (10) Taking all necessary steps to maintain the premises as a public health friendly premises.

- (11) Prevent parking of vehicles other than in the parking lot within the premises and direct the proper use of the entrances and exits.
- (12) Advice and guide the users on matters to be followed for the regular cleanliness of the premises and supervise accordingly.
- (13) Prevent begging, temporary accommodation and unauthorized use of the premises.
- (14) Take appropriate measures to prevent the spread of animals such as dogs and cats on the premises.
- (15) Taking action to collect the fees and rent due for the Pradeshiya Sabha from the traders engage in trade in the premises.

8. The Supervisor of the public market may delegate the task to the assistants to carry out the work assigned to him under Article 6 of this by-law and he shall ensure that the work so assigned is carried out in a proper and appropriate manner.

Follow the
Instruction
during the
outbreak of
an epidemic

9. Whenever there is an outbreak of an epidemic in any part or territory of Sri Lanka or when there is a suspicion of an outbreak in the authority area, It is the duty of the Market Supervisor to ensure that all steps are taken to implement the following or any other instruction given by the Chairman on the instructions of the Medical Officer of Health regarding the premises

- (1) Make sure that the water supply for hand washing placed in various places on the premises is safe and in constant use for the users of the premises.
- (2) Ensure that the conditions connected with the use of public latrines in the premises are properly observed and the relevant health instructions are followed.
- (3) The disinfection process on the premises should be carried out in accordance with the instructions of the Medical Officer of Health or the Public Health Inspector.
- (4) All activities in the premises are carried out in accordance with the instructions given to the users of the premises to maintain the social distance
- (5) Action shall be taken in accordance with the instructions to restrict the entry of vehicles into the premises.
- (6) That health advice to be followed in the premises shall be displayed in the premises through advertisements and other advertising methods.
- (7) The disposal of the waste of used Masks, gloves, etc. in the premises are to be considered as clinical waste and they are disposed without mixing with other waste
- (8) In the event of the Chairman suspending business activities in the premises for the sake of public health, no trade or public gathering shall not be taken place in the premises

- (9) Each stall in the premises has a specific person appointed in connection with the cash transactions
- (10) Any instruction given by the Chairman on the instructions of the Medical Officer of Health or the Public Health Inspector for the benefit of the public health shall be duly executed within the premises.
10. It is the responsibility of the Market Supervisor to carry out the duties assigned to him and make other employees to carry out their duties assigned to them, properly by this by-law.
11. The market supervisor shall maintain a records of the day-to-day activities of the employees in the premises; a daily notebook should also be maintained in the premises for visitors' notes for follow-up Keeping Records
12. It is the responsibility and duty of the Market Supervisor to ensure that all activities are carried out in accordance with the written directives related to the public market and its activities by the Chairman or an officer authorized by him, and that the instructions given after such supervision are properly implemented Supervision
13. The Supervisor of the market shall always act under the general administration of the Chairman and Secretary of the Sabha Act under the general administration of the chairman and secretary of the sabha
14. 1.Unless a different meaning is required in relation to the terms of this by-law, “Sabha” means Kalutara Pradesiya Sabha Definition
- Act under the Genaral administration of the chairman and Secretary of the sabha.
- "Chairman" means Kaluthara the current Chairman of the Pradeshiya Sabha or those who hold the office of the Chairman,
- "Medical Officer of Health" means the person holding the post for the Medical Officer of Health Division relevant to the Pradeshiya Sabha area,
- “Public Health Inspector” means a person who holds the post of Public Health Inspector attached to the office of the Pradeshiya Sabha or Medical Officer of Health working in the authority area of the Pradeshiya Sabha
15. If there are any discrepancies between the Sinhala, English and Tamil texts in this by-law, Sinhala text will prevail Inconsistencies between texts